APPEAL & REVIEW: BEYOND THE BASICS

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EDITORS' PREFACE

In 2010, the Bar published the first volume of a new edition of *Appeal and Review*. As the preface to that first volume explained, the new edition represents a major departure from previous editions of *Appeal and Review*, as it is divided into two volumes. The first volume—*Appeal and Review: The Basics*—covers the basic procedural and substantive areas with which every appellate practitioner should be familiar. Accordingly, the first volume serves to educate lawyers who have limited experience in the Oregon appellate courts. For more experienced lawyers, it is a reference work.

This second volume explores several areas of appellate practice—of appellate *jurisprudence*—in greater depth. The first introductory chapter provides thoughts on the convergence of theory and practice. In chapter 2, the authors discuss the principles that serve as the basis for familiar rules of appellate practice, including rules related to preservation, standards of review, and harmless error. The authors then explain how those principles should influence a lawyer's analysis of whether to appeal or seek judicial review, balancing client considerations like the expense of appeal, the likelihood of prevailing, delay, and the possibility of having to pay the respondent's attorney fees. The chapter 3 authors discuss the art of drafting appellate briefs, covering everything from appropriate structure to techniques for making briefs helpful and persuasive to appellate judges. Chapter 4 addresses oral argument from both sides of the bench, focusing on goals that all participants often do—and should—have for oral arguments. Both chapters 3 and 4 touch on the differences between practicing in the Oregon Court of Appeals and practicing in the Oregon Supreme Court. Finally, chapter 5 provides a comprehensive explanation of motion practice in both courts. All chapters reflect contemporary practices built on longstanding Oregon tradition.

As we did in *Appeal and Review: The Basics*, we gratefully acknowledge the effort and dedication of the extraordinary authors who contributed to this volume. They have brought their expertise to this project with skill, perseverance, and good humor. We thank them most sincerely.

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Chapter 1: THE CONVERGENCE OF THEORY AND PRACTICE

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§ 1.1 ROLE OF APPELLATE COURTS

Our judicial system relies on trial courts to resolve disputes in the first instance. Trial judges manage the cases, interpret law, and sometimes determine facts. Juries resolve factual issues and apply law to facts. While their decisions typically involve both law and fact, the focus is on resolving the case at hand, and decisions in trial court often turn on factual determinations.

Appellate courts play a different role. First and foremost, they ensure that the lower tribunal—trial court or administrative agency—applied the correct rule of law and that the trial or hearing was conducted fairly. Although appellate courts also apply law to facts, they must maintain a broader perspective than a trial court does, because they also set precedent for lower courts to follow in future cases. Of necessity, appellate courts keep one eye on the case at hand and the other on the decision's impact on future cases.

In the trial court, at least at the pleadings stage, the lawyers have a comparatively wide-open field of play. That is, they can choose which legal theory or theories to plead, and the record is open for whatever evidence best advances the client's position. On appeal, however, the record is what it is, and only rarely can a party advance a new legal theory. In trial court, sometimes a good strategy for the plaintiff is to ask for the moon—or, for the defendant, to disclaim all responsibility—even though the facts and law don't support the party's position, because maybe the court or jury will split the difference. On appeal, however, a party must offer the court a legal position that the court can accept; usually, staking out an extreme position just means the court will ignore the argument altogether.

The appellate courts do not make law out of whole cloth; they perform their law-making functions in the context of deciding cases. The litigants and the trial court set the framework, which consists of the legal theories and factual assertions framed by the pleadings, the evidence the parties have placed in the record, the

trial court's management of the proceedings, the objections made or not made at trial, the factual findings implicitly or explicitly made by the trier of fact, and more. As a result, although the appellate courts are concerned primarily with constitutional principles, statutory interpretation, and common-law precedent, the specifics of the case on appeal define the parameters of the court's law-making function. That is not to suggest that appellate courts simply choose from the positions asserted by the litigants, because they do not; the courts have a duty to interpret the law correctly, regardless of the advocates' positions. *Stull v. Hoke*, 326 Or 72, 77, 948 P2d 722 (1997).

§ 1.2 PROCEDURE AND STRATEGY

The Oregon Rules of Appellate Procedure reflect not only the courts' desire for an orderly exposition of the arguments on appeal, but also the limitations inherent in the appellate function. For instance, because the court of appeals reviews a trial court's evidentiary ruling for error by the trial court (*see* ORS 19.415(2)), usually there is no error if there was no objection at trial, because the trial judge made no ruling. Hence, before the appellate court can consider an argument that the trial court committed reversible error by admitting certain evidence, an appellant usually must demonstrate that he or she preserved the claim of error by objecting to the admission of the evidence. Similarly, the standards of review, which reflect constitutional constraints, statutory directives, and prudential considerations, limit the scope of the court's power on appeal.

An appellate lawyer should approach an appeal with a strategy to deal not only with the strengths and weaknesses of the case, but also with the fixed record, the issues preserved for appeal, and the appellate court's limited scope of review. What are the goals on appeal? Does the court's scope of review even allow it to reach the issues that the appellant wants to raise? Is it realistic to aim for outright reversal of the lower court's decision, or will remand suffice? If the court of appeals remands the case to the lower tribunal, what are the chances that on remand it reaffirms its prior decision? To what extent is the client interested in the legal rule that results from the appeal, or is winning or losing the only concern? How many arguments should the lawyer raise on appeal? For the respondent, does it make sense to assert an alternative ground for affirmance, or should the respondent stick to defending the trial court's rationale? How much does the scope of review shield what otherwise may appear to be a bad ruling by the trial court? If

the facts are sympathetic to the lawyer's client but the law is unfavorable, can the lawyer draft the brief to play up the facts? If the facts are unsympathetic, can the lawyer frame the issues as purely legal ones? If there is adverse precedent, is it distinguishable, and is the court likely to find the distinction significant? If not, is there a reasonable hope of persuading the court to overrule precedent? In short, the appellate lawyer needs a strategy, but his or her options are constrained by the record and the principles of appellate review.

§ 1.3 STANDARDS OF REVIEW

The standard of review is the lens through which the appellate court examines a particular issue. The brief—in fact, the argument itself, as well as its presentation in the brief and at oral argument—should be organized around the standard of review. Lawyers (and clients) may find this a difficult concept to embrace, especially if the lawyer handling the appeal also tried the case in the lower court. For example, at trial, a defendant in a criminal case benefits from the prosecution's burden to prove its case beyond a reasonable doubt. If the jury convicts the defendant, however, on appeal that burden of persuasion is of little or no value to the defendant, because the appellate court must affirm the jury's verdict if it is supported by any evidence. *See* § 2.2-2(b)(3)(ii). The change in the court's perspective on evidence calls for a fundamental shift in advocacy.

Although the specific degree of deference that an appellate court affords the lower tribunal's factual determinations depends on who (jury, trial judge, or administrative agency) made the decision, as a general matter the scope of review of facts is very narrow. See § 2.2-2(b)(3)(ii) for a detailed discussion of various standards of review. On the other hand, appellate courts afford no deference to the lower court on questions of law, which are reviewed *de novo* on appeal.

For discussion of some important considerations related to standards of review, see § 2.1-1 to § 2.1-7.

§ 1.4 ROLES OF LAW AND FACT IN APPELLATE DECISIONS

The distinctly different standards of review of legal and factual questions reflect the different functions that the trial and appellate courts perform in our judicial system. In short-hand form, trial courts have primacy in determining the facts, while appellate courts have the final word on the law. Of course that is a

gross oversimplification: Trial courts decide the law at least in the first instance, and on rare occasions, an appellate court finds facts on its own or recharacterizes the facts as found by the lower tribunal.

Because the standards of review for legal and factual issues are so different, much depends on whether an issue on appeal is properly characterized as a question of law or one of fact. Yet the line between what is law and what is fact is indistinct. *See Pullman-Standard v. Swint*, 456 US 273, 288, 102 S Ct 1781, 72 L Ed 2d 66 (1982) (noting "the vexing nature of the distinction between questions of fact and questions of law"). A few examples illustrate the point:

(1) When a jury or trial judge rules that a person who injured a third party was acting as an independent contractor rather than an employee of the defendant corporation, the appellate court will defer to the underlying findings of who said or did what and when, but it may substitute its own judgment about the legal effect of facts that are not subject to dispute. On the other hand,

> [i]n cases in which the facts or reasonable inferences support a conclusion that there is an employer-employee relationship, [the Oregon Supreme Court] allows the jury to render a verdict as to the individual's employment status—although a conclusion of law—by way of resolving any conflicting facts or inferences on the basis of proper instructions. [The Oregon Supreme Court] has acknowledged that this practice may not always lend itself to a fastidious application of the rule that the jury decides fact and the court decides law.

Schaff v. Ray's Land & Sea Food Co., Inc., 334 Or 94, 101, 45 P3d 936 (2002) (footnotes and internal quotation marks omitted).

(2) If the evidence that persuaded the trial court is not probative of the legal issue, correctly understood, the appellate court may find "as a matter of law" that a party did not carry its burden of proof. *See, e.g., In re Marriage of Sconce and Sweet*, 249 Or App 152, 159–60, 274 P3d 303, *rev den*, 352 Or 341 (2012).

(3) The trial court's finding may "necessarily involve[]" construction of a statutory term, and that interpretation is subject to review by the appellate court. *Cmty. Bank v. U. S. Nat. Bank of Oregon*, 276 Or 471, 478–79, 555 P2d 435 (1976).

(4) One exemption in the public records law, ORS 192.410 to 192.505, applies only if the "public body shows that in the particular instance the public interest in encouraging frank communication . . . clearly outweighs the public

interest in disclosure." ORS 192.502(1). Another exemption requires the party seeking disclosure to carry "the burden of showing that public disclosure would not constitute an unreasonable invasion of privacy." ORS 192.502(2). These descriptions sound like burdens of proof to be satisfied by evidence, but they also appear to include a legal component. *See generally Mail Tribune, Inc. v. Winters*, 236 Or App 91, 96, 237 P3d 831 (2010) (discussing personal privacy exemption in ORS 192.502(2)).

Mixed questions of law and fact require careful attention to which aspects of the issue are in dispute in the appeal and how the court will review them.

More fundamentally, the relationship between law and fact is a dynamic one. Thus, even though appellate review of a lower tribunal's findings of fact is very narrow in scope, an appellate advocate still needs to pay close attention to the facts in the record and how to present them in the brief. When an appellate advocate argues for a refinement of an existing rule of law or for application of a settled rule to an unusual set of facts—that is, in any case in which the correct result is unclear—the success of the argument usually turns on persuading the appellate court that the proposed outcome is not only legally correct, but also a good outcome, or at least an acceptable one, on a common-sense level. In other words, if applying a rule of law to given facts yields an outcome that seems unfair or otherwise wrong, the court is likely to ask whether it ought to be applying a different legal principle or modifying the one it would otherwise apply. In such a case, the facts provide context for the court to decide which outcome yields the best decision and creates the best precedent. In short, although the emphasis shifts from fact to law as a case moves from trial court to court of appeals (and even more toward law on review in the Oregon Supreme Court), the heart of the process is still a dialogue between law and fact, in search of both a fair result and a principled rule of law.

§ 1.5 WHEN THEORY AND PRACTICE CONVERGE

The skilled appellate practitioner must understand when the theory of concepts such as standard of review, assigning error, and distinguishing questions of fact from questions of law converge with the practical aspects of handling a specific appeal for a specific client. From the time the client first says, "I want to appeal," through briefing and oral argument, that point of convergence informs the

lawyer’s strategy and decisions. This book is designed to help the appellate lawyer understand and keep a firm grasp of theory while in the midst of practice.

Chapter 2: WHETHER TO APPEAL AND WHAT ISSUES TO RAISE

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§ 2.1 CONSIDERATIONS REGARDING STANDARDS OF REVIEW

§ 2.1-1 Standard of Review Can and Often Does Decide the Outcome of an Appeal

Perhaps the single most misunderstood, yet critically important, aspect of the appellate process is the concept of standards of review. For a lawyer to evaluate his or her case on appeal, the ruling below and the issue on appeal both must be clearly identified, and the relevant standard of review must be applied to them. Even a purely legal question as basic as “What does a statute mean?” can have a different answer driven by the applicable standard of review, depending on whether the case is in the appellate courts on review of a government agency decision or on appeal from a circuit court judgment.

The purpose of this section and § 2.1-2 to § 2.1-7 is not to identify each potential standard of review and context within which it may apply. Instead, see § 2.2-2(b)(3)(ii) and *Appeal and Review: The Basics* § 5.6 to § 5.9 (OSB Legal Pubs 2010). Rather, the purpose here is to emphasize the critical strategic importance and role of standards of review in appellate practice and decision-making, and to point to a few of the key concepts and developments that may inform the evaluation of the merits of an issue on appeal.

§ 2.1-2 Appellate Judges Focus on Standards of Review

For Oregon appellate court judges, the standard of review is the primary filter and the lens through which they understand and analyze every case presented to them. Yet, law students and lawyers often have only a glancing familiarity with the concept of standards of review. It generally is not taught in any systematic way in law school, which is why for at least the last 20 years the orientation for all appellate law clerks in Oregon contains a key component on standards of review (along with other subjects that are similarly situated such as preservation of error, harmless error, and appellate jurisdiction).

The Oregon Rules of Appellate Procedure require the parties' briefs on the merits to address standards of review under a separate heading for each assignment of error. ORAP 5.45(5). It is not uncommon for one of the first questions in oral argument to be some variant on "What is the applicable standard of review here?" And every decision of the Oregon Court of Appeals and Oregon Supreme Court, expressly or necessarily implicitly, starts from a base that identifies and follows the applicable standard of review. Indeed, it is fair to say that a significant percentage of the cases in which the Oregon Court of Appeals affirms without an opinion or the Oregon Supreme Court denies review are driven by application of the standard of review and the ensuing conclusion that the decision below must be affirmed.

§ 2.1-3 The Spectrum of Standards of Review

Standards of review exist on a spectrum. The range includes but is not limited to the extreme deference given in many instances to express or implicit findings of fact (which often must be affirmed if there is any evidence at all to support them), to decisions that will be reviewed for abuse of discretion, to pure questions of law such as a question of constitutional interpretation (in which the court determines whether there was an error of law, independently of whatever decision may have been reached below).

Each assignment of error on appeal may contain one or more standards of review within it, and the standards of review may be different from one assignment of error to the next. Moreover, the parties often disagree about one or more aspects of the applicable standard of review. These are not idle disagreements; where a case sits on the spectrum of standards of review often determines the result on appeal.

§ 2.1-4 Examples of Variations within a Standard of Review

§ 2.1-4(a) Questions of Law: Interpreting the Oregon Constitution and Oregon Statutes

If a question of law is taken down one notch, from interpretation of the state constitution to interpretation of a state statute, the standard of review is still nominally for "error of law," but the underlying meaning of that phrase in the statutory context is significantly different from its meaning in the constitutional context. Constitutional interpretation presents a pure question of law, reviewed for error of law, because it is the province of the courts, and only the courts, to state definitively the meaning of the Oregon Constitution. *See, e.g., Automobile Club of Oregon v. State*, 314 Or 479, 487–89, 840 P2d 674 (1992).

By contrast, the legislature possesses and exercises the authority to direct the courts on how statutes will be interpreted. *See* ORS 174.010–174.090. Moreover, in certain circumstances, the legislature is deemed to have given to government bodies and not to the courts the primary authority to interpret state statutes. *See Springfield Educ. Ass'n v. Springfield Sch. Dist. No. 19*, 290 Or 217, 223–30, 621 P2d 547 (1980) (rules on judicial review of agency interpretation of statutes). Thus, although the court may be reviewing an agency's interpretation of a statute nominally for errors of law, the court nonetheless may be doing so through a deferential filter that requires the court to affirm the agency's interpretation of the statute if it is not manifestly inconsistent with the terms and intent of the statute. *Springfield Educ. Ass'n*, 290 Or at 228–30 (judicial review of agency interpretation of "delegative terms" in a statute).

§ 2.1-4(b) Questions of Fact or Law within Abuse of Discretion

Abuse of discretion ordinarily is an extremely deferential standard of review. Yet embedded within that standard in any given case may be an underlying question of historical fact, which will be reviewed for any evidence (*see State v. Carlson*, 311 Or 201, 214, 808 P2d 1002 (1991)), or a question of law, which will

be reviewed for an error of law and which will then in turn inform the appellate court's review of the lower court's or agency's exercise of discretion. Moreover, it is not always simple to distinguish a question of fact from a matter of law, particularly when there is a finding of fact or a conclusion of law below that may have elements of each within it. *See* § 1.4.

If the appellate court concludes that the lower court relied on an unsupported finding of fact or an incorrect understanding of the law that governed the exercise of discretion, then the appellate court must decide whether based on the record there is only one possible correct result when the correct interpretation of law is applied. If that is the case, then the appellate court will announce and enforce that decision (unless remand is required for further development of the record). *State v. Rogers*, 330 Or 282, 311–12, 4 P3d 1261 (2000).

§ 2.1-5 Prerequisites for Deferential Standards of Review

An appellate lawyer needs to be alert to wrinkles in the law that may take a seemingly straightforward standard of review in an entirely different direction. There may be preconditions for a deferential standard of review to apply, and if those conditions are not met by the lower court or agency, then the same deference may not be accorded the decision on appeal.

Consider, for example, the general rule that a trial judge's decision to admit or exclude evidence in response to an objection to admissibility under OEC 403 (weighing of probative value and other considerations including unfair prejudice) is reviewed for an abuse of discretion. *State v. Moore*, 324 Or 396, 407–08, 927 P2d 1073 (1996). Nonetheless, if the trial court has not adequately articulated the reasons for its ruling under OEC 403 or otherwise has demonstrated that the judge failed to properly consider a factor necessary for the ruling, then the trial court's decision may not receive the same deference and may be reversed on appeal. *State v. Mayfield*, 302 Or 631, 646–47, 733 P2d 438 (1987).

Similarly, although a trial court's credibility findings ordinarily are deferred to on appeal, that is generally true only for in-person testimony, when the trial court has articulated that the witness's demeanor was a basis for the credibility finding. *See In re Conduct of Fitzhenry*, 343 Or 86, 103–05 & n 13, 162 P3d 260 (2007) (Bar discipline); *see also Allen v. Meinig*, 109 Or App 341, 347–48, 819 P2d 744 (1991), *rev den*, 313 Or 209 (1992) (civil).

Attorney fee awards are another area in which review for abuse of discretion may be circumscribed by the prerequisite for adequate findings below to address relevant statutory factors and to permit meaningful appellate review. *Conley v. KCA Financial Services, Inc.*, 145 Or App 567, 571–73, 931 P2d 808 (1997) (findings of fact required for award of attorney fees as a sanction under ORCP 17 D); *Matter of Marriage of Sheehan*, 123 Or App 449, 452, 860 P2d 835 (1993) (findings of fact required for award of attorney fees as a sanction under ORS 20.105); *see* ORS 20.075 (statutory factors for review of attorney fee awards).

In each of these instances, the appellate court is willing to extend the deference inherent in the abuse-of-discretion standard of review, but only when the trial court has done the work that entitles its decision to deference on appeal.

§ 2.1-6 Equity Cases

The standard of review is often a purposeful systemic tool for affirmance. The recent changes in the law to eliminate *de novo* appellate review of facts in equity cases (other than termination-of-parental-rights cases) in the Oregon Court of Appeals and to replace it with review for any evidence to support the judgment (Or Laws 2009, ch 231, § 2 (amending ORS 19.415(3)); ORAP 5.40(8)) is a clear example of a legislative choice to honor and affirm the decision below in most instances. The exception, which permits the court of appeals to exercise discretion "to try the cause anew on the record or to make one or more factual findings anew on the record" but "only in exceptional cases" (relevant considerations are set forth in ORAP 5.40(8)(d)), is still playing itself out, but it appears fair to say that the court of appeals is adhering to its rule that requests for it to exercise that discretion "are disfavored." ORAP 5.40(8)(c).

This change in the standard of review may serve to reduce the caseload for the appellate courts by presumably eliminating a class of appeals that were filed in order to get a second bite at the factual apple. This same paradigm shift occurred years ago in the area of workers' compensation law, which abandoned *de novo* factual review and replaced it with substantial-evidence review (Or Laws 1987, ch 884, § 12a; *see* *Workers' Compensation* § 19.10 (OSB Legal Pubs 2008)), and thereby stemmed the overwhelming tide of cases in which the court of appeals was, for example, being asked by claimants, employers, or insurers to reevaluate the exact percentage of disability that should be awarded as a result of a workplace injury.

§ 2.1-7 What Happens to the Standard of Review When the Information Changes on Appeal: When Legislative History Meets Abuse of Discretion

The standard of review also can be affected by seemingly unrelated developments in the law. For example, with the amendment of ORS 174.020 (Or Laws 2001, ch 438, §1) and the decision in *State v. Gaines*, 346 Or 160, 171–73, 206 P3d 1042 (2009), legislative history can be more of a factor in statutory analysis than it has been in the past. Yet, briefing by the parties on legislative history in the trial courts continues to be relatively infrequent, and the statute obliges the court to consider legislative history only if the parties present it, giving it the weight that the court considers appropriate. The court need not independently search for legislative history if the parties do not brief it. ORS 174.020(3).

> QUERY: Assume, as is commonly the case, that a trial court decides an evidentiary issue based on its interpretation of a provision of the Oregon Evidence Code without the benefit of legislative history. An appeal is taken, and legislative history is presented and relied on for the first time by a party or the appellate court, which leads to the conclusion that the trial court incorrectly interpreted the statute.
>
> Is it appropriate under the circumstances to conclude that the trial court abused its discretion when it may have come to a permissible conclusion based on the information that the parties presented (or failed to present)? How far does the appellate court's self-imposed obligation to "get it right" extend when interpreting a statute?
>
> Is it fair and appropriate for an appellant to win reversal or remand under such circumstances when the legislative history the appellant brings forward on appeal is information that the party did not bring to the attention of the trial judge?

§ 2.2 EVALUATING WHETHER TO APPEAL

§ 2.2-1 Evaluating the Merits of an Appeal

§ 2.2-1(a) The Changing Field of Play and the Institutional Tilt toward Affirmance on Appeal

To analyze the merits of an issue for appeal, an appellate lawyer must be able to recognize that cases evolve and often change in material ways as they mature through the judicial system. Application of standards of review that define and may limit the authority of the appellate court provides one obvious example. Another example is that the Oregon Supreme Court may feel fewer constraints in its decision-making as a discretionary-review, law-announcing court than the Oregon Court of Appeals may exercise as an intermediate appellate court hearing appeals of right and primarily performing an error-correcting, case-deciding role. *See 1000 Friends of Oregon v. Bd. of Co. Comm.*, 284 Or 41, 44, 584 P2d 1371 (1978) (respective roles of the Oregon appellate courts); *see also* § 3.4-2(a). For reasons such as these, sometimes there is little, if any, correlation between the arguable viability of an issue at trial and the likelihood of that issue resulting in relief on appeal or review.

The Oregon appellate structure generally leans toward affirmance on appeals from the decisions of juries, judges, and government bodies. That same fundamental leaning exists in other states and the federal system, which share the underlying concerns of the Oregon appellate courts for finality, judicial economy, comity or respect for the role of citizen juries and decisions of lower courts and government bodies, and control of the size and composition of the appellate court's docket.

This tilt toward affirmance is manifest in a range of constitutional and statutory provisions, as well as self-imposed constraints adopted by the appellate courts in rules and case law. Among the more obvious are standards of review that often bind the appellate courts and that defer to the lower court or government body, requirements for preservation of claims of error, and the doctrine of harmless error that denies relief unless an appellant can demonstrate that his or her substantial rights were affected by an error.

Moreover, jurisprudential principles or methodologies that foster preservation of the status quo in the law may preclude changes by the courts in existing common law or constitutional law, or may limit the range of a court's

authority in the context of statutory interpretation. *E.g.*, ORS 174.010, ORS 174.020 (statutory interpretation); *State v. Ciancanelli*, 339 Or 282, 290–91, 121 P3d 613 (2005) (constitutional law); *G.L. v. Kaiser Foundation Hospitals, Inc.*, 306 Or 54, 59, 757 P2d 1347 (1988) (common law). *See generally Interpreting Oregon Law* (OSB Legal Pubs 2009). Application of these principles or methodologies can take an otherwise seemingly attractive argument and render it ineffective on appeal.

§ 2.2-1(b) The First Step: Identifying the Type of Issue on Appeal

In analyzing the merits of an issue for appeal, it is useful at the outset to identify the type of issue that you are dealing with. This is not always as simple as it seems, and if the exercise is not simple then the process of identification undoubtedly has been worthwhile. That is because identification of the type of issue ordinarily carries with it critically important information about how that issue may be adjudicated on appeal.

What follows is a nonexhaustive list of the most common types of issues present on appeal: interpretation of statutes, common law, and the state or federal constitution; application of statutes, common law, or the state or federal constitution (often a mixed question of fact and of law); review of questions of fact (for example, sufficiency of evidence in a civil or administrative proceeding); review of decisions on a range of dispositive motions; review of decisions that may require a new trial, including review of jury instructions and evidentiary rulings; determinations of the lawful statutory scope of regulatory authority; and judicial review of agency interpretations of a statute or the agency's own rule.

§ 2.2-1(c) Step Two: Paying Attention to Appellate Implications Tied to the Type of Issue

Set forth in § 2.2-1(c)(1) to § 2.2-1(c)(4) are several examples of the kinds of implications that may follow from identification of the type of issue on appeal. Although the list is not exhaustive—like the list of types of issues in § 2.2-1(b)—the thread throughout is that it is essential to identify and consider the implications appurtenant to the type of issue in order to make a valid assessment of the merits of an issue on appeal.

§ 2.2-1(c)(1) Statutory Interpretation

One of the most common types of issues on appeal is one that presents a question of Oregon statutory interpretation. Indeed, Justice Jack Landau has edited a book, *Interpreting Oregon Law* (OSB Legal Pubs 2009), devoted primarily to the subject. And even though questions of statutory interpretation are very common on appeal, it is equally true that the briefing, if any, in the circuit court on these issues often bears only a modest relationship to the depth of the inquiry into statutory interpretation on appeal.

The most notable example of this is that Oregon appellate courts are more routinely consulting legislative history in the process of determining legislative intent behind a statute, whether or not a party briefed it in the circuit court or even on appeal. *See* Or Laws 2001, ch 438, § 1 (amending ORS 174.020); *State v. Gaines*, 346 Or 160, 171–73, 206 P3d 1042 (2009). Indeed, the Oregon appellate courts have concluded that they have an independent obligation to reach the correct answer on a question of statutory interpretation, regardless of whether a party has raised the argument or authority (such as legislative history or relevant statutory context) that leads to that answer. *Stull v. Hoke*, 326 Or 72, 77, 948 P2d 722 (1997).

> PRACTICE TIP: In cases of statutory interpretation in which the parties have not reviewed or briefed the legislative history during the proceeding below, in order to assess (and ultimately brief) the merits of the issue on appeal, the appellate lawyer would be well-advised to examine the legislative history of the statute. If the lawyer does not do so, there is a reasonable likelihood that the opposing party or the appellate court will, and there clearly is no advantage to having been in the dark, regardless of whether the history is favorable or unfavorable.

To put an even finer point on this, appellate review of the meaning of a statute can be different in the context of civil or criminal litigation and agency adjudication or rulemaking. In civil or criminal cases, appellate review is a pure question of law for the court, whereas in the administrative agency context, in certain circumstances, some measure of deference must be accorded to the agency's interpretation of a statute, even though the court may conclude that there is another equally or even more plausible interpretation of the law. *See Springfield Educ. Ass'n v. Springfield Sch. Dist. No. 19*, 290 Or 217, 228–30, 621 P2d 547

(1980) (judicial review of agency interpretations of statute); *see also* § 2.1-4(a). An appellate lawyer thus might well conclude that a client had a good chance of prevailing on an appeal in the civil or criminal context because the client had the better of the two positions with regard to the meaning of the statute, whereas that same appellate lawyer whose client lost that same battle in front of an agency in a contested case or rulemaking proceeding might well conclude that there was no point to an appeal because the agency's interpretation would not be reversed on appeal.

Moreover, once an issue is identified as one involving statutory interpretation, any assessment of the merits of the issue on appeal must take full account of the methodological framework that the court will apply on appeal to ascertain legislative intent. Although the general construct involving statutory text, context, and legislative history is by now familiar, there are literally scores of subsidiary principles and maxims that may inform the exercise and that ultimately may determine the outcome. *See* *Interpreting Oregon Law* (OSB Legal Pubs 2009).

§ 2.2-1(c)(2) Questions of Law, Questions of Fact, and Mixed Questions of Law and Fact

The issue on appeal can be characterized as a question of law, question of fact, or mixed question of law and fact. The character of the issue (or the issue within the issue, such as the question of fact in a mixed question of law and fact) will trigger discrete standards of review on appeal. Moreover, those standards of review can vary depending not only on the characterization as a question of law or of fact but also on the nature of the underlying case. For example, questions of factual sufficiency will be reviewed differently on appeal from a verdict in a civil jury trial than on review from an agency order in a contested-case proceeding. *Compare Brown v. J.C. Penney Co.*, 297 Or 695, 705, 688 P2d 811 (1984) (denial of directed verdict in civil jury trial will be reversed only if there is no evidence to support a claim), *with* ORS 183.482(8)(c) (remand on review of contested case only if there is not "substantial evidence in the record" to support an order).

Any assessment of the merits of an issue on appeal must start from a clear understanding of the standards of review on appeal. *See* § 2.2-2(b)(3)(ii). Indeed, the parties often disagree about the applicable standards of review, and any potential for the court to apply an unfavorable standard of review, which can be

dispositive, always must be considered when evaluating the merits of an issue on appeal.

§ 2.2-1(c)(3) Jury Instructions

Jury instructions generally present questions of law. Sometimes they are generic, such as the Oregon Uniform Civil Jury Instructions or the Oregon Uniform Criminal Jury Instructions, and other times they are tailored to the specific facts and claims in a case. However, analysis of the merits on appeal of a claim of error assigned to the giving of a jury instruction or the refusal or failure to give a jury instruction must go well beyond recognizing that the standard of review for questions of law may apply. The appellate lawyer must pay particularly close attention to the specific and stringent requirements for preservation of claims of error with respect to jury instructions as well as to how the harmless-error doctrine factors into play. *See* § 2.2-1(c)(3)(i) to § 2.2-1(c)(3)(ii).

§ 2.2-1(c)(3)(i) Preservation of Error

If jury instructions are an issue on appeal, then strict requirements for preservation of claims of error may apply.

> A party may not obtain appellate review of an asserted error by a trial court . . . [regarding jury instructions] unless the party seeking review identified the asserted error to the trial court and made a notation of exception immediately after the court instructed the jury or at such other time as the trial court directed.

ORCP 59 H(1).

> *Exceptions must be specific and on the record.* The notation of exception . . . must be made orally on the record or in a writing filed with the court and must identify with particularity the points on which the exception is based. In noting an exception, a party may incorporate by reference the points that the party previously made with particularity on the record regarding the . . . instruction to which the exception applies.

ORCP 59 H(2).

NOTE: This is the significantly amended version of ORCP 59 H that took effect on January 1, 2014.

NOTE: ORCP 59 H applies not only to civil cases, ORCP 1 A, but also to criminal cases, ORS 136.330(2).

CAVEAT: ORCP 59 H merely "specif[ies] the procedure for objecting to instructional error in trial courts"; it "does not govern preservation of instructional error" for purposes of appellate review. *State v. Vanornum*, 354 Or 614, 626, 629, 317 P3d 889 (2013). The appellate courts make their own rules of preservation. Nonetheless, parties should adhere to the requirements of ORCP 59 H to ensure access to appellate review of alleged instructional errors.

The Oregon appellate courts have interpreted and applied ORCP 59 H in many cases, both to prevent and to permit consideration of the merits of an assignment of error. *E.g.*, *State v. Toth*, 213 Or App 505, 509–10, 162 P3d 317 (2007), *abrogation recognized by State v. Gray*, 261 Or App 121, ___ P3d ___ (2014) (discussing various circumstances under ORCP 59 H). For present purposes, the point is not to explore the intricacies of that case law but rather to highlight its existence and to emphasize that an appellate lawyer can truly evaluate the merits of a claim of error regarding a jury instruction only if he or she has a solid understanding of ORCP 59 H and the case law related to it that may foreclose the claim of error on appeal altogether.

CAVEAT: Current case law interprets the prior version of the rule and does not account for the amendments that took effect in 2014. The appellate courts have not yet had the opportunity to interpret the new version.

§ 2.2-1(c)(3)(ii) Harmless Error

In addition to analyzing the preservation issue, see § 2.2-1(c)(3)(i), the lawyer must evaluate whether an error in a jury instruction will result in relief on appeal or rather will be deemed harmless error, in which case an appeal is not worthwhile. Put differently, a meritorious legal argument on a flawed jury instruction that is deemed harmless error is worth no more to the client than a legal argument that has no merit at all.

The general doctrine of harmless error in a civil case derives from the Oregon Constitution, Article VII (Amended), section 3, and ORS 19.415(1)–(2). Within that framework, as a general matter, a jury instruction that misinstructs the jury on the law will constitute reversible error, although it cannot be said that every incorrect jury instruction will result in reversal. *See Honeywell v. Sterling Furniture Co.*, 310 Or 206, 212, 797 P2d 1019 (1990) (considering effect of an incorrect punitive-damages instruction). Accordingly, as with preservation of error,

analyzing the legal merits of the jury-instruction issue is but one piece of a larger puzzle that must be assembled to analyze the likelihood of true success on the merits on appeal.

§ 2.2-1(c)(4) Evidence

OEC 103(1) provides the general standard of review for evidentiary error, which is not presumptively prejudicial. Just as in the realm of jury instructions, the broad universe of evidentiary issues that may arise contains essential components of standards of review, preservation of error, and harmless error that must be analyzed in order to evaluate the merits of an issue on appeal. Tracking one hypothetical case through these successive filters will serve to make the point.

> EXAMPLE: Assume that a party seeks to admit into evidence a five-page document that contains hearsay on page 2 that is central to the case; there is a general hearsay objection to admission of the document based on the hearsay statements on page 2; and the trial judge concludes that the statements are not hearsay and admits the entire document over the general hearsay objection. The Oregon Court of Appeals reviews the trial court's ruling on the merits of the hearsay issue as a question of law under the applicable standard of review. The court of appeals makes an independent determination that the statements are hearsay. The court of appeals also concludes that any error in admitting the crucial hearsay statements would require reversal and would not be harmless error.
>
> The court of appeals nonetheless may affirm the trial court because the objecting party failed to preserve the claim of error by making a general objection to the document rather than an objection limited to the objectionable hearsay statements. *Brown v. J.C. Penny Co.*, 297 Or 695, 704–05, 688 P2d 811 (1984). Moreover, even though that failure by the objecting party was not the basis for the trial court's decision to admit the evidence, the law also generally recognizes that for reasons of judicial economy and fairness, a trial judge's ruling may be affirmed if the ruling was right for the wrong reason under certain circumstances, including those present here. *See Booras v. Uyeda*, 295 Or 181, 189–90, 666 P2d 791 (1983).

§ 2.2-1(d) Setting Up an Issue for Review in the Supreme Court

Sometimes an appellate lawyer is reasonably certain that he or she will lose a case in the Oregon Court of Appeals based, for example, on a prior decision of the court of appeals that will be deemed dispositive. Indeed, assume that the trial judge in the case has ruled against the appellant on the issue for precisely that reason. The evaluation of the merits in the court of appeals is simple; the case will be lost.

Accordingly, the decision whether to appeal should turn on an analysis of the likelihood that the Oregon Supreme Court will grant review on the issue (or, much more remotely, whether the United States Supreme Court will grant *certiorari* after that on a question of federal law) and whether the client is prepared to bear the cost and endure the time until a decision is reached by a supreme court. *See* *Appeal and Review: The Basics* §§ 11.3–11.16 (OSB Legal Pubs 2010) (timelines).

> PRACTICE TIP: In cases like these, it is important to frame the issue in the circuit court or agency and in the court of appeals the way you want it to be framed ultimately in the supreme court. Create a factual record below as needed and as most advantageous in light of the legal arguments you intend to make, and make the appropriate legal arguments throughout.
>
> PRACTICE TIP: The process in the court of appeals gives a party time to explore the potential for *amicus* support in seeking review or on the merits in the supreme court. *See* § 3.4-3(a) to § 3.4-3(b)(3). Any *amicus* support should be unleashed in the supreme court and not wasted and revealed in the court of appeals.

§ 2.2-2 Client Considerations Relevant to All Appeals

§ 2.2-2(a) Introduction

The courtroom is quiet and nearly empty. The last juror has departed, and the judge has retired to chambers. But you and your client remain at counsel table, two sets of incredulous eyes fixed on the verdict form that bespeaks the catastrophic result received five minutes earlier.

Finally, the silence ends: "I want to appeal," your client says. "Should I?"

Before answering that question, a careful lawyer will evaluate, and then explain to the client, the considerations that bear on deciding whether to appeal a

trial-court judgment. The existence of reversible error is always an important consideration. But it is never the only consideration, and often it is not even the most important consideration.

This portion of the chapter, in § 2.2-2(b)(1) to § 2.2-2(b)(5), discusses the factors that should be considered when deciding whether to recommend appealing an adverse trial-court decision. This portion of the chapter focuses on civil litigation, but most of the factors apply to every type of case.

§ 2.2-2(b) Factors Relevant to Deciding Whether to Appeal

§ 2.2-2(b)(1) Prejudicial Error

When thinking about appealing, most lawyers and clients focus on whether there was error: Did the judge erroneously admit or exclude evidence? Was the jury given an incorrect instruction? Were there questions of fact that should have precluded summary judgment?

It is always essential to ask whether there was error. And often the answer to that question is dispositive. If there was no error, there is no basis for an appeal, and continuing the fight exposes both the client and the lawyer to the risk of fees and sanctions. *See* ORS 20.105(1) (authorizing an attorney-fee award against a party that asserts a ground for appeal or review that has no objectively reasonable basis); ORS 19.445 (authorizing a penalty in the amount of 10 percent of a judgment for money or personal property or the value thereof, when the judgment is affirmed on appeal, and there was no probable cause for taking the appeal); ORCP 17 C(2)–(3), D (authorizing sanctions against a lawyer and the client when the legal positions taken in a filing are not "warranted by existing law or by a nonfrivolous argument for the extension, modification or reversal of existing law or the establishment of new law," or when a document is "presented for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation"); ORAP 1.40(4) (adopting ORCP 17 as a rule of appellate procedure).

If there is a good-faith basis for asserting that the trial court erred, the next step is evaluating whether the error was so prejudicial that it might warrant reversal. The fact that the trial court committed error does not necessarily mean there is a good basis for appealing, because "error does not, of itself, require reversal." *Gonyea v. Gonyea*, 232 Or 367, 374, 375 P2d 808 (1962). "To warrant reversal the ruling of the trial court must be not only erroneous, but prejudicial."

Scanlon v. Hartman, 282 Or 505, 511, 579 P2d 851 (1978). "[A] litigant is entitled to a fair trial, but not a perfect one, for there are no perfect trials." *McDonough Power Equip., Inc. v. Greenwood*, 464 US 548, 553, 104 S Ct 845, 78 L Ed 2d 663 (1984) (quoting *Brown v. United States*, 411 US 223, 231–32, 93 S Ct 1565, 36 L Ed 2d 208 (1973)) (internal brackets and quotation marks omitted).

The prejudicial-error requirement is found in the Oregon Constitution, which provides that an appellate court must affirm if it is "of opinion, after consideration of all the matters thus submitted, that the judgment of the court appealed from was such as should have been rendered in the case, . . . notwithstanding any error committed during the trial." Or Const art VII (amended), § 3. ORS chapter 19, which governs civil appeals, provides that "[n]o judgment shall be reversed or modified except for error substantially affecting the rights of a party." ORS 19.415(2). ORS chapter 138, which applies to criminal appeals, provides that "[a]fter hearing the appeal, the court shall give judgment, without regard . . . to technical errors, defects or exceptions which do not affect the substantial rights of the parties." ORS 138.230. And the Oregon Evidence Code provides that "[e]vidential error is not presumed to be prejudicial. Error may not be predicated upon a ruling which admits or excludes evidence unless a substantial right of the party is affected[.]" OEC 103(1). Thus, mere error is not enough to justify an appeal; instead, the error must have been sufficiently prejudicial to warrant a reversal. If a case involves only harmless error, an appeal is destined for failure. For further discussion of harmless error and prejudicial error, see *Appeal and Review: The Basics* § 5.24 to § 5.30 (OSB Legal Pubs 2010).

§ 2.2-2(b)(2) Preservation

If there was prejudicial error, the next question is whether the error was preserved. Answering this question involves a two-step inquiry: Was the error (1) raised in the trial court, and (2) put on the record?

As a general rule, preservation is required, and "[n]o matter claimed as error will be considered on appeal unless the claim of error was preserved in the lower court." ORAP 5.45(1). The preservation requirement is subject to a narrow exception for "an error of law apparent on the record." ORAP 5.45(1); *see Ailes v. Portland Meadows, Inc.*, 312 Or 376, 381–82, 823 P2d 956 (1991) (discussing the plain-error doctrine). But Oregon's appellate courts rarely invoke the plain-error

doctrine to reach unpreserved error, especially in civil cases, so as a practical matter, an unpreserved error is little better than no error at all.

Furthermore, the preservation must appear on the record. ORAP 5.45(4) (appellant's brief must demonstrate, with citations to the record, that the question or issue presented on appeal was raised and preserved in the lower court).

§ 2.2-2(b)(3) Scope of Appellate Review

If there is potentially prejudicial error that was properly preserved, the next step is considering the scope of appellate review, including identifying the applicable standard of review the appellate court will apply. Many litigants and even some lawyers do not understand that appeals are rarely a second chance, or "do over," in which the litigants begin anew before a new tribunal that is free to resolve the case without regard for what happened in the lower court.

§ 2.2-2(b)(3)(i) The Record on Appeal

The first fundamental limitation on the scope of appellate review is that the appellate court will consider only materials that became part of the trial-court record. ORAP 3.05(1) ("In any appeal from a trial court, the trial court record on appeal shall consist of the trial court file, exhibits, and as much of the record of oral proceedings as has been designated in the notice or notices of appeal filed by the parties."). The rules and statutes governing Oregon appeals do not provide for supplementing the record on appeal with anything that was not part of the record in the trial court. *But see* ORS 19.365(4) (a party or the court may move for an order to correct or supplement the record when it appears "that the record on appeal is erroneous or that the record does not contain material that should have been part of the trial court file, and the erroneous or incomplete record substantially affects the merits of the appeal"). Thus, on appeal there will be no opportunity to improve on the factual record presented in the trial court; the client who assumes an appeal will provide an opportunity to fortify evidentiary weaknesses must be educated about the nature of appellate review and the static condition of the record.

§ 2.2-2(b)(3)(ii) The Standard of Review

Next it is necessary to identify the standard of review the appellate court will apply to each issue. Some standards of review are exceedingly deferential to the trial judge and the finder of fact. Others are not deferential at all. This means that correctly identifying the applicable standard of review is crucial to evaluating

whether to pursue an appeal. *See generally* *Appeal and Review: The Basics* § 5.6–§ 5.9 (OSB Legal Pubs 2010); *cf. Standards of Review* (United States Court of Appeals for the Ninth Circuit, May 2012), *available at* www.ca9.uscourts.gov/content/view.php?pk_id=0000000368 (standards of review in federal court).

The most deferential standard of review applies to factual findings. The Oregon Constitution severely restricts the scope of an appellate court's review of factual findings, providing, "In actions at law . . . no fact tried by a jury shall be otherwise re-examined in any court of this state, unless the court can affirmatively say there is no evidence to support the verdict." Or Const Art VII (amended), § 3. *See also* ORS 19.415(1) ("Except as provided in this section, upon an appeal in an action or proceeding, without regard to whether the action or proceeding was triable to the court or a jury, the scope of review shall be as provided in section 3, Article VII (Amended) of the Oregon Constitution."). This constitutional provision means that findings of fact are "binding on appeal unless there was no evidence to support them." *Campbell v. Karb*, 303 Or 592, 596, 740 P2d 750 (1987). In reviewing whether there is no evidence to support a finding of fact, the appellate court views the evidence in the light most favorable to the prevailing party, including giving the prevailing party the benefit of every reasonable inference that may be drawn from the evidence. *Hendrix v. McKee*, 281 Or 123, 125–26, 575 P2d 134 (1978). This exceedingly deferential standard of review makes findings of fact nearly invulnerable to challenge on appeal.

There is a narrow class of cases in which the no-evidence standard of review does not apply to factual findings. "Upon an appeal from a judgment in a proceeding for the termination of parental rights, the Court of Appeals shall try the cause anew upon the record." ORS 19.415(3)(a). In appeals in other types of equitable actions, the court of appeals may, in its sole discretion, "try the cause anew upon the record or make one or more factual findings anew upon the record." ORS 19.415(3)(b). But an appellant should not rely on the court of appeals exercising its discretion to review an equitable action anew. "The Court of Appeals will exercise its discretion to try the cause anew on the record or to make one or more factual findings anew on the record only in exceptional cases," and requests for such review "are disfavored." ORAP 5.40(8)(c). Thus, in appeals involving equitable actions, the court of appeals will usually apply the no-evidence standard to factual issues (except appeals involving the termination of parental rights).

The abuse-of-discretion standard of review is nearly as deferential to the lower court as the standard applicable to factual findings. The abuse-of-discretion standard of review applies to a broad range of discretionary decisions by trial judges. *See, e.g.*, *Wagar v. Prudential Ins. Co. of Am.*, 276 Or 827, 832, 556 P2d 658 (1976) (denial of motion to set aside a default judgment); *Knox v. Nooth*, 244 Or App 57, 64, 260 P3d 562 (2011) (decisions on motions to allow counsel to withdraw or to appoint substitute counsel); *Ballard v. City of Albany*, 221 Or App 630, 638, 191 P3d 679 (2008) (denial of motion to amend a complaint). A trial court abuses its discretion if it exercises it in a manner that is "unjustified by, and clearly against, reason and evidence." *Quillen v. Roseburg Forest Products, Inc.*, 159 Or App 6, 10, 976 P2d 91 (1999). The abuse-of-discretion standard of review "generally is very deferential to a trial court's exercise of judgment." *State v. Hewitt*, 162 Or App 47, 52, 985 P2d 884 (1999), *rev withdrawn*, 330 Or 567 (2000). Consequently, when the abuse-of-discretion standard of review applies, the appellant faces a difficult challenge in persuading the appellate court to reverse, because the abuse-of-discretion standard tests only whether the trial court made a decision within the permissible range of choices, and not whether the particular choice made is the one the appellate court would have made. *Carter v. Moberly*, 263 Or 193, 200–01, 501 P2d 1276 (1972).

An appellant has much better odds for success if the appeal involves an issue that is reviewed for errors of law. Under the errors-of-law standard of review, the trial court's decisions receive no deference. *Gragg v. Hutchinson*, 217 Or App 342, 347, 176 P3d 407 (2007), *rev den*, 344 Or 401 (2008). Therefore, when deciding whether to appeal, counsel should focus on issues that will be reviewed for errors of law.

§ 2.2-2(b)(4) Time and Expense

Appeals are often lengthy and expensive. Therefore, time and expense should be considered when deciding whether to appeal.

§ 2.2-2(b)(4)(i) The Length of the Appellate Process

A case often takes two years to proceed from the notice of appeal to a decision in the court of appeals. Sometimes it takes even longer. And if the case ultimately advances to the Oregon Supreme Court, the appeal process can easily last more than three years from start to finish.

The lengthiness of the appeal process has several ramifications. First, after already litigating for years in the trial court, some clients will not want to embark on a new phase of litigation that probably will take longer than the trial phase. Second, if appellate relief results in remand for a new trial, the passage of time can impair some cases, such as through the loss of witnesses and other evidence. Counsel should consider whether a trial some four or five years hence will present a significantly different, and more difficult, challenge.

§ 2.2-2(b)(4)(ii) The Cost of Appealing

Generalizing about the cost of an appeal is impossible, because the cost differs greatly from case to case. Some appeals cost only a few thousand dollars, while others cost hundreds of thousands of dollars.

Although it is not possible to generalize in the abstract about the cost of an appeal, it is possible to identify all of the factors that should be considered when projecting the likely cost of an appeal.

The fee to be paid to the appellant's counsel is an important and significant factor in estimating an appeal's cost. But it is only one of several factors. Other factors are:

Interest. If the appeal arises from a money judgment, the judgment will earn interest during the duration of the appeal. In most cases, interest accrues at the statutory rate of nine percent per annum. ORS 82.010(2).

Superseding enforcement of the judgment. Commencing an appeal does not prevent enforcing a judgment. ORCP 72 A. Instead, an appellant who wants to prevent enforcement of the judgment might have to procure a bond or other security. The appellant will have to pay an annual premium for a supersedeas bond. *See* ORS 19.335–19.355.

Transcript preparation. If the appeal arises from a trial, there will be a significant cost associated with having the oral proceedings transcribed. The precise cost depends on the length of the oral proceedings, but the cost is often thousands of dollars.

Court costs. Costs, such as filing fees, are not a substantial component of the expense of an appeal, but are nonetheless an additional item to be considered. Beginning October 1, 2013, filing and first appearance fees are $373 (ORS

21.010(1); Or Laws 2013, ch 685, §§ 29, 38(1)), and there is a $100 prevailing party fee (ORS 20.190(1)(a)).

Opponent's attorney fees. If the case involves a statute or contractual provision providing for attorney fees to the respondent (*see Oregon Civil Litigation Manual* App 28A (Oregon CLE 2004 & Supp 2009), the risk that the respondent will be awarded attorney fees on appeal must be taken into account in estimating the downside cost of an appeal.

> EXAMPLE: Suppose the defendant wants to appeal a $100,000 money judgment in a case in which the respondent has the right to recover attorney fees if it prevails. An estimate of the cost of an unsuccessful appeal could look something like this:
>
> | | |
> |---|---|
> | Appellant's attorney fees: | $20,000 |
> | Interest on the judgment: | $18,000 |
> | Supersedeas bond: | $ 4,000 |
> | Transcript: | $ 5,000 |
> | Court costs: | $ 846 |
> | Respondent's attorney fees: | $20,000 |
> | Total: | $67,846 |
>
> Thus, in deciding whether to appeal that $100,000 judgment, the appellant must weigh whether the chances of success justify the downside risk of incurring an additional $67,846 in expenses if the appeal is unsuccessful.

§ 2.2-2(b)(5) Available Relief

It is important to consider what relief is available on appeal. Clients often fail to understand what can be achieved by winning the appeal.

Sometimes winning an appeal means winning the case, such as when the appellate court holds that the trial court should have directed a verdict in favor of the appellant or granted the appellant's motion for summary judgment. In those situations, an appeal can have tremendous value because winning the appeal also means a victory in the litigation as a whole.

Often, however, the relief available to the appellant is less satisfying. A common example is when the appellant challenges an adverse result at trial. Usually (although not always), the most the appellant can hope for in that circumstance is a reversal and a remand for new trial. Having tried the case once and lost, counsel should dispassionately assess whether the prospect of another long, expensive trial three or four years in the future, possibly followed by another appeal, justifies an appeal.

§ 2.2-2(c) Conclusion

Deciding whether to appeal always depends on the unique facts and circumstances of the particular case. But counsel who make a recommendation only after considering the factors discussed in this chapter will enhance the likelihood of making a recommendation that is consistent with the client's interests.

§ 2.2-3 Client Considerations Relevant to Domestic Relations Appeals

§ 2.2-3(a) Introduction

Domestic relations appeals involve considerations that are not found in most other civil appeals. To mention just a few, the parties may be litigating things they value far more than money (such as their children), they commonly view their financial future to be at risk (for example, by way of paying too much or receiving too little spousal support), they frequently perceive the trial judge to have acted unfairly (for example, thinking that the cheating ex-spouse lives in relative luxury), they may be fighting against time (their children are growing up and changing while the appeal is in process), and they likely are emotionally tied to the outcome (most of us get upset by perceived unfairness, risk to our children, or financial strain). Notwithstanding these considerations, the system ultimately treats these appeals much like all other appeals. The appellant will need to demonstrate error, the error will need to have been preserved, a standard of review will govern review of the error, the appeal will be expensive and take a long time, and the relief obtained, even with a successful appeal, may not be the relief the appellant feels is appropriate. *See* § 2.2-3(b)(1) to § 2.2-3(b)(6). *See also* § 2.2-2(b)(1) to § 2.2-2(b)(5). An attorney who advises a client to file a domestic relations appeal should not make that recommendation incautiously.

§ 2.2-3(b) Factors Relevant to Deciding Whether to Appeal in a Domestic Relations Case

§ 2.2-3(b)(1) Available Relief

The first concern in some domestic relations appeals is that the thing the appellant wants may be gone by the time the time the appeal has ended. An appellant who is denied custody of his or her 15-year-old child may achieve a reversal that takes two-and-a-half years; by that time, the child will be nearly 18 (at which point custody becomes moot), or the child may have decided that he or she prefers to live with the other parent (at which point custody may effectively be moot). Another appellant may be ordered to pay an excessive amount of spousal support but, by the time the appeal ends, the support will have already been paid and cannot be recovered. Or perhaps the appellant is required to give up his or her rights to a piece of real property. Even if the court of appeals eventually rules in the appellant's favor, the ex-spouse may sell, lease, or damage the property before the appeal's termination. In these and many other situations, unless the appellant somehow stays the judgment of the trial court, there may be no point to an appeal.

Two statutes principally control stays in a domestic relations appeal. The first of these—ORS 19.335—gives immediate and potentially full relief. Thus, for example, ORS 19.335(1) allows the appellant to postpone the paying of a money judgment by posting a "supersedeas undertaking" with the trial court. ORS 19.335(5) allows an appellant who has been ordered to transfer property to his or her ex-spouse to "execute[] the [transferring] instrument and deposit[] the instrument with the trial court administrator." And ORS 19.335(2) allows an appellant to keep his or her ex-spouse from taking possession of real property by posting a supersedeas undertaking that covers "the value of the use and occupation of the property" for the duration of the appeal.

But ORS 19.335 does not cover all things that an appellant might want to stay. An appellant who wishes to stop a change of custody, who wants to prevent an ex-spouse from selling assets to which the ex-spouse already has title, or who hopes to prevent an ex-spouse from moving out of state with the children will need to seek help under ORS 19.350. This second statute authorizes a discretionary stay. Whether the appellant will obtain relief depends on (1) the likelihood of prevailing on appeal, (2) whether the appeal is taken in good faith and not for the purpose of delay, (3) whether there is support in fact or law for the appeal, and (4) the harm

that will be caused by the grant or denial of a stay. ORS 19.350(3). The trial court will have discretion to grant, deny, partially grant, or conditionally grant the stay request. *See also* ORS 19.355 (stays on appeal in domestic relations cases). *See Family Law* § 20.3-6(b), § 20.3-7 (OSB Legal Pubs 2013).

Additional statutes apply to support, custody, and parenting time. Thus, under ORS 107.105(4), a party to an appeal may seek "a supplemental judgment for any relief provided for in ORS 107.095" (i.e., any relief that the party might have obtained before the divorce trial), with the judgment to be in effect "only during the pendency of the appeal." Or, as to things that require "a change of circumstances before the court may modify a judgment," ORS 19.275(1) allows a party to seek a modification notwithstanding the pendency of the appeal. *See Family Law* § 20.3-8.

Trial court rulings on any of these matters may themselves be appealed. ORS 19.360(1) gives a party 14 days to ask the court of appeals to review a decision on a stay request. ORS 19.275(3) and ORS 107.105(4) affect supplemental judgments that may be independently appealed or combined with the appeal already in effect.

In situations involving custody and parenting time, timing creates an additional problem. The problem is this: (1) the trial court may be disinclined to stay the thing that that court ordered only days earlier; (2) the court of appeals—perhaps the appellant's best chance at a stay—does not know the facts of the case; (3) a factual presentation by way of declarations and affidavits is likely to be countered by equally persuasive declarations and affidavits from the opposing side; (4) the court of appeals, faced with conflicting and equally persuasive declarations, may be unwilling to disturb the status quo; (5) the most compelling factual presentation may require that the appellant produce a trial transcript; (6) because transcript preparation can take many weeks, the child or children may adjust to the trial court's custody order while preparation is in process; and (7) the court of appeals, upon learning of the adjustment, may decide that an otherwise meritorious request should be denied. Thus, for example, in *In re Marriage of Sconce & Sweet*, 249 Or App 152, 274 P3d 303, *rev den*, 352 Or 341 (2012), a case that ultimately resulted in custody being restored to the mother, the court of appeals denied the mother's stay request in part because "the child appear[ed] to have adjusted well" to the custody change that the mother was appealing. *Sconce*, A147616 (Or Ct App March 16, 2011) (Order Denying Motion for Stay).

§ 2.2-3(b)(2) Prejudicial Error

Whether error is prejudicial is rarely a factor in a domestic relations appeal. If support was set too high, custody was wrongly assigned to the other parent, or the property division was inequitable, prejudice is obvious.

Occasionally, a domestic relations appeal concerns error akin to the error found in other appeals: for example, the trial court has ordered a party's default, sustained an evidentiary objection, or denied a party a new trial. Prejudice, or lack of prejudice, will still be a concern in such appeals.

§ 2.2-3(b)(3) Preservation

As with other appellants, a domestic relations appellant needs to preserve error. An appellant who wishes to pay less support should have first made that request in the trial court; a party who believes that he or she rebutted the presumption of equal contribution should not make that argument, for the first time, in an appeal brief.

As with all appeals, whether an issue has been preserved is not always clear. Sometimes the problem is created by the trial court's opinion letter.

> EXAMPLE: The appellant's trial memorandum requests a 50 percent share of the property and proposes a division that purports to be even. The trial court's opinion letter declares that a 50-50 division is proper but distributes the property differently from the proposal in the trial memorandum. The court's division appears to make an arithmetic error that effects a 45-55 division. Has the error been preserved? On the one hand, the appellant did indeed ask for half of the property, and the court was specifically told what "half" consisted of. On the other hand, the court made an error that no party had previously addressed, and it could have been corrected with nothing more than a three-line letter to the court. The better practice, of course, is for the appellant to write the three-line letter. But if that was not done, and the appellant now wants to remedy the problem with an appeal, the appellant may find that he or she has a problem with preservation.

§ 2.2-3(b)(4) Standard of Review

The standard of review may be the most important factor in deciding whether to appeal. In the past, domestic relations appeals received *de novo* review.

But the 2009 amendments to ORS 19.415 made such review discretionary. Or Laws 2009, ch 231, § 2. The court has made plain that, except in "exceptional cases," review will not be *de novo*. ORAP 5.40(8)(c); *see also, e.g., In re Marriage of Gay*, 250 Or App 31, 32, 279 P3d 265 (2012). Depending on the issue involved, review will be for any evidence, for an abuse of discretion, or for legal error. *See Family Law* § 20.2-3(a) (OSB Legal Pubs 2013); *Appeal and Review: The Basics* §§ 4.65–4.68 (OSB Legal Pubs 2010).

The first of these—review for any evidence—governs factual findings. Any factual statement that the trial court makes orally, in an opinion letter, or in the judgment should be presumed to be binding. *See In re Marriage of Bock*, 249 Or App 241, 242, 275 P3d 1006 (2012). This is true of both explicit and implicit findings. *In re Marriage of Morton*, 252 Or App 525, 527, 287 P3d 1227 (2012). A problem that sometimes arises is that the court will state a fact, but not a thing that is arguably implied from the fact. If, for example, there is evidence that the husband suffers from a temporary medical condition, and the parties dispute whether it will take two years or four years before he can return to work, what has the court found when it awards the husband three years of transitional spousal support? Or perhaps the court will find things that arguably should be treated as legal conclusions. Is it a finding when the trial court states that the mother is the better parent, that the child will do better in her care, and that it is best that there be custody with the mother and limited parenting time with the father? Is it a finding when the trial court declares that the wife needs $3,000 monthly and that the husband can readily pay that amount? Such statements, if treated by the court of appeals as findings, could easily determine the outcome of an appeal.

The second standard of review—review for an abuse of discretion—is applied to such things as decisions concerning custody and parenting time, the amount and duration of spousal support, and the determination of what property division is "just and proper." *See, e.g., Nice v. Townley*, 248 Or App 616, 620–21, 274 P3d 227 (2012) (custody); *In re Marriage of Bailey & Bailey*, 248 Or App 271, 275, 273 P3d 263 (2012) (spousal support); *In re Marriage of Githens*, 227 Or App 73, 90, 204 P3d 835, *rev den*, 347 Or 42 (2009) (property division). Under this standard of review, the court will reverse if the trial court's exercise of its discretion "misapplied applicable statutory and equitable considerations," *Githens*, 227 Or App at 90, or was not "within the range of legally permissible outcomes," *In re Marriage of Hanscam*, 247 Or App 207, 218, 268 P3d 715 (2011) (quoting

Olson and Olson, 218 Or App 1, 16, 178 P3d 272 (2008)). When the court reverses, it may itself set forth the disposition that should have been made (*see, e.g.*, *Bailey*, 248 Or App at 277), or it may order a remand for reconsideration (*see, e.g.*, *Nice*, 248 Or App at 623).

The third standard of review—review for legal error—is applied to such things as the decision that there has been a substantial change of circumstances since the previous hearing or that a party rebutted the presumption of equal contribution. *See, e.g.*, *In re Marriage of Sconce & Sweet*, 249 Or App 152, 159–60, 274 P3d 303, *rev den*, 352 Or 341 (2012) (change of circumstances); *In re Marriage of Wolfe*, 248 Or App 582, 595–96, 273 P3d 915, *rev den*, 352 Or 266 (2012) (rebuttal of the presumption). It is the easiest of the three standards to meet.

Of course, none of this prevents an appellant from requesting that the court review some aspect of the case *de novo*. Notwithstanding that such review will rarely be granted, in cases in which the trial court's findings are incomplete or unsupported, it may be achievable. *See, e.g.*, *In re Marriage of Fay*, 251 Or App 430, 439, 283 P3d 945 (2012) (*de novo* review granted when the trial court's findings were incomplete); *Hanscam*, 247 Or App at 218–19 (*de novo* review granted because the trial court's finding did not comport with the evidence).

§ 2.2-3(b)(5) The Cost of Appealing

Any appellant considering a domestic relations appeal should factor in the very real possibility of losing the appeal and then being required to pay the opposing party's attorney fees. Attorney fee requests are reviewed both under the ORS 20.075 factors and by reference to the dictates of equity. The court of appeals may "'evaluate the financial resources of the parties, the property division made by the court's judgment, any orders of support, and the like in determining whether it would be equitable to assign to one party or the other the obligation to pay attorney fees.'" *In re Marriage of Ornelas*, 218 Or App 723, 726, 181 P3d 771 (2008) (quoting *In re Marriage of Niman*, 206 Or App 259, 271, 136 P3d 105 (2006)). In general, a wealthy appellant who loses an appeal stands a greater chance of having to pay fees than does an impoverished one. But both parties should view themselves to be at risk.

§ 2.2-3(b)(6) Other Factors

Parties to a domestic relations appeal frequently have children. It goes without saying that litigation between warring parents is never good for children,

and this is so even with respect to adult children. In addition to litigation's impact on children's emotional health, the dollars spent to fund an appeal are dollars that could otherwise have been spent on the children.

§ 2.2-3(c) Conclusion

No appeal should be undertaken lightly. Appeals are expensive, they commonly take longer than two years, and there is a serious risk that the appeal will be lost or, when successful, yield an outcome that is other than what the appellant sought. In these regards, domestic relations appeals are no different from any others.

On the other hand, domestic relations appeals frequently involve clients who have lost their children, whose financial circumstances are dire, and who perceive themselves as having been treated unfairly in the extreme. For some of these clients, an appeal may feel like their only way out of an untenable situation.

In the end, the decision to appeal a domestic relations judgment may be as difficult as any that a client will make.

§ 2.2-4 Client Considerations Relevant to Criminal and Postconviction Appeals

§ 2.2-4(a) Explaining the Appellate Process to the Client

Not surprisingly, clients often have a poor understanding of how the appellate process works. Also, criminal clients may be experiencing the harsh transition to living in prison. They may be anxious, desperate, and scared. Explaining the process clearly at the outset is important so that there are no misunderstandings down the road, and so that the client can be assured that this stage of his or her legal case is being handled professionally.

An appellant should understand numerous things about the process, regardless of whether the attorney is retained or court appointed. In particular, the attorney should explain to the client what comprises the record on appeal, what issues can be raised on appeal (with explanations of legal issues versus factual issues and preservation), potential negative consequences of an appeal, other ways a client may attack his or her conviction or sentence, and the timelines involved in an appeal.

§ 2.2-4(b) Introductory Letter in a Criminal Appeal

Much of the information in this section is taken from letters used by the Appellate Division of the Office of Public Defense Services. In the first or second communication with the client, the attorney should explain the points set forth in this section and should feel free to elaborate on specific points as needed:

(1) The record on appeal is limited to the pleadings and evidence submitted to the trial court, and no new evidence can be submitted to the appellate court. The appeal will not involve an evidentiary hearing.

(2) Appeals are limited to raising legal issues, such as whether the trial judge made an incorrect ruling of law. Examples of such errors include the decision to admit or exclude certain evidence, to give certain jury instructions, or to impose a certain sentence.

(3) Issues of fact are not appealable. For example, questions about whether a particular witness lied or told the truth or whether certain evidence was convincing are questions of fact that were determined at the trial level.

(4) Generally, a claim of legal error must be preserved to be considered by an appellate court. This means that if the trial attorney did not object to the claimed error, it might not be possible to raise that error on appeal.

(5) In the case of a guilty or no-contest plea, the client may raise challenges only to his or her sentence and, even then, only when the client can make a colorable claim that the sentence "[e]xceeds the maximum allowable by law" or "[i]s unconstitutionally cruel and unusual." ORS 138.050(1).

(6) If the appeal is successful, the court of appeals might order the case to be remanded to the trial court for further proceedings. Those proceedings may involve a new trial or a new sentencing hearing. Resentencing could result in a harsher sentence than originally imposed. *See State v. Partain*, 349 Or 10, 26, 239 P3d 232 (2010). This can happen only if the sentencing court has new information that was unknown at the time of the original sentencing. The court may not impose a harsher sentence simply to punish the defendant for appealing.

(7) An appeal is called a "direct appeal." Claims of inadequate and ineffective assistance of counsel may not be raised on direct appeal, but those types of claims can be raised in a postconviction relief action. However, the client must

wait until the direct appeal process concludes before seeking postconviction relief. ORS 138.540(1).

See generally Criminal Law ch 28 (OSB Legal Pubs 2013).

§ 2.2-4(c) Introductory Letter in a Postconviction Relief Appeal

For the most part, the issues present in direct appeals are also present in postconviction appeals, with the exception that a guilty or no-contest plea does not procedurally constrain the postconviction appeal. The attorney should explain the limitations in the record, the requirement of preservation, and the fact that a successful appeal could possibly result in a harsher sentence. *See* § 2.2-4(b). The attorney should also alert the client to the fact that when the postconviction case has concluded, the client will have the possibility of challenging his or her conviction and sentence in federal court through a suit for habeas corpus relief. *See* 28 USC § 2254; *see generally* 3 *Criminal Law* chs 30–31 (OSB Legal Pubs 2013).

§ 2.2-4(d) Timeline

Perhaps the most important part of the early conversation with a client will be explaining the timelines. The appellate process, from start to finish, will last approximately two years. A client should understand how long it may be before the opening brief will be filed and how long it will then be before the state files a response brief. Generally, the court of appeals will give each side at least seven months (210 days) to file their briefs. The filing of a reply brief or a *pro se* supplemental brief can add to the length of the appeal.

Clients will occasionally ask the attorney to try to find a way to expedite their appeal. With limited exceptions (such as review of pretrial rulings in criminal cases under ORAP 10.25 and ORAP 12.07) the Oregon Rules of Appellate Procedure do not contain any provision for expediting a direct appeal or a postconviction relief appeal. Theoretically, an appellant could file a motion for expedited treatment of an appeal, but such motions are problematic for two primary reasons. First, such a motion could result in a tolling of the briefing schedule. *See* ORAP 7.30. In other words, the court could suspend the pending brief due dates while it addresses the motion. It could take several weeks or months for the court to rule on such a motion. Thus, the motion may actually have the effect of delaying the appeal.

Second, the client's imprisonment is not a special circumstance that would warrant expedited treatment. Indeed, most clients in criminal and postconviction appeals are in prison, and most could argue that a favorable outcome could affect their imprisonment.

The attorney can assure the client that the Department of Justice and the court of appeals handle cases in a fair and orderly manner and that the client's case is not being purposefully delayed. The client should also be assured that, during the direct appeal, the timelines for seeking postconviction relief and federal habeas corpus relief are not running.

§ 2.2-4(e) Explaining the Costs Associated with an Appeal—Indigent vs. Retained Clients

Most clients pursuing direct or postconviction relief appeals are indigent, and thus, for those clients, the decision whether to appeal is often easier to make. A retained client, however, will want to know as quickly as possible whether an appeal is worth the time and money. Before such a question can be answered, the attorney will usually need to review the transcript and the court file. Thus, retained clients will likely have a significant out-of-pocket cost before they will know whether the appeal is worth pursuing. Although it may be possible to assess an appeal based only on a review of the trial court file and a conversation with the trial attorney, an appellate attorney should be wary of relying solely on a trial attorney's assessment. The trial attorney may have missed an error that might be evident only from a review of the transcript.

The state is not awarded costs or prevailing party fees in direct appeals. In postconviction appeals, however, the court typically awards a $100 prevailing party fee and reimbursement for the opposing party's costs of filing the brief. ORS 20.190(1)(a); ORAP 13.05(6). The costs are nominal, and generally fall between $25 and $50.

§ 2.2-4(f) Reasons Not to Pursue an Appeal

In light of the length of the appellate process, the attorney should identify the client's goal early. If the goal is to overturn the conviction, then the time spent on appeal may not matter to the client. If, however, the client is seeking to challenge an aspect of the sentence, such as a condition of probation or the denial of sentence-reduction credits, then the client's issue may become moot in the time

it takes the appeal to run its course. In such cases, an appeal may be a waste of time and money.

Sometimes, a direct appeal client will believe that his or her best hope lies in a claim for postconviction relief. If the client has no likely meritorious issues to raise on direct appeal, it may be prudent to recommend that the client dismiss the direct appeal and proceed straight to postconviction relief. The client should be warned, however, that dismissing a direct appeal means the client will almost certainly be procedurally barred from raising claims of trial-court error in future proceedings. A client may still challenge clerical or mathematical errors in a judgment or erroneous terms in a judgment under ORS 138.083(1)(a). The client may not, however, raise claims of trial-court error in a suit for postconviction relief (subject to "a few narrowly drawn exceptions"). *See Palmer v. State*, 318 Or 352, 358, 867 P2d 1368 (1994); *Lerch v. Cupp*, 9 Or App 508, 514–15, 497 P2d 379 (1972). The client also may not raise claims of trial-court error in a federal habeas corpus proceeding without first exhausting his or her remedies in state court (unless circumstances render the state-court process ineffective to protect the client's rights). 28 USC § 2254(b)(1). *See 3 Criminal Law* chs 29–30 (OSB Legal Pubs 2013). Still, if the client's sentence is short and if the postconviction claims have a sound chance of being meritorious, it may be a worthwhile strategy to dismiss the direct appeal.

§ 2.2-4(g) Assessing the Case and Advising the Client—Discussing Viable and Nonviable Issues with the Client

Once the client has decided to pursue the appeal, the next question will be what issues to raise in the opening brief. During review of a case, the appellate attorney might create a list of potential issues to raise on appeal. Upon further review and research, the attorney may reject some of those issues for a variety of reasons. Often, the client has his or her own ideas about what issues should be included in a brief.

Once review is completed, the attorney should discuss the issues with the client. It is helpful to discuss not only the issues that may be meritorious but also the issues that the attorney has rejected, particularly if the attorney has rejected an issue about which the client feels strongly. One suggestion is to write the client a detailed letter that first reminds the client about the limitations facing appellants, such as preservation, harmless error, and standards of review (*see* § 2.2-2(b)(1) to

§ 2.2-2(b)(3)(ii)), and then discusses the strengths and weaknesses of the various issues.

Most clients are aware that their attorney may not raise all of the issues the client would like to see in a brief. This can nonetheless be a source of strife, particularly when the client does not understand why the attorney has chosen not to raise a particular issue. By discussing the issues with a client, the attorney may find that the client appreciates the information and that the discussion reassures the client that the attorney is not acting out of some personal prejudice against the client.

Also, preparing a detailed letter to a client will demonstrate to the client that the attorney has truly taken the time to review the case, which is a concern of many indigent clients. As a final part of the letter, it is helpful to remind the client of the option under ORAP 5.92 to submit a five-page *pro se* supplemental brief.

> NOTE: This is available only to clients represented by court-appointed counsel. ORAP 5.92(1).

§ 2.2-4(h) Appeals with No Nonfrivolous Issues

Occasionally, an appellate attorney will conclude that there are no nonfrivolous issues to raise on appeal. Ethical considerations prohibit an attorney from making an argument "unless there is a basis in law and fact for doing so that is not frivolous." Oregon RPC 3.1. Upon determining there are no nonfrivolous issues, the attorney should, as soon as practical, discuss that conclusion with the client.

If the attorney is court-appointed, the attorney must confer with the client and with trial counsel to make sure the attorney has not overlooked an issue. ORAP 5.90(1); *see generally State v. Balfour*, 311 Or 434, 451–53, 814 P2d 1069 (1991). As a part of that discussion, the attorney should inform the client that he or she may consider dismissing their appeal. The benefit of dismissing a criminal appeal is that the client can proceed without delay to postconviction relief. The benefit of dismissing a postconviction relief appeal is that the client will avoid having to pay the respondent's prevailing-party fee and costs, which, although nominal, may be significant to an incarcerated client. *See* § 2.2-4(e).

> NOTE: Because the failure to raise a claim in state court will bar a client from raising the issue in federal court, great care should be taken not

to talk a client into dismissing a case if the client believes there are viable assignments of error to raise. Such clients should be supported in their decision to submit a Section B *Balfour* brief, and the attorney should provide assistance by sending the client a fill-in-the-blank form brief and by offering to handle the copying, filing, and service of a *Balfour* brief.

§ 2.2-4(i) Conclusion

Regardless of whether an attorney is court-appointed or retained, the attorney's relationship with the client will be well-served by an early explanation of the process and by a candid discussion of the issues.

§ 2.3 WHETHER AND WHEN TO CROSS-APPEAL

Whether and when to cross-appeal involve the very same issues and considerations discussed in *Appeal and Review: The Basics* § 3.7 to § 3.21 (OSB Legal Pubs 2010) and § 2.2-1(a) to § 2.2-4(i) of this chapter—a cross-appellant must consider carefully whether to cross-appeal, what issues to raise, whether those issues are preserved, what standards of review apply to those issues, whether an error that exists requires reversal, and the available forms of relief. This section builds on those discussions by providing general guidance in assessing whether and when to cross-appeal.

§ 2.3-1 Whether to Cross-Appeal

In addition to the considerations relevant to the decision of whether and what to appeal, cross-appeals involve a further issue: Under what circumstances is a cross-appeal necessary? The answer to that question is fairly straightforward—a cross-appeal is necessary whenever a respondent wants to change the relief provided by the trial court's judgment, should the judgment be affirmed. *See Samuel v. King*, 186 Or App 684, 690, 64 P3d 1206, *rev den*, 335 Or 443 (2003) (cross-appeal is necessary when the party's argument, if successful, "would yield relief different from that afforded under the trial court's judgment"). Nevertheless, the distinctions between a cross-appeal, a cross-assignment of error, and the right-for-the-wrong-reason principle are often misunderstood. *See Artman v. Ray*, 263 Or 529, 533–34, 501 P2d 63, *decision clarified on denial of reh'g*, 263 Or 529, 502 P2d 1376 (1972) (distinguishing proper use of cross-assignments of error and cross-appeals); *see also* ORAP 5.57(2) (cross-assignment of error is appropriate "[i]f, by challenging the trial court ruling, the respondent does not seek to reverse

or modify the judgment on appeal; and . . . [i]f the relief sought by the appellant were to be granted, respondent would desire reversal or modification of an intermediate ruling of the trial court"); *Outdoor Media Dimensions Inc. v. State*, 331 Or 634, 659–60, 20 P3d 180 (2001) (discussing the right-for-the-wrong-reason principle). More importantly, the failure to recognize circumstances that require a cross-appeal can be fatal to the right to review a trial-court error when the court's judgment is affirmed on appeal.

> Prudent practitioners are well-advised, if there is any doubt as to whether a matter should be cross-appealed, to err on the side of caution. The only additional cost of cross-appealing is a filing fee; conversely, erroneously cross-assigning error rather than filing a cross-appeal is fatally, jurisdictionally, preclusive—and may result in a malpractice judgment.

McCollum v. Kmart Corp., 228 Or App 101, 122 n 15, 207 P3d 1200 (2009), *vac'd on other grounds*, 347 Or 707, 226 P3d 703 (2010). *See Capital Credit & Collection Serv., Inc. v. Armani*, 227 Or App 574, 586, 206 P3d 1114, *rev den*, 346 Or 589 (2009); *In re Marriage of Austin*, 191 Or App 307, 322 n 3, 82 P3d 170 (2003); *Austin*, 191 Or App at 322–23 n 1 (Haselton, P.J., concurring in part and dissenting in part); *Samuel*, 186 Or App at 690–91. *See also* *Appeal and Review: The Basics* § 6.3, § 6.46 (OSB Legal Pubs 2010).

§ 2.3-2 When to Cross-Appeal

A party, other than the appellant, who has appeared in the action may file and serve a notice of appeal within 10 days after the time for filing the notice of appeal has run. ORS 19.255(3). Any party, other than an appellant or respondent, who becomes an adverse party to a cross-appeal may cross-appeal against any party to the appeal by a written statement in the brief. ORS 19.255(3). *See also* ORS 656.298(4) ("Within 10 days after service of a petition for judicial review on a party [to the claim] . . . , such party may also request judicial review in the same manner."). The timely and proper filing and service of a notice of cross-appeal is jurisdictional. *See* ORS 19.270(2) (filing and service of a notice of appeal on the adverse parties "within the time limits prescribed by ORS 19.255" is a jurisdictional requirement).

§ 2.4 IDENTIFYING ISSUES FOR APPEAL

Cases arrive at the court of appeals from a variety of places (both courts and agencies) and in a variety of procedural postures. Those factors (the origin and posture of the case) are largely determinative of what issues might be viable on appeal. In § 2.4-1 to § 2.4-2(c), this chapter discusses how to identify potentially meritorious issues for appeal in cases arising from both courts and agencies.

§ 2.4-1 Appeals from Court Decisions

To identify potential issues for an appeal, a lawyer should start by answering two questions: (1) how did the case end? and (2) how did the case get to that point? The objective in most appeals is to obtain a reversal or modification of a judgment (or sometimes an order) that is adverse to the appellant. To accomplish that objective, an appellant's lawyer needs to know (1) what that judgment is, and how it will operate on the appellant; and (2) what legal rulings and factual findings (if any) led to that judgment. Only by mapping out how the case resolved can a lawyer identify the trial-court rulings that may have steered the case in the wrong direction. Although a trial court may make a number of missteps in the course of a case, only those erroneous rulings that affect the ultimate result (or at least arguably affect the result) present potentially viable issues for appeal.

§ 2.4-1(a) Cases Resolved by Dispositive Motion

When a case is resolved by dispositive motion, identifying the issue for appeal is straightforward. The appealable issue is whether the trial court erred by granting the dispositive motion, and the appellant should simply assign error to the granting of the motion.

With respect to many of the most common types of dispositive motions—motions to dismiss for failure to state a claim under ORCP 21 A(8), motions for summary judgment under ORCP 47, motions for a directed verdict under ORCP 60, or motions for judgment notwithstanding the verdict under ORCP 63—the court of appeals reviews the trial court's ruling as if it were ruling on the motion in the first instance. This is because in ruling on those types of motions, the trial court does not make any factual findings; typically, it must resolve the motions by viewing the facts in the light most favorable to the party opposing the motion. This means an appeal of a case resolved by this type of dispositive motion is, for all practical purposes, a "do over" of the motion—in front of three judges, instead of

one. For that reason, the arguments on appeal in cases resolved by these types of dispositive motions typically echo those presented to the trial court.

On a few types of dispositive motions, a trial court must make factual findings to resolve the motion, and is permitted to do so. These motions include motions to dismiss under ORCP 21 A(1)–(7). If the trial court had to make factual findings to resolve the motion, then the court of appeals cannot review the trial court's ruling as if it was ruling on the motion in the first instance. Under those circumstances, the court of appeals accepts the trial court's factual findings if there is any evidence to support them, and reviews the trial court's legal rulings for legal error. As a practical matter, this means that an appellant challenging a trial court's ruling on that type of motion must determine whether the court erred in its determination of the facts, erred in its determination of the law, or both, and craft the assignment of error appropriately.

> PRACTICE TIP: When appealing from a judgment that resulted from the court's ruling on a dispositive motion, it is important to identify correctly the ruling of the trial court that led to entry of the judgment. Failure to correctly identify the ruling that led to entry of judgment, and to assign error to that ruling, may lead the court of appeals to decline to review the merits of the appeal. For example, if the case was resolved on cross-motions for summary judgment, the appealing party must assign error to the grant of the opposing party's motion, and not merely assign error to the court's denial of the appealing party's motion. *See Asman v. State*, 210 Or App 369, 372–75, 150 P3d 1101 (2007) (declining to review merits of appeal when, in case resolved on cross-motions for summary judgment, appellant assigned error only to the denial of his motion for summary judgment and did not assign error to the grant of the opposing party's motion for summary judgment).

§ 2.4-1(b) Cases Resolved by Trial

When a case is resolved by trial, identifying appealable issues is far more challenging. Ultimately, to prevail on appeal, an appellant has to convince the appellate court that some pivotal trial-court decision was erroneous, and that the erroneous decision affected the final resolution of the case. But with a case resolved by trial, there are often many interim decisions (or nondecisions) leading up to final judgment, and not all of those interim decisions (even if erroneous) necessarily impact the final resolution of the case. The trick for an appellant

attorney is to identify what interim decisions by the trial court likely led to the ultimate resolution of the case, and then to identify which of those decisions were arguably erroneous. The following sections, § 2.4-1(b)(1) to § 2.4-1(b)(5), discuss how to accomplish that.

§ 2.4-1(b)(1) Map Out the Facts: Determine the Story That the Factfinder Believed

In putting together an appeal from a case resolved by a trial, it is useful to start by ascertaining, and then writing, the story that the factfinder ultimately believed. There are several reasons for doing this.

First, the appellant's opening brief will need to provide those facts to the court.

Second, an appellate court views the facts in the light most favorable to the jury's verdict or factfinder's decision. *Jacobs v. Tidewater Barge Lines, Inc.*, 277 Or 809, 811, 562 P2d 545 (1977). For the appellant, that means that the court is going to view the facts from the opposing party's perspective. Laying out the facts from the opposing party's perspective helps the appellant's attorney to see how the appellate court will view the facts. Perhaps more importantly, it helps the attorney to mentally shift from the role of trial advocate—in which the attorney likely was focused on persuading the factfinder to find the facts in the light most favorable to the attorney's client—to the role of appellate advocate—in which the attorney must either convince the court that the client should prevail under the law, even if the opposing party's view of the facts is correct, or, alternatively, convince the court that the fact-finding process was defective, and that, absent those defects, there is some likelihood that the factfinder would have credited the appealing party's version of the facts.

Third, by laying out the facts as they likely were determined by the factfinder, an appellate attorney can determine if any errors in the fact-finding process affected the judgment and therefore provide grounds for appeal. Identifying and challenging errors in the fact-finding process will be particularly important in cases in which the appellant's legal arguments are weak or nonexistent if the opposing party's view of the facts is the one that is accepted by the court.

§ 2.4-1(b)(2) Identify Potential Errors in the Fact-Finding Process

Once an appellant's attorney has laid out the facts in the light most favorable to the opposing party, the attorney is in a position to (1) determine whether the fact-finding process must be challenged; and (2) identify any potential issues for appeal arising out of the fact-finding process. If, under the appellant's legal theory of the case, the appellant cannot prevail if the facts are viewed in favor of the opposing party, then, to prevail on appeal, the appellant will necessarily have to challenge the fact-finding process.

In general, two types of errors can occur in the fact-finding process: evidentiary errors and insufficiency errors.

Evidentiary errors—the erroneous admission or exclusion of evidence or the failure to adequately cure the introduction of inadmissible evidence—can present strong issues for appeal. If the factfinder (particularly if the factfinder was a jury) heard evidence that it should not have heard, or did not hear evidence that it should have heard, and that erroneously admitted or excluded evidence affected the factfinder's decision to the detriment of the appellant, then the judgment generally must be reversed.

To raise an evidentiary error on appeal, an appellant generally must identify the ruling of the trial court that led to the admission or exclusion of the evidence at issue. Typically, these rulings will consist of the trial court's rulings on pretrial motions *in limine* to admit or exclude particular evidence, and the trial court's rulings on evidentiary objections made at trial. In addition, if inadmissible evidence was presented to the jury, and the trial court sustained the appellant's objection to that evidence, then the appellant may also want to consider assigning error to the trial court's rulings regarding what steps were necessary to cure that erroneous presentation of evidence. If the inadmissible evidence was particularly prejudicial, and the trial court denied the appellant's request to give a curative instruction or grant a motion for a mistrial, the appellant may want to consider assigning error to those rulings.

The other type of defect in the fact-finding process that can be challenged on appeal is the factfinder's finding of facts that are not supported by any evidence in the record. This type of challenge is difficult to prevail on because an appellate court will overturn factual findings only if there is no evidence to support them.

To raise an insufficiency error on appeal in a case arising out of a jury trial, an appellant typically must assign error to the trial court's denial of the appellant's motion for a directed verdict, the trial court's denial of the appellant's motion for a judgment notwithstanding the verdict, or both. Challenging those rulings is the appropriate way to raise an issue of evidentiary insufficiency to the appellate court.

To raise an insufficiency error on appeal from a bench trial (which often may be a declaratory judgment action or other equitable proceeding) an appellant usually can raise the issue simply by assigning error to key factual findings made by the trial court and arguing that there is no evidence to support those findings. If the appellant moved for dismissal on the grounds of evidentiary insufficiency under ORCP 54 B(2), the appellant may want to assign error to the trial court's denial of that motion as well.

§ 2.4-1(b)(3) Identify Errors in the Legal Theory on Which the Case Was Resolved

Even when the fact-finding process was not defective, an appellant can obtain reversal of a judgment if the case was resolved on a legally erroneous theory. In a jury trial, this can happen when a trial court (1) sends a claim to the jury that has no legal basis; (2) erroneously instructs the jury on the law; (3) provides the jury with a verdict form that incorrectly reflects the law; (4) declines to set aside a verdict on a claim that fails as a matter of law; or (5) denies a motion for a new trial based on the court's alleged error of law. In a bench trial, this can happen when the trial court erroneously interprets the law in reaching its judgment.

This means that if an appellant believes that a case was resolved in the trial court under the wrong legal theory, there are often several proper vehicles for raising the issue to the appellate courts. If the appellant moved for a directed verdict under the theory that, under a correct interpretation of the law, the plaintiff could not prevail on a particular claim even when the facts were viewed in the plaintiff's favor, the appellant can assign error to the trial court's denial of the motion for a directed verdict. If the trial court incorrectly instructed the jury on the law, either by delivering an improper instruction or declining to give an instruction that was warranted, the appellant can assign error to the trial court's delivery of an improper instruction or failure to deliver a proper instruction. If the trial court gave the jury an improper verdict form, the appellant can assign error to the court's ruling(s) that resulted in the errors in the verdict form. And if the appellant moved

for a judgment notwithstanding the verdict on the ground that the plaintiff's claim failed as a matter of law, then the appellant can assign error to the denial of that motion. Each of these types of assignments of error will permit an appellant to argue to the court of appeals that the case was resolved under an incorrect interpretation of the law, and that the judgment should be reversed and remanded for whatever proceedings accord with a correct interpretation of the law.

In a bench trial, the trial court's legal reasoning typically will be reflected in its oral or written ruling. The appellant can assign error to the judgment on the ground that it was entered based on an erroneous interpretation of the law.

§ 2.4-1(b)(4) Identify Possible Procedural Errors

Even if the legal rulings and factual findings that led to entry of judgment on the merits do not seem assailable, an appellant may be able to obtain reversal of an unfavorable judgment if the trial court either erred or abused its discretion in making a significant procedural ruling. If a potential error in procedure is one that calls into question the fairness or legitimacy of the underlying trial, then it may provide a fruitful issue for appeal.

Although it is difficult to identify all the types of procedural rulings that may present viable issues for appeal, some of the most common procedural rulings that can present viable appellate issues include (1) denials of motions to change venue; (2) denials of motions to dismiss for lack of jurisdiction or lack of a justiciable controversy; (3) denials of challenges to jurors for cause; (4) denials of motions for leave to amend a complaint; (5) denials of motions for continuances; (6) denials of motions for mistrials; (7) allowing an alternate juror to participate in deliberations; (8) denials of requests to poll the jury; and (9) grants or denials of motions for a new trial under ORCP 64 B.

Challenging these types of procedural rulings on appeal is straightforward. The appellant assigns error to the challenged procedural ruling and then provides argument in support of that claim of error, framed in terms of the applicable standard of review.

§ 2.4-1(b)(5) Identify Any Errors on Ancillary Issues

Finally, an appellant should identify any errors in the trial court's rulings on ancillary issues. The most common ancillary issues litigated on appeal relate to attorney fee awards, generally issues related to entitlement to fees and amount of

fees. If the trial court awarded fees by way of a supplemental judgment, the appellant generally should separately appeal the supplemental judgment or file an amended notice of appeal appealing the supplemental judgment.

§ 2.4-2 Judicial Review of Agency Orders

Appealing or, more accurately, seeking judicial review of, an agency order involves different considerations from appealing a court decision. Because administrative agencies are part of the executive branch of government, they are not subject to supervision by the appellate courts in the way that lower courts are. Rather, the appellate courts' authority to review agency actions is conferred by the legislature. Accordingly, the only grounds for challenging agency actions are the grounds specified by the legislature. For most agencies, these grounds are found in chapter 183 of the Oregon Revised Statutes, Oregon's Administrative Procedures Act. However, for some agencies, the legislature has promulgated more specific statutes governing judicial review. For those agencies, the specific statutes typically supply the standards governing judicial review of those agencies' actions.

> PRACTICE TIP: If a party to an agency proceeding anticipates seeking judicial review of the agency decision resolving the proceeding, that party should identify early on what statutory provisions govern judicial review of that agency's decisions. For some agencies, the legislature has imposed certain procedural prerequisites to judicial review, including requirements that parties seeking judicial review exhaust administrative remedies with respect to any issue raised on judicial review. Failure to comply with the procedural prerequisites to judicial review will often preclude judicial review completely.

The following sections, § 2.4-2(a) to § 2.4-2(c), discuss how to identify and present issues on judicial review of agency orders in the appellate courts. They focus on agency orders subject to review under the Oregon Administrative Procedures Act, and do not specifically address judicial review of agency orders that is governed by other, more specific statutes. Although the approach discussed may be applicable to review of agency orders that are subject to review under specialized statutes, advocates should always familiarize themselves with the specific statutes applicable to the particular pertinent agency.

§ 2.4-2(a) Identify the Agency Action Taken in the Challenged Order

The first step in preparing an appellate-court challenge to an agency order is to identify the action taken in the order. On review of an agency order, the court of appeals is empowered to review the validity of only actions actually taken by the agency in the order on review. *See Steele v. Water Res. Comm'n*, 248 Or App 229, 239–40, 273 P3d 243 (2012). *See generally* ORS 183.482(8). The court has "no statutory authority to do anything to the order on review" unless an agency's legal or factual error actually led to the action taken in the order on review. *Steele*, 248 Or App at 240; *see also Wyatt v. Bd. of Parole & Post Prison Supervision*, 230 Or App 581, 584–85, 216 P3d 926 (2009), *rev den*, 348 Or 524 (2010) (court could not review petitioner's challenge to a supervision condition when in the order on review, the board took no action on that supervision condition). Consequently, to prevail in a judicial review proceeding, a petitioner must be careful to identify what actions in fact were taken in the order for which the petitioner seeks review, and craft challenges to those actions. If, in evaluating the order, the petitioner determines that the actions that the petitioner wants to challenge were taken in different orders, the petitioner should seek judicial review of those orders, if the timelines for seeking judicial review have not expired.

Once the agency action has been identified, the petitioner can use that to formulate the assignment of error on appeal by assigning error to that action, for example, "The agency erred by revoking the license"; "The agency erred by imposing a civil penalty"; "The agency erred by issuing the permit"; or "The agency erred by suspending the petitioner's right to apply for a license."

§ 2.4-2(b) Using the Statutory Grounds for Challenging Agency Actions, Identify the Substantive Grounds for Challenging the Action

The next step in formulating an appellate challenge to an agency action is to determine what types of substantive errors the agency made in taking the action reflected in the order on review. In a nutshell, there are three grounds on which an appellate court can reverse, vacate, or modify an agency order for substantive reasons:

(1) The agency based its action on an erroneous determination of the material facts. This occurs when the agency's factual findings are not supported by "substantial evidence." ORS 183.482(8)(c).

PRACTICE TIP: In general, only if an unsupported factual finding was material to the agency's action in the order on review will an appellate court set aside the agency's order based on the fact that the finding is not supported by substantial evidence. For this reason, it is important for an advocate to identify what factual findings are pivotal to the agency's action and what factual findings are immaterial, and focus any challenges on the pivotal factual findings.

PRACTICE TIP: If an agency order results from a hearing, evidentiary error by the hearings officer generally will not provide a basis for challenging the agency's order, absent substantial prejudice to the challenging party. ORS 183.450(1) ("erroneous rulings on evidence shall not preclude agency action on the record unless shown to have substantially prejudiced the rights of a party").

(2) The agency erroneously interpreted a provision of law in taking the action in the order on review. ORS 183.482(8)(a).

PRACTICE TIP: To cause the appellate court to set aside an agency order, any error by the agency in interpreting a provision of law must have actually resulted in the action taken by the agency. If the alleged legal error ultimately did not lead to the agency's action, it will not provide a basis for the court to set aside, vacate, or modify the order.

(3) The agency exercised its discretion in a manner that is (a) outside the boundaries of discretion delegated to the agency by the legislature; (b) inconsistent with agency rules, policies, or prior practices, if the agency does not explain the inconsistency; or (c) in violation of a statutory or constitutional provision. ORS 183.482(8)(b).

These are the only statutory bases for setting aside or modifying an agency's order on substantive grounds. Accordingly, all substantive challenges to the agency's action should be framed in terms of one or more of these grounds. Failure to frame a substantive challenge to agency action in the terms of the statutory standards can lead an appellate court to conclude that it lacks authority to review the challenge.

§ 2.4-2(c) Identify Potential Procedural Challenges to the Agency Action

Just as some procedural errors by trial courts can require judgments to be set aside (*see* § 2.4-1(b)(4)), certain procedural errors by agencies can provide grounds for an appellate court to set aside or remand an agency order. A court must "remand the order for further agency action if the court finds that either the fairness of the proceedings or the correctness of the action may have been impaired by a material error in procedure or failure to follow prescribed procedure." ORS 183.482(7).

Under that standard, any failure by an agency to adhere to the procedures required under the Oregon Administrative Procedures Act, ORS chapter 183, can provide a basis for setting aside the agency's order, if the error arguably made the proceeding unfair or arguably led the agency to reach the wrong result. The types of procedural challenges that can lead to remand include an agency's failure to provide proper notices of proposed action, and a hearing officer's failure to fully develop the record regarding the agency's proposed action.

Among potential procedural challenges to an agency's order, two specific types of procedural challenges can often provide a basis for setting aside an agency's order, depending on the circumstances of the case: (1) challenges to an agency's modification of historical facts; and (2) challenges to an agency's failure to explain its reasoning.

First, if the case was tried before the Office of Administrative Hearings, and the agency subsequently modified the hearings officer's factual findings, a petitioner can often challenge those modifications if they were unfavorable to the petitioner. An agency may modify a hearings officer's findings of historical fact only if there is clear and convincing evidence that those findings were wrong. ORS 183.650(3). In addition, the agency must adhere to very specific procedures when modifying findings of historical facts. If the agency modifies historical facts when it is inappropriate to do so, or fails to follow required procedures when modifying facts, an appellate court typically will remand to the agency. *See* ORS 183.650(4). Because the standards for modifying facts are demanding, challenges to modifications can provide a strong basis for attacking an agency's order in an appellate court, especially when, as is often the case, the modified facts are material to the agency's action in the order on review.

PRACTICE TIP: A challenge to an agency's modifications of historical fact is a unique type of procedural challenge that is governed by ORS 183.650. When confronted with an agency's modification of historical facts, an attorney should closely examine ORS 183.650 and the cases discussing it, in order to properly frame any challenge to the modifications.

Second, if an agency fails to adequately explain its reasoning in its order, a petitioner can challenge the order on the ground that it is not supported by substantial reason. Although the appellate courts characterize the substantial-reason requirement as a component of the substantial-evidence standard, in practice, the substantial-reason requirement is more of a procedural requirement that the agency include a sufficient explanation of its action in its order to enable an appellate court to review the order. *Endres v. Driver & Motor Vehicle Servs. Div.*, 255 Or App 226, 229, 297 P3d 505 (2013) (explaining that to meet requirement of "substantial reason" an "order must articulate a rational connection between the facts of the case and the legal conclusion"). If an order is not supported by substantial reason, an appellate court typically will remand to the agency so that the agency can provide a rational explanation of its decision. *See Afzal v. Pub. Employees Ret. Bd.*, 239 Or App 284, 293, 246 P3d 5 (2010).

§ 2.5 RELIEF ON APPEAL

In any appeal, knowing where success will lead is essential. And that means that an appellant and a respondent must carefully consider the available forms of relief. (For purposes of this section and § 2.5-1 to § 2.5-2, *appellant* means any party that seeks a change in the trial court's judgment and *respondent* means any party that seeks to keep the trial court's judgment.) That, in turn, means that an appellant or petitioner must carefully consider, among other things, what issues to raise, whether those issues are preserved, what standards of review apply to those issues, and whether an error that exists requires reversal, all subjects covered in *Appeal and Review: The Basics* chs 3–5 (OSB Legal Pubs 2010) and § 2.2-1(a) to § 2.4-2(c) of this chapter. This section and the remaining sections of this chapter build on those discussions by providing general guidance in assessing the relief-sought component of the appeal evaluation process. This section and the remaining sections of this chapter focus on civil appeals from trial courts. However, the basic principles for those appeals should apply to other appeals or petitions for judicial

review, although an appellant or respondent in those contexts should carefully consider any unique relief-sought issues for those appeals or petitions.

§ 2.5-1 Identifying the Relief Sought Is Required

The opening brief must contain a statement of the relief sought. ORAP 5.40(1).

§ 2.5-2 The Relief Sought May Be Obvious, but Not Always

The relief sought is often obvious, but not always. The proper relief can vary depending on the particular case (*e.g.*, administrative, criminal, civil, domestic relations, juvenile, jury or nonjury) and on the particular proven reversible error (*e.g.*, error in denying or granting a dispositive motion, error in admitting or excluding evidence, error in instructions or form of verdict, error in or adequacy of findings of fact). It is not possible in this section to describe all possible scenarios; however, several fairly common examples illustrate the obvious and not-so-obvious relief possibilities:

(1) Reversal or vacation of a judgment (for purposes of this section, a judgment encompasses any decision by a trial court that is appealable under ORS 19.205), in whole or in part, and remand for entry of a different judgment for the respondent (for example, when the trial court erred in a way that clearly affects only a damages component or the allowance or calculation of prejudgment interest). *See Gilbert Pac. Corp. v. State By & Through Dep't of Transp., Highway Div.*, 110 Or App 171, 177–78, 822 P2d 729 (1991), *rev den*, 313 Or 210 (1992) (prejudgment interest).

> NOTE: The term *vacate* is "used to denote an appellate court's wiping clean the judgment slate in a particular case. The effect is to nullify the previous decision, usually of a lower court, but not necessarily to dictate a contrary result in further proceedings," while the term *reverse* is a term that "describes an appellate court's change to the opposite result from that by the lower court in a particular case." Bryan A. Garner, *Garner's Dictionary of Legal Usage* 648 (3d ed 2011).

(2) Reversal or vacation of a judgment and remand for entry of judgment for the appellant (for example, when the trial court erred in a ruling on a personal jurisdiction issue or a ruling on a legal issue essential to the only claim on which a judgment is based). *See Nelson v. Am. Home Mortgage Servicing, Inc.*, 249 Or App

555, 558, 278 P3d 89 (2012) (personal jurisdiction); *Tremayne v. Liebreich*, 85 Or App 113, 115–16, 735 P2d 661, *rev den*, 303 Or 700 (1987) (directed verdict).

(3) Reversal or vacation of a judgment and remand for a trial (for example, when the trial court erred in granting a motion to dismiss, or a motion for summary judgment when no cross-motion was filed or, if filed, was correctly denied by the trial court). *See Vision Realty, Inc. v. Kohler*, 214 Or App 220, 222, 164 P3d 330 (2007) (cross-motions for summary judgment). Also, in such circumstances, any supplemental judgment for costs and attorney fees is vacated. *Vision Realty*, 214 Or App at 226.

(4) Reversal or vacation of a judgment and remand for a new trial (for example, when the trial court erred in an evidentiary or instructional ruling, but the error does not necessarily require entry of judgment for the appellant or preclude entry of judgment for the respondent). This is the most common among civil appeal outcomes. The general rule is that when a trial court has erred in ways that do not require entry of judgment for one party, there should be a retrial on all factual issues, including damages. *Maxwell v. Portland Terminal R. Co.*, 253 Or 573, 577, 456 P2d 484 (1969); *see also Wells v. Marleau*, 79 Or App 784, 787–89, 720 P2d 409, *rev den*, 302 Or 159 (1986) (further explaining the holding in *Maxwell*). But, as with any general rule, there are exceptions that are not always easy to see as inapplicable or applicable in a given case. *See, e.g., Estate of Schwarz ex rel. Schwarz v. Philip Morris Inc.*, 348 Or 442, 460, 235 P3d 668, *adh'd to on recons*, 349 Or 521, 246 P3d 479 (2010) (remanding for a retrial only on punitive damages); *W. Feed Co. v. Heidloff*, 230 Or 324, 349, 370 P2d 612 (1962) (remanding for a retrial only on the defendant's counterclaim); *Dunn v. Henderson*, 122 Or 331, 336, 258 P 183 (1927) (upholding determination of liability and remanding for a trial on damages only); *Baker v. English*, 134 Or App 43, 48–49, 894 P2d 505 (1995), *aff'd in part, rev'd in part on other grounds*, 324 Or 585, 932 P2d 57 (1997) (remanding for retrial only on jury's award of noneconomic damages).

(5) Reversal or vacation of a judgment and remand for reconsideration or further proceedings consistent with the appellate court's decision (for example, when a trial court erroneously includes certain attorney fees in an attorney fee award). *See Haynes v. Adair Homes, Inc.*, 227 Or App 536, 543, 206 P3d 1062, *rev den*, 347 Or 42 (2009) (improper inclusion of some fees in fee award).

(6) Reversal or vacation of a judgment and remand for further factual findings essential to a decision (for example, when a trial court's findings preclude meaningful appellate review). *McCarthy v. Oregon Freeze Dry, Inc.*, 327 Or 84, 96, 957 P2d 1200, *adh'd to on recons*, 327 Or 185, 957 P2d 1207 (1998); *accord Wright v. Jones*, 155 Or App 249, 253, 964 P2d 1048 (1998) (applying *McCarthy*).

(7) Trial *de novo* by an appellate court in cases properly subject to ORAP 5.40(8), resulting in alternative or supplemental findings of fact by the appellate court that may then require judgment for the respondent or remand to the trial court for further proceedings. *See In re Custody of M.T.*, 237 Or App 192, 196–98, 238 P3d 1003 (2010), *rev den*, 350 Or 231 (2011).

Chapter 3: EFFECTIVE WRITTEN ADVOCACY

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§ 3.1 INTRODUCTION

The ultimate goal of an appellate brief is to persuade the court to adopt a particular position on a particular legal question in a particular case. To best further this goal, you must:

- Identify and articulate reasons why the court should *want* to rule in your favor, by appealing to the court's sense of logic and fairness; and
- Identify and describe the analytical path that leads logically and inevitably to the result that you are urging.

These goals will be best achieved by engaging the court as simply and directly as possible. If your writing is sloppy, your tone inappropriate, or your reasoning obscure, you are likely to distract or annoy your judicial audience, making it unnecessarily difficult for the court to find its way to the result that you seek. This chapter aims to help you to avoid those pitfalls.

At the outset, you should keep in mind that this chapter is intended to supplement the material in chapter 6 of *Appeal and Review: The Basics* (OSB Legal Pubs 2010). Lawyers who have filed few or no briefs in the Oregon appellate courts should review that entire chapter, which includes important information

about the Oregon Rules of Appellate Procedure, before reading this volume, which is directed primarily at more advanced appellate lawyers.

§ 3.2 FIRST THINGS FIRST

§ 3.2-1 Read and Follow the Appellate Rules

Chapter 5 of the Oregon Rules of Appellate Procedure covers the preparation and filing of briefs. First-time brief writers should closely read and slavishly follow the rules set forth in that chapter. Careful appellate lawyers will continue to consult those rules every time they write a brief. Those rules are not technicalities; they are a means of smoothing and standardizing the appellate process, and our appellate judges expect you to follow them. Indeed, many aspects of the rules—for example, those related to assignments of error, preservation, and standards of review—embody important principles of appellate jurisprudence, reflecting what it means to argue to an appellate court, rather than to a trial court. (For more information on those topics, see chapter 2.)

If you will be practicing in the appellate courts on a regular basis, you have a reputation to create and maintain. Do not begin by ignoring the appellate rules and causing our appellate judges to roll their collective eyes at the sight of your next brief. Again, your goal is to educate the court, not to annoy it.

The Oregon Rules of Appellate Procedure are available online at: www.ojd.state.or.us/Web/OJDPublications.nsf/ORAP?OpenView&count=1000. In addition, the appendices to the rules include helpful examples of properly formatted appellate-court filings, including brief captions (Appendix 5.05-1) and assignments of error (Appendix 5.45). Be sure to follow the most current version of the rules and appendices. For an in-depth discussion of the rules, see chapter 6 of *Appeal and Review: The Basics* (OSB Legal Pubs 2010).

§ 3.2-2 Consult the Oregon Appellate Courts Style Manual

Oregon's appellate courts have created a style manual, covering conventions of format, citation, quotation, and style, for their internal use in writing opinions. *Oregon Appellate Courts Style Manual* (2002, updated Sept 2013), *available at* www.publications.ojd.state.or.us/Pages/index.aspx (with links to both "Web Version With Hyperlinks" and "Printer Friendly Version"). Although the style manual is intended for use in writing appellate court opinions (see the Preface to the manual), it also provides "[g]uidelines for style and conventions in citation of

authorities" in the body of your brief, ORAP 5.20(4), and, more importantly, the required form for citations in your brief's index, ORAP 5.35(3); *see* ORAP 5.55(1), ORAP 5.65(2), ORAP 5.70(2), ORAP 5.75. The wise appellate lawyer will consult the style manual on a regular basis and will urge staff members who help in the preparation of briefs to consult it as well.

Although the manual contains both a table of contents and an index, you would do well to read it through once, marking the places to which you will want to return. You will find extensive guidance on citations, italicization, capitalization, and punctuation, together with a guide to word usage and conventions that will instruct you on sticky matters such as when it is appropriate to use "since," and when "because" is the better choice.

§ 3.3 GENERAL PRINCIPLES

§ 3.3-1 Key Tasks in Brief Writing

An appellate brief is a complex document that requires careful attention to the record, the standard of review, preservation and selection of issues, and the applicable law. It cannot be "dashed off" based on the trial-court briefing. How might an appellate lawyer best approach and break down the task of organizing and writing a brief? After conducting an informal and unscientific survey of successful appellate lawyers, the writers of this chapter conclude that while appellate lawyers approach the task in somewhat different ways—some, for instance, working with one document and others creating separate documents for transcript summary, preservation, and facts; some dictating a rough draft and others typing every word—all cover the steps described in § 3.3-1(a) to § 3.3-1(c).

§ 3.3-1(a) The Opening Brief (Filed by the Appellant)

Determine what assignments of error you will raise—that is, the precise rulings that you will challenge, *see* ORAP 5.45(3)—by doing the following in the order that seems most comfortable to you:

- Consult with the trial attorney.
- Review the trial-court pleadings and any reports or evaluations prepared by the trial attorney.
- Review, take notes on, tab, or otherwise annotate the trial transcript.
- Review the trial-court exhibits.

- Make sure the arguments that you wish to raise were preserved or that, if not preserved, you can persuasively argue that the appellate court should consider the arguments as establishing plain error. Keep in mind that the Oregon appellate courts will exercise their discretion to consider unpreserved claims of error only in "rare and exceptional cases." *State v. Gornick*, 340 Or 160, 166, 130 P3d 780 (2006) (quoting *Hotelling v. Walther*, 174 Or 381, 385, 148 P2d 933 (1944)).
- Consider the applicable standard of review in assessing whether it will be worthwhile to raise a particular assignment of error.

Begin building the brief by doing the following in the order that makes sense, given the size of the record and the focus of your brief:

- Create a preliminary outline of the arguments supporting each assignment of error, using section headings. *See* § 3.3-2(e)(1).
- Research each issue raised.
  - — Consult the trial-court pleadings for key cases and arguments.
  - — Approach your research from several angles to ensure that you have not missed anything.
  - — Understand that your areas of research may overlap.
  - — Keep careful notes on your research.
- Revisit the transcript and trial-court record.
- Work on the statement of facts.
- Begin filling in each section of your arguments.

PRACTICE TIP: Although you should not begin writing before you have some idea where you are going, waiting too long can lead to unnecessary work. In a brief covering many issues, for instance, it is wise (unless the issues are entwined) to complete the research on each issue and begin filling in the argument on that issue before moving on to the next issue. If you wait until your research on all issues is complete, you will find yourself revisiting stacks of cases or pages of notes, the importance of which may no longer be clear to you.

- Repeat the above tasks as needed.

- Edit and reorganize as your arguments become clearer to you.
- Complete all sections of the brief.
- Edit again.

§ 3.3-1(b) The Answering Brief (Filed by the Respondent)

The answering brief is generally easier to organize than the opening brief because the appellant has selected the assignments of error. You will be challenged, however, to create a smooth path for the court if the opening brief is poorly organized.

In writing the answering brief, follow the steps for writing the opening brief (*see* § 3.3-1(a)), minus the assignments of error, with the following additions:

- Check the appellant's brief for unpreserved arguments, errors in the standard of review, and omitted or misrepresented facts.
- Read and cite check the cases cited by the appellant to determine whether the appellant's recitals are accurate and complete, and whether subsequent cases change or refine the case holdings.
- Determine whether you may raise arguments not addressed by the appellant. For example, the respondent may argue that the trial court was "right for the wrong reason" and raise arguments not addressed by the trial court that support the judgment, as long as those arguments would not require the development of a different record. *Outdoor Media Dimensions Inc. v. State*, 331 Or 634, 659–60, 20 P3d 180 (2001) (explaining the circumstances under which the appellate courts will consider that type of argument).
- When you have finished a draft of the answering brief, recheck to make sure that you have responded to all arguments raised in the opening brief.

For most appellate writers, creating a brief is a circular process. You will take steps and then revisit those steps as the record and the law become clearer. A case will send you back to the transcript to check a fact. The transcript will send you back to the trial court pleadings to determine what facts were relied on below. Eventually, the path forward will become clear. Until then, you will likely follow some false research leads, experience confusion about the facts, and generally

despair of the possibility that you will wind up with a finished brief. This is not a sign that you are an incompetent brief writer. It is, instead, a sign that you have come to understand what it takes to write a brief. If the writing and organization seem easy, you have probably omitted something important or failed to think through your arguments.

Finally, the most important parts of writing a brief are editing, reorganizing, and refining. Try to finish your draft with enough time to set it aside for a few days and then read it once more.

§ 3.3-1(c) The Reply Brief (Filed, Sometimes, by the Appellant)

Without seeking leave of the court, the appellant may file a reply brief in most civil cases. ORAP 5.70(3)(a) (parties to certain types of cases must obtain leave of court before filing reply briefs: traffic, boating, wildlife, and other violations; criminal, probation revocation, habeas corpus, and postconviction relief; juvenile; civil commitment; forcible entry and detainer; and judicial review of the Land Use Board of Appeals and the Land Conservation and Development Commission). A reply brief should not be used to repeat or emphasize the points already made in the opening brief. After all, a judge who is reviewing the briefs in preparation for oral argument will have just read the opening brief, and will not want to spend time wading through a repetition of those just-reviewed arguments. Consequently, if the opening brief has effectively anticipated and countered each of the points later made in the respondent's brief, no reply brief will be necessary (or even helpful). A reply brief generally is advisable only when it is needed to concisely counter any arguments included in the answering brief that the appellant's lawyer had not anticipated when drafting the opening brief.

§ 3.3-2 Things to Keep in Mind

§ 3.3-2(a) Make Your Position Known

You are not writing a mystery novel; make your position known early and often. Do not wait until the end of your brief (or even until the end of your summary of argument) to identify your bottom-line position. Although you may not understand your own position until after you have slogged through the record and digested all of the available legal authorities, do not keep your reader in suspense. Immediately identify your position, and the law and facts supporting it, and continue to do so throughout your brief.

Similarly, do not assume that the court will recall pertinent facts or legal principles that you identified or discussed earlier in the brief. If a fact is important, and your word count permits, feel free to repeat it, and to again provide a citation. Do not be shy about reminding the reader of the crucial legal principles that support your position. Make it easy for the judges by not forcing them to turn to some unidentified, previous page to recover the thread of an argument or to find a vaguely remembered fact.

§ 3.3-2(b) Be Respectful and Professional

Write in a calm, measured voice. Do not call names. Use underlining or italics sparingly when necessary to emphasize a point. Never use exclamation points or uppercase letters to achieve this purpose. Never combine bold type, underlining, uppercase, and exclamation points, or any subset of these. THIS IS THE WRITTEN EQUIVALENT OF SHOUTING!! You wouldn't shout at a judge, would you?

Some advocates, even experienced appellate advocates, regularly use an incredulous, scornful, or outraged tone when describing an opponent's arguments or a lower court's ruling. This is a bad idea. Such a tone is both disrespectful and exhausting to read, and it is unlikely to further your argument or your reputation with the court.

Rather than describing your opponent's argument (or worse yet, your opponent) as "ludicrous" or "outrageous," simply describe or quote the offending argument, then state something like "this court's case law demonstrates otherwise," or "the record does not support this argument," or, simply, "plaintiff (or defendant) is wrong," followed by an explanation of the flaws in the plaintiff's (or defendant's) argument. Such an approach assists the court, promotes your client's interests, and enhances your credibility. A completely professional tone is a hallmark of effective advocacy, not a detriment to it.

§ 3.3-2(c) Don't Make Jury Arguments

Finally, no matter how persuasive your argument, it will further your cause only if it is written with the standard of review in mind. Remember that you are not addressing a jury. It will not, for instance, be helpful to argue that the evidence would have supported a jury verdict for your client if the standard of review limits the court to a determination of whether *any evidence* supports the verdict.

Regardless of your arguments in the trial court, your task on appeal is to convince the court of your winning position in light of the standard of review.

§ 3.3-2(d) Be Honest

Do not distort or hide the facts or the law. Do not omit the part of a quote from a case or the record that makes your argument more difficult. Address challenging facts and law up front. Do not leave these out in the hope that your opponent will not notice them. He or she will. And if your opponent does not, a judge or a judge's clerk will. Your omission will not fool anyone, but will adversely affect your reputation with the court, which will affect the trust with which the court approaches your representations in the future.

§ 3.3-2(e) Remember Appellate Judges' Caseload

Remember that appellate judges have many briefs to read; make reading yours easy. See § 3.3-2(e)(1) to § 3.3-2(e)(18) for tips on how to make your brief more readable.

§ 3.3-2(e)(1) Use Clear Headings

Use headings that, read together, form an outline of your argument. In creating your argument for each assignment of error, use headings that are complete sentences, each of which signals your next point. This will make it easier for the court to follow the argument and for you to stay on track while writing it. When you print the table of contents, your headings should form an outline of your argument.

Ideally, your headings will inform the court how the discussion that follows supports the conclusion that you want the court to reach. Thus, "The Trial Court Erred by Ignoring This Court's Eighth Amendment Case Law" is preferable to "The Eighth Amendment," and "Plaintiff Has Not Produced Admissible Evidence of a Conspiracy" is more helpful than "Conspiracy." See Appendix 3A for examples of effective headings.

Finally, do not be afraid to use relatively frequent headings. Unbroken expanses of text can be tiring. Further, most appellate judges are now reading briefs on electronic devices. Headings are important guideposts in a format where one page melts into the next.

§ 3.3-2(e)(2) Use Topic Sentences

Your headings alone will not bring your argument home. It is also important to use strong topic sentences to further signal the course of your argument. Use each paragraph's opening sentence to advance your argument by identifying what the paragraph will cover. When possible, use sentences that not only identify what will follow, but that signal how what follows supports a particular legal conclusion. For example: "As the officer's testimony reflects, he had reasonable suspicion to stop defendant." This sentence, followed by a paragraph documenting the testimony supporting this assertion, is preferable to "The officer testified at length about the information known to him when he stopped plaintiff," followed by the same paragraph.

§ 3.3-2(e)(3) Smooth Transitions

Strong headings and topic sentences will lose their impact if your paragraphs consist of a jumble of unrelated sentences. Smooth the transitions between paragraphs and individual sentences. Use transition words and phrases such as "as a result," "thus," "therefore," "nonetheless," and "because" to keep your argument on track. For example: "Because the circumstances described above are identical to those addressed in *Smith*, the court must affirm."

Similarly, using the same word or phrase from sentence to sentence can create an "echoing" effect that identifies the connection between sentences: "This court repeatedly has recognized the 'reasonable opportunity' doctrine. Yet the officer's conduct in this case denied defendant a reasonable opportunity." (Beware, however, of repeated words that clunk rather than echo.)

Even the word "that" can provide an effective way to link one sentence to the next: "This court has announced a 'totality of the circumstances' rule. That rule provides . . . ."

§ 3.3-2(e)(4) Strive for Coherence

Each section of your argument should have internal coherence. The following template will fit most arguments:

- a heading that advances your argument;
- a short introductory paragraph that does not simply repeat the heading, but provides a summary of the section;

- a topic sentence for each paragraph, followed by a discussion of the facts or law that supports the topic sentence; and
- a short paragraph reiterating how the section compels the conclusion that you want the court to reach.

§ 3.3-2(e)(5) Cite to Your Opponent's Brief

Your task is to make it as easy as possible for the court to follow your arguments. When responding to an opponent's argument, cite the page in your opponent's brief where the argument appears. Thus, if you write, "Plaintiff's argument that black is white lacks merit," add a citation to the page in the plaintiff's brief where that argument appears, before proceeding to explain why black is not white. This will make it easy for the reader to locate the argument that you are addressing and to compare the wisdom of your response with the folly of your opponent's argument.

§ 3.3-2(e)(6) Favor Simplicity

You are writing for judges who have to read many, many briefs. Do not attempt to impress them with big words. Do not use a fancy word when a simple word will do. In most cases, the simplest word will be the clearest. Write "start" rather than "commence," "reach" or "gain" rather than "attain," "end" rather than "cease," and "ask" rather than "inquire."

§ 3.3-2(e)(7) Use Words Correctly

Here is another good reason not to use fancy words: you might be using them incorrectly. Do not use a fancy word unless you are sure of its meaning. Do you think that you know what "parameter" means? Look it up and see if you still think so, then see § 3.3-2(e)(6) and use "limit," "boundary," or another word that actually says what you mean.

§ 3.3-2(e)(8) Avoid Legalese

You may think that you sound more lawyer-like when you use words such as "herein" and "heretofore." In fact, you sound pretentious. Keep your writing clear and uncluttered by substituting "here" and "earlier." Do not use legalese. Frequently, the lawyerly word is unnecessary. Thus, "Plaintiff attaches the relevant statutes hereto as Appendix A" becomes simply, "Plaintiff attaches the relevant statutes as Appendix A."

§ 3.3-2(e)(9) Use Active Voice

When you write in the active voice, the subject of the sentence is the actor: "John made a mistake." When you write in the passive voice, the subject of the sentence is the person or thing acted upon: "Mistakes were made by John." The active voice is more direct and easier to follow. The passive voice is particularly troublesome when the actor is not identified, making it appear as though the writer wishes to hide something: "Mistakes were made." Use the active voice unless you really do not know the identity of the actor or wish to emphasize something other than the actor. For example, use, "The warnings were ignored," when you wish to emphasize the warnings or the ignoring rather than the person who did the ignoring.

§ 3.3-2(e)(10) Avoid Convoluted Sentences

You will want some complexity to your sentences so that your brief will not have the rhythm of a reading primer. Thus, "Defendant is an architect. He studied at Yale. He knows how to read a survey," might be better stated: "Defendant is a Yale-educated architect who knows how to read a survey." Remember, however, that you are creating a persuasive argument, not a *New Yorker* profile. When writing an appellate brief, bear in mind that you are not trying to outdo Henry James with the complexity of your sentences. Thus, it would not do to expand the above example to read, "Defendant, a Yale-educated architect who knows how to read a survey, attempts to avoid the obvious conclusion that he read and understood the subject survey by arguing that, despite all of his experience, and despite having had plenty of time to consider the survey, he did not understand that the specifications on page three of the survey directly contradicted those on page one." A little complexity will add life to your writing; too much will leave your reader weary and cranky.

§ 3.3-2(e)(11) Omit Awkward or Unnecessary Words and Phrases

Search your brief for unnecessary or imprecise words and phrases. Do not use several words when one is just as clear or clearer. "Now" is more straightforward than "at this time." "Because" is better than "on account of," and "before" is better than "prior to."

§ 3.3-2(e)(12) Use Direct Quotations

Spice things up by using direct quotations. Quotation marks grab the reader's attention. They also reassure judges that you are accurately reciting from your opponent's brief, the record, or a statute or decision, and not sneakily paraphrasing to further your position. Direct quotations can also make an argument sound more authoritative. For example, if you represent a criminal defendant and wish to assert that the state had to scrupulously honor your client's invocation of his right to counsel, and if the phrase "scrupulously honor" is the phrase used by the United States Supreme Court, place quotation marks around the phrase. Make it clear that the Court itself—and not your own wishful thinking—has created a rigorous standard.

Colorful quotations have more impact than paraphrases. If you represent the state, "Defendant threatened to 'smash [the officer's] face in,'" followed by a record citation, has more impact than "Defendant threatened to harm the officer," followed by a record citation.

Avoid, however, strings of quotations followed by case or record citations. The writer must guide the reader through the quotations, as in the examples above, not leave the reader to discern how the quotations work together or further the argument. Finally, if a paraphrase is shorter and as effective or less awkward, use the paraphrase.

§ 3.3-2(e)(13) Use Block Quotations Sparingly

Readers, including judges, tend to skim over block quotations, so use them sparingly. When only a block quotation will serve your purposes, keep the "block" as short as possible, substituting an ellipsis for unnecessary text, and introduce it with a sentence telling the court why the quote matters. Finally, follow the quotation with a sentence again telling the court how the quote advances your argument.

§ 3.3-2(e)(14) Use Jump or Pinpoint Citations

Do not make the court search a case for the language that you rely on. Instead, take the time to include jump or pinpoint citations, for example, "22 Or App 97, 98–99," not "22 Or App 97." Do the work; do not make the court do it.

§ 3.3-2(e)(15) Keep Footnotes on One Page

Do not make the judges turn the page to follow a footnote. You or your assistant should adjust the text to keep each footnote within the confines of one page. It is preferable to leave some blank space on a page than to make a judge flip back and forth to follow a footnote. Bear in mind that some judges dislike footnotes; do not make those judges dislike you.

§ 3.3-2(e)(16) Use Footnotes Sparingly

Use footnotes only for information that would break the flow of your argument. A footnote is an aside. It is the place to give the court bits of extra information. It is not a place to hide your arguments.

§ 3.3-2(e)(17) Use Signals Correctly

No signal is required when the cited authority directly states your proposition, identifies the source of your quotation, or identifies an authority referred to in your text. *The Bluebook: A Uniform System of Citation*, Rule 1.2 (19th ed 2010). Otherwise, use a signal, such as "*see*," "*e.g.*," or "*cf.*" to indicate the strength of support that the cited authority provides for your proposition. Use other signals to indicate a comparison, a contradiction, or background material. Follow Rules 1.2 to 1.5 in the most recent edition of *The Bluebook* regarding the use of signals, order of signals, and order of authorities within signals. A signal should generally be followed by a parenthetical explaining the signal. *Oregon Appellate Courts Style Manual* 18–19 (2002, updated Sept 2013), *available at* www.publications.ojd.state.or.us/Pages/index.aspx (with links to both "Web Version With Hyperlinks" and "Printer Friendly Version").

> EXAMPLE: This court has applied the XYZ test to a wide range of facts. *See, e.g.*, *Jones v. Smith*, [citation] (motorcycle accident); *Price v. Union Pacific Railroad*, [citation] (accident at train crossing); *Johnson v. Hart*, [citation] (pedestrian fall from a bridge).

§ 3.3-2(e)(18) Appearance

Make your brief easy on the eyes of your reader. If you need to emphasize a word or phrase, use italics or underlining, but not bold type. *See Oregon Appellate Courts Style Manual* 14 (2002, updated Sept 2013), *available at* www.publications.ojd.state.or.us/Pages/index.aspx (with links to both "Web

Version With Hyperlinks" and "Printer Friendly Version"). Whichever font you use for emphasis, use it consistently throughout your brief.

Proportionally spaced type is easier to read than uniformly spaced type (in which each letter or character takes up the same amount of space). If you use proportionally spaced type, ORAP 5.05(4)(g) requires that "the style shall be either Arial or Times New Roman."

Do not justify lines so that the right margin is uniform. Doing so can create weird spacing between words, while forcing the reader's eyes to make long leaps.

§ 3.3-2(f) Seek Grammar Help

Make friends with your office grammar nerd. If you do not have easy access to such a person, buy one or two good grammar guides. In fact, buy one or two good grammar guides even if you do have access to such a person. Helpful resources include Strunk and White's *The Elements of Style*, Bryan Garner's *The Elements of Legal Style*, and the "Style Guide" section in the *Oregon Appellate Courts Style Manual* (*see* § 3.2-2).

§ 3.3-2(g) Electronic Device Reading

Do not assume that the judges will read a paper copy of your brief. Whether your brief is filed electronically or by paper copy, most judges will read the brief on an electronic device. They therefore may not be able to flip back and forth between pages, or between sections of your brief, as easily as they could with a hard copy. Hence, it may be more important than ever before to use frequent headings, and to otherwise ensure that each discrete portion of the brief (and each discrete paragraph and sentence, if possible) tells the reader how it connects with the rest of the brief.

Keep abreast of any changes to the Oregon Rules of Appellate Procedure that may make electronic filing ("eFiling") mandatory or that may provide additional requirements or suggestions about how to format briefs so they are more easily read in electronic format. For example, if you eFile a PDF version of your brief, it may be helpful to bookmark particular sections of the excerpt of record or appendix so that a judge may locate important documents quickly, whether during oral argument or during the process of drafting an opinion.

§ 3.4 GETTING SPECIFIC

§ 3.4-1 Briefing in the Oregon Court of Appeals

§ 3.4-1(a) Write to the Standard of Review

Each part of your brief should be written with the standard of review in mind. If you are the appellant, remember that your goal in the Oregon Court of Appeals, with rare exceptions, is to convince the court that legal error occurred below. "Jury arguments" will not carry the day. Instead, the applicable standard of review will drive the court's analysis. Whether you are the appellant or the respondent, your grasp of that standard should be reflected in your questions presented, summary of argument, assignments of error (or responses to them), headings, and argument.

§ 3.4-1(b) Persuasive, Accurate Questions Presented

The "questions presented" section is your first opportunity to present the court with the substance of your argument. Your questions presented should be persuasive without distorting or hiding facts. Do not assume—even if you are the respondent—that the reader already knows either the pertinent facts or the identity of the actors.

Avoid writing a question that begins with "whether." Use complete sentences instead, as those generally will be easier for the court to follow, and feel free to use more than one sentence. Do not use all uppercase letters; they are too hard to read.

Present each legal issue fairly, but in a way that suggests the answer that the court should reach. Here is an example of a multisentence question that identifies the pertinent legal principle, identifies the pertinent facts, and is fair yet persuasive:

> "The Fourth Amendment authorizes a warrantless automobile seizure if police officers reasonably believe that the vehicle contains a live explosive device. Here, police officers testified that defendant's car—even after defendant turned it off—was 'ticking loudly' and emitting black smoke. Did those observations entitle the officers to seize the car without a warrant?"

Feel free to present multiple questions with respect to a single assignment of error, or to present a question that has subparts. The key consideration, of course, is whether doing so will help the court to understand the issues before it. If you are

the respondent, do not feel obliged to accept the appellant's questions presented; you are free to rewrite or restructure them.

§ 3.4-1(c) Concise, Persuasive Summary of Argument

Your summary of argument should use as few words as possible to cover your key arguments, but should be long enough to persuade. A succinct summary—one that is just a page or two long—generally is ideal. Exceptional cases may warrant a longer summary.

If space permits, lead with a general statement that puts the whole argument in perspective. In a perfect world, your summary will identify the crucial facts and legal principles that make your position compelling and will also give the court a reason to *want* to rule for your client. If ruling for your client is absolutely required by statutory text or existing case law, make that clear. If you can explain in a sentence or two how ruling against your client will produce an illogical outcome, create drastic repercussions in other cases, or confuse the law, do so. This may be the last thing the judges review before oral argument, so make your case to the extent that space permits.

Similarly, if a seemingly powerful argument on the other side will intrigue the court, address it succinctly in your summary. It is better to inform the court up front that you have a response to that argument than to leave the judges wondering whether your brief will address it.

If presenting or responding to multiple assignments of error, consider using subheadings for easy reference.

Unless a particular appellate decision is absolutely dispositive, omit case citations. There is also no need to include record citations.

> PRACTICE TIP: Consider using a summary of argument in appellate motions or petitions for reconsideration, even though court rules do not require them.

§ 3.4-1(d) Concise, Engaging Summary of Facts

ORAP 5.40(9) requires a summary of the facts that are "material to determination of the appeal." Your summary of facts should tell a concise story. The court will appreciate a summary that includes only those facts that pertain to the questions presented on appeal. At the same time, you need to provide enough context to enable the court to assess the correctness of the rulings at issue and

whether those rulings affected the outcome. Particularly in complex cases, consider providing a high-level overview of the facts—essentially, telling the big-picture story—to give the reader background against which to place all of the details that follow.

Do not assume that presenting the facts in the same order that they were presented below is helpful to the court. Present them in the order that makes logical sense and that best helps the court to understand the case and the issue on appeal. Provide citations to the record.

Present the facts in a way that is appropriate, given the standards of review that apply to your assignments of error. For example, if you are challenging the trial court's denial of your motion for a directed verdict, keep in mind that the appellate court will review the evidence in the light most favorable to the nonmoving party, that is, your opponent. *Peterson v. McCavic*, 249 Or App 343, 350, 277 P3d 572, *rev den*, 352 Or 564 (2012). Consequently, if you describe the facts in the light most favorable to your client, the court is likely to view your summary of the facts as unhelpful.

Although you should attend to the standard of review, and although ORAP 5.40(9) requires your fact summary to be "without argument," your summary nonetheless provides an opportunity to alert the court to facts that make your legal position sympathetic. If a fact is particularly helpful to you, do not bury it inside a long paragraph. Do what you can to highlight it, whether that means placing it prominently within a short paragraph, providing a subheading that further emphasizes it, or using a direct quotation to further call the court's attention to a juicy bit of testimony. "Without argument" does not mean "sterile."

Consider using nonargumentative yet informative subheadings in your summary of facts. Headings can make it easier for the court to find particular facts later on and help to break up long passages that might otherwise bog down the reader.

A respondent who disagrees with a significant portion of the appellant's summary of facts should provide his or her own complete summary, rather than a litany of difficult-to-follow corrections. If you provide a supplemental summary, begin with a sentence or two explaining why you are doing so and giving a big-picture description of your disagreements with the appellant.

§ 3.4-1(e) Appellant's Selection and Order of Assignments of Error

As the appellant, select assignments of error carefully, and present them in the order that is most persuasive. Lead with your strongest argument, making sure that your assignment of error identifies the precise ruling that you challenge. ORAP 5.45(3). If you lead with a weaker argument, the court—by the time it reaches your stronger arguments—may view your arguments more skeptically than it otherwise would.

In your "preservation of error" section, in addition to identifying how the issue was preserved and how the lower court ruled, consider identifying the rationale that the court relied on. If that rationale is too lengthy to quote in the brief, consider including the court's letter opinion, or a pertinent portion of the transcript, in your excerpt of record. Some appellate judges find that information helpful.

§ 3.4-1(f) Responding to Assignments of Error

If you are the respondent, do not feel obliged to respond to the assignments of error in the order that they appear in the appellant's brief. Respondents may and should respond to assignments of error in the order that is most logical and persuasive. If, for instance, the court can dispose of the entire appeal by agreeing with your response to the third assignment of error, respond to the third assignment before addressing the first and second assignments. If you respond to assignments of error out of order, acknowledge that you are doing so and tell the court why.

Feel free to present a combined argument that responds to multiple assignments of error, if doing so will avoid repetition and make for a more logical argument. Here, too, be sure to tell the court why you are doing this.

§ 3.4-1(g) Identify the Appropriate Remedy

If you are the appellant, identify the precise remedy that you want the court to provide. At a minimum, do this in your summary of argument and in your conclusion. A single sentence generally will suffice. Occasionally, the appropriate remedy (for example, the scope of the trial court's authority on remand) is a key issue in the case and should be discussed at more length.

If you are the respondent and you disagree with the appellant's proposed remedy in the event that the court reverses, make that clear. If you fail to do so and

lose, and if the court orders a remedy that you deem inappropriate, your only recourse will be to file a petition for reconsideration.

§ 3.4-1(h) Petition for Reconsideration

Petition for reconsideration in the Oregon Court of Appeals sparingly. A petition for reconsideration "shall be based on" a "claim of factual error in the decision," a "claim of error in the procedural disposition of the appeal," a "claim of error in the designation of the prevailing party or award of costs," a "claim that there has been a change in the statutes or case law since the decision," or a "claim that the [court] erred in construing or applying the law" (although arguments already made in the briefs "and addressed by the [court] are disfavored"). ORAP 6.25(1).

In short, a petition is most likely to be effective if the court (1) flat-out failed to address an argument that you made (which is different from the court acknowledging the argument and rejecting it without discussion); (2) made a fundamental and indisputable legal or factual error; or (3) made a mistake about the appropriate disposition of the case. A petition may also be worthwhile if you do not expect to get a different result, but are hoping the court will clarify something in its opinion that will aid your efforts to obtain Oregon Supreme Court review.

§ 3.4-2 Briefing in the Oregon Supreme Court

§ 3.4-2(a) Purpose of a Petition for Review

The purpose of a petition for review is not to persuade the court that your client should prevail, but to persuade it to accept review. The Oregon Supreme Court generally allows only about 10 percent of petitions for review filed. Thus, you should view the petition as a marketing tool of sorts. Your goal is not necessarily to convince the court that your ultimate legal position is correct, but to make the legal question presented look so important, novel, or intriguing that the court will feel compelled to weigh in. Familiarize yourself with ORAP 9.07's list of nonexclusive criteria that the court deems "relevant to the decision whether to grant discretionary review," but do not feel obliged to clutter your petition by quoting the rule.

The Oregon Supreme Court views itself as a law-announcing court and not an error-correcting court. In other words, it does not particularly care if the Oregon Court of Appeals wronged you, or even made a legal misstep, unless you can

persuade the court that the error will affect others adversely. Present your arguments with this in mind. Your petition should be heavily weighted toward convincing the court that the question presented is review-worthy. You are not required to brief the merits of the legal question at all, and if you do provide such argument, you should keep it short. *See 1000 Friends of Oregon v. Bd. of Co. Comm.*, 284 Or 41, 584 P2d 1371 (1978).

Although facts correctly stated in the decision of the court of appeals should not be restated, ORAP 9.05(4)(a), it is appropriate to correct or add to that court's statement or to present a brief statement highlighting facts important to your argument. Whether or not you accept the court of appeals' statement of facts, keep your statement short. Devote as many of your 5,000 words as possible to the reasons review is appropriate, and do not distract the court with an unnecessarily lengthy factual recital.

> PRACTICE TIP: Consider using the first page of your petition (and no more than a page, if possible) to provide a brief summary of the issue presented and of why the court of appeals' decision is sufficiently important or interesting to warrant review. The Oregon Rules of Appellate Procedure do not require or refer to such an introductory section, but they do not prohibit it. Using the first page to describe the case's significance lets you capture the court's interest even before the court reads your summary of facts (which, by rule, precedes the questions presented and the section describing why review is warranted).

§ 3.4-2(b) Responding to Petition for Review

If you prevailed in the court of appeals and your opponent files a petition for review, you need to consider whether to file a response. Respond to your opponent's petition for review only if doing so will not pique the Oregon Supreme Court's interest. If you do file a response, your goal is to make the case look as boring, unimportant, and fact-specific as possible.

The supreme court does not necessarily review the court of appeals briefs before granting review. If your court of appeals briefing identified a preservation problem, or some other procedural obstacle that should keep the supreme court from reaching the legal issue in the petition, consider filing a response that alerts the court to that obstacle (if the petitioner has not done so). That kind of concise response can help you avoid the frustration associated with litigating a case in the

supreme court only to have that court later dismiss review as improvidently granted.

Although *amicus* participation supporting a petition can help persuade the court that the question presented is review-worthy, recruiting *amicus* support to oppose a petition is a bad idea, because it is likely to convince the court that the petition raises an issue of widespread interest and significance.

§ 3.4-2(c) Writing the Brief on the Merits

Once review is allowed, your brief on the merits should tell the court why you should win. By the time you reach the supreme court, the issues may have narrowed so much that the pertinent facts—those that need to be summarized for the court—are also narrow. In most cases, an extremely concise summary of facts will be appropriate (and appreciated by the court). *See* ORAP 9.17(2)(b)(ii)(B) (requiring a "concise statement" of "the facts of the case material to determination of the review"). If the court of appeals accurately summarized the pertinent facts, feel free to quote from those facts.

Many advocates waste their energy citing and discussing court of appeals' case law at length. The supreme court is unlikely to find those discussions useful, unless you are addressing a conflict among court of appeals cases or describing why the court of appeals' reasoning on an issue of first impression is persuasive. With these exceptions, the court is generally interested only in its own case law, and in the most compelling and logical arguments you can make to address the provisions of law at issue in light of the appropriate methodology. If the issue is one of statutory construction, for example, apply the methodology described by *State v. Gaines*, 346 Or 160, 206 P3d 1042 (2009); if the issue is one of state constitutional construction, apply the methodology described by *Priest v. Pearce*, 314 Or 411, 840 P2d 65 (1992). *See generally* *Interpreting Oregon Law* (OSB Legal Pubs 2009).

The court is free to revisit its own decisions if the criteria for doing so have been satisfied. *See Ass'n of Unit Owners of Timbercrest Condominiums v. Warren*, 352 Or 583, 598, 288 P3d 958 (2012) (revisiting and overruling earlier cases that reflected "no attempt to apply the usual rules of statutory construction or to assess thoroughly the interplay between the relevant rules and statutes," and stating that "[p]articularly when we 'failed to apply our usual framework for decision or adequately analyze the controlling issue,' we must be open to reconsidering earlier

case law" (quoting *Farmers Ins. Co. of Oregon v. Mowry*, 350 Or 686, 698, 261 P3d 1 (2011)); *Stranahan v. Fred Meyer, Inc.*, 331 Or 38, 54, 11 P3d 228 (2000) (identifying circumstances in which court will reconsider earlier decisions construing state constitution). If you wish the court to reconsider a prior decision, be sure to invoke and discuss those criteria.

The court will be greatly interested in knowing what the ramifications will be—for other cases, and for other areas of the law—if it rules in your favor. If adopting your opponent's position will result in a "parade of horribles" in other cases, or will unsettle the law in a way that will confuse trial courts and advocates, point that out.

Be sure to respond to the arguments in any *amicus* briefs filed in support your opponent's position.

§ 3.4-3 Amicus Briefs

§ 3.4-3(a) Who Can File *Amicus* Briefs

Amicus briefs are often submitted by interest groups or trade associations with a generalized interest in the legal question. But an *amicus curiae* can also be an individual with a pending case that will be affected by the outcome of an issue on appeal.

Amici are not expected to be totally disinterested in the outcome of the case. *See Funbus Sys., Inc. v. State of Cal. Pub. Utilities Comm'n.*, 801 F2d 1120, 1125 (9th Cir 1986). But *amici* need not be aligned with one of the parties. For example, an *amicus* brief may advocate a rule of law favored by the petitioner without agreeing that the petitioner will prevail under that rule.

In the Oregon appellate courts, an *amicus* brief can be filed by any group or individual that has obtained leave of the court. ORAP 8.15(1). The State of Oregon may appear in any Oregon case without seeking permission. ORAP 8.15(9). The only specific limitation in the rules is that the *amicus* brief must be filed by an active member of the Oregon State Bar. ORAP 8.15(2).

§ 3.4-3(b) What *Amici* Can Offer

Although ORAP 8.15 includes detailed rules governing the filing of *amicus* briefs, the rule provides little guidance on when the appellate courts will find such briefs helpful. In addition to considering the material in this chapter, lawyers who are thinking about soliciting *amicus* support or filing *amicus* briefs themselves may

find it helpful to consult with advocacy groups that frequently file *amicus* briefs in Oregon's appellate courts.

§ 3.4-3(b)(1) Supplementing, Not Supplanting, the Work of the Parties' Lawyers

The participation of *amici curiae* should not be viewed by either an *amicus* or a party as a substitute for the party's need to file a competent brief on appeal. The "classic role of amicus curiae" is, "in a case of general public interest, supplementing the efforts of counsel, and drawing the court's attention to law that escaped consideration." *Miller-Wohl Co., Inc. v. Comm'r of Labor & Indus. State of Mont.*, 694 F2d 203, 204 (9th Cir 1982).

> PRACTICE TIP: This role is less relevant for cases in the Oregon Court of Appeals, which are often decided on their particular facts. But in cases presenting a significant new issue of law, *amicus* briefing at the court of appeals level can make a difference.

§ 3.4-3(b)(2) Encouraging a Grant of Discretionary Review

The most significant opportunity for *amicus* participation may be in support of a petition seeking review by the Oregon Supreme Court or the United States Supreme Court, where the decision to allow review is discretionary. The presence of *amici* at this stage draws attention to the significance of the issues and (ideally) helps assure the court that the legal arguments will be well presented if it accepts review. The availability of *amici* "to advise the court" is specifically listed as one of the factors the Oregon Supreme Court considers in granting review. ORAP 9.07(16).

§ 3.4-3(b)(3) Participating at Oral Argument

Amici may present oral argument if permitted by the court on motion. ORAP 6.10(2). See § 4.1-2(c) for discussion of splitting oral argument with *amici*.

§ 3.4-3(c) Guidelines for Effective *Amicus* Briefs

Although *amici curiae* are often aligned with the position of one of the parties, simply telling the court which party should prevail is not helpful to the court or the parties. An effective *amicus* brief presents relevant information different from that presented by the parties, without straying too far from the issues and arguments presented by the parties.

§ 3.4-3(c)(1) Supplementing the Contributions of the Parties

An *amicus* brief can fill a variety of helpful roles. On an issue of statutory construction, *amici* can supply a detailed legislative history that may not have made it into the parties' briefs. On a case inviting the Oregon Supreme Court to modify or apply a rule of common law, an *amicus* brief can provide a comprehensive recitation of pertinent case law from other jurisdictions, detail that might be beyond the scope of a party's brief. An *amicus* brief can also provide the court with information that is relevant but would be out of place in a party's brief, such as summaries of psychological literature on the effects of sexual abuse or statistics on racial discrimination. The Oregon Supreme Court's decision in *State v. Lawson*, 352 Or 724, 291 P3d 673 (2012), provides a recent example of a case in which the court extensively cited to scientific studies provided by *amici*.

> PRACTICE TIP: Briefs providing extralegal information, so-called Brandeis briefs, are less common in the Oregon courts than in the United States Supreme Court, and the Oregon courts rarely rely on such extralegal authorities to decide cases. But on the right issue, that kind of context can be helpful to the court. *See Lawson*, 352 Or at 739–46.

§ 3.4-3(c)(2) Relevant to the Case on Appeal

Particular attention should be given to the court's need for *amicus* briefs to present information relevant to the posture of the case before the court. *See, e.g.*, *Rogers v. RGIS, LLP*, 232 Or App 433, 434, 222 P3d 710 (2009), *rev den*, 348 Or 291 (2010) (agreeing with the defendant that the court should not consider a question raised by *amicus* that "was not assigned as error by plaintiff and is not a question that can be considered, for the first time, in a petition for reconsideration"); *see also Artichoke Joe's California Grand Casino v. Norton*, 353 F3d 712, 719 n 10 (9th Cir 2003), *cert den*, 543 US 815 (2004) ("In the absence of exceptional circumstances, which are not present here, we do not address issues raised only in an amicus brief.").

§ 3.4-3(c)(3) Going Beyond the Issues or Arguments Presented by the Parties

There are exceptions to the general proposition that *amicus* briefs should address only the issues raised by the parties. In cases involving statutory construction, the courts may be open to an *amicus* brief raising an entirely new argument because of the court's independent obligation to correctly interpret the

statute. *See Stull v. Hoke*, 326 Or 72, 77, 948 P2d 722 (1997) ("In construing a statute, this court is responsible for identifying the correct interpretation, whether or not asserted by the parties.").

In some cases, it may be important for *amicus* to point out a key issue the parties have missed or a problem that could arise if the proposed rule of law is applied in other contexts, regardless of whether the court will reach the issue. The goal of *amicus* in such a case may simply be to encourage the supreme court to affirm on grounds other than those of the court of appeals, or to drop a footnote that the decision may be limited to its context.

> PRACTICE TIP: In the interest of effective advocacy and preserving credibility with the court, counsel preparing *amicus* briefs should clearly articulate the justification for raising an issue or argument beyond the scope of the case presented by the parties.

§ 3.4-3(d) Technical Requirements for Appearing *Amicus*

The technical requirements for appearing as *amicus curiae* are primarily found in ORAP 8.15.

Those wishing to appear as *amicus* in the Oregon appellate courts must file an application to appear that contains no argument on the resolution of the case and that complies with the format requirements for motions on appeal, set forth in ORAP 7.10(1) and (2). ORAP 8.15(1)–(2). The application must set forth "the interest of the person in the case" and "whether the applicant intends to present a private interest of its own or to present a position as to the correct rule of law that does not affect a private interest of its own." ORAP 8.15(1).

Applications to appear may be filed either electronically or conventionally. If filing conventionally, *amicus* must file the original and one copy of the application to appear. A copy of the application must be served on all parties to the proceeding. ORAP 8.15(2).

In the Oregon Court of Appeals, the application for leave to appear as *amicus* can be filed with the brief or before the brief. ORAP 8.15(3).

In the Oregon Supreme Court, the application must be accompanied by the proposed brief. ORAP 8.15(3). However, if the court has already allowed *amicus* to appear at the petition stage, *amicus* does not need additional leave to file a brief on the merits. ORAP 8.15(5)(d).

In the Oregon Court of Appeals, *amicus* briefs are due seven days after the due date for the brief of the party with whom *amicus* is aligned or seven days after the due date for the opening brief if *amicus* is not aligned with either party. ORAP 8.15(4). In the Oregon Supreme Court, an application to appear as *amicus* in support of or in opposition to a petition for review must be filed (along with the *amicus* brief) 14 days after the petition for review is filed. ORAP 8.15(5)(b). In a case that the supreme court has accepted for review, the *amicus* brief must be filed:

- on the due date for the merits brief of the party with whom *amicus* is aligned,
- on the due date of the petitioner's brief on the merits if *amicus* is not aligned, or
- if the petitioner has filed notice that the petitioner does not intend to file a merits brief or has filed no notice, 28 days after review is allowed.

ORAP 8.15(5)(c).

The specified deadlines can be extended with leave of the court. ORAP 8.15(4)–(5). The Oregon courts will generally allow reasonable requests for additional time, and even allow leave from default if *amicus* misses one of the deadlines. However, once the supreme court has allowed review, opportunity for extensions of time is limited for *amicus*—just as it is limited for the parties—by the need to complete all briefing sufficiently in advance of the scheduled oral argument date.

> PRACTICE TIP: Regardless of the court's potential willingness to grant extensions, if *amicus* wishes to file a brief in support of review in the Oregon Supreme Court, the risk of delay is that the supreme court will deny review before it has the benefit of the arguments *amicus* wishes to offer.

§ 3.4-3(e) The Brief

The brief filed by *amicus* must generally comply with the same rules as those governing briefs of parties. ORAP 8.15(3). In particular, *amicus* briefs are subject to the same word restrictions as the brief for a party: 5,000 words for a petition for review, 14,000 words for a brief at the supreme court, and 10,000 words for a party's primary brief in the court of appeals. ORAP 5.05(2)(b)(i), ORAP 8.15(3), ORAP 9.05(3)(a).

§ 3.5 LAST THINGS

Do the following before filing your brief:

- Check your citations. Confirm that you are accurately quoting and citing the record and the law, and confirm that the law you cite is still good law.
- If at all possible, have someone else read your brief for clarity and to catch typos.
- If you must rely on yourself to proofread, set the brief aside for 24 hours or more; then read it again.

Appendix 3A Example of Argument Headings

Example 1

I. Plaintiffs do not have a constitutionally protected property interest in the renewal of their wrecker certificate.

II. The enactment and application of Ordinance 2808 did not violate Plaintiffs' equal protection rights.

III. Plaintiffs cannot prevail on a § 1985 conspiracy claim.

A. Plaintiffs' civil rights were not violated.

B. Plaintiffs have not produced admissible evidence of a conspiracy or of acts in furtherance of a conspiracy.

C. Plaintiffs' conspiracy claim against the city and city employees is precluded by the intracorporate conspiracy doctrine.

IV. Issue preclusion estops Plaintiffs from claiming that state laws preempt Defendants' attempts to regulate auto wrecking yards.

V. The trial court properly dismissed Plaintiffs' state tort law claims.

VI. The district court did not err in dismissing individual defendants Black and Brown.

Example 2

I. The standard of review is for any evidence to support the trial court's findings of fact.

II. Plaintiff failed to file his complaint within the applicable statute of limitations.

    A. Plaintiff had actual knowledge of harm before January 1, 1998.

    B. Causation is not an issue on appeal, and even if it were, Plaintiff knew or should have known of the possibility of a causal link between Defendant and the window problems by January 1, 1998.

    C. Plaintiff knew or should have known of the possibility of tortious conduct by January 1, 1998.

III. None of Plaintiff's arguments supports the conclusion that his complaint was timely filed.

COMMENT: *See* § 3.3-2(e)(1).

Chapter 4: EFFECTIVE ORAL ADVOCACY

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§ 4.1 ARGUMENT IN THE COURT OF APPEALS

"May it please the court." Some lawyers feel a rush of excitement as they speak those words, knowing that the next 15 minutes will be some of the most exhilarating they experience as appellate advocates. Other lawyers utter those words with apprehension, dreading what they anticipate will be a barrage of questions from the judges. This chapter provides information that will help lawyers prepare for oral argument, learn to anticipate the sorts of questions judges may ask, and ultimately become more effective oral advocates.

The discussion in this chapter is directed to the reader who already is familiar with the basic rules and formalities associated with appearing in the Oregon Court of Appeals. We recommend that lawyers who have not previously appeared in that court, or who have not done so in several years, review the materials in chapter 7 of *Appeal and Review: The Basics*, which provides an excellent introduction—in the author's own words, "a primer for attorneys with limited or no oral argument experience before the Oregon state appellate courts." *Appeal and Review: The Basics* § 7.1 (OSB Legal Pubs 2010).

§ 4.1-1 Thinking about Oral Argument

§ 4.1-1(a) The Court of Appeals' Internal Practices

A lawyer who is preparing for oral argument in the Oregon Court of Appeals naturally will focus on what he or she hopes to accomplish during the 15 minutes of argument time. The lawyer also should bear in mind, however, what the judges hope to gain from oral argument, since understanding the judicial perspective can lead to more effective preparation and increase the odds that the lawyer will have a good "conversation with the court" (more on that point in § 4.1-1(c) and § 4.1-3(a)). In addition, lawyers appearing in the court of appeals should appreciate what information the judges have—and do not have—at the time of oral argument. That understanding is critical to making the best use of the short argument time. With only 15 minutes to interact with the judges, the lawyer should neither spend much time repeating what the judges already know from the briefs nor make a presentation that assumes the judges are familiar with information that, in fact, they do not have at that point in the process.

Let's start with this basic question: What do the three judges on a panel know about the case when they walk into the courtroom? The short answer is that the judges are very familiar with the briefs (including excerpts of record and appendices) but probably have little information about the case beyond what is in those materials.

Here's why: Each of the court's three-judge merits departments usually hears oral arguments on two or three days every month. Generally speaking, from 10 to 20 cases are set for argument on each of those days, although the number can vary depending on the mix of cases being set. About two weeks ahead of a scheduled oral-argument day, the judges receive the briefs for all of the cases in electronic form, not on paper. (Usually, the judges receive the briefs as PDF documents.) In the days leading up to oral argument, each judge reads all of the briefs and reviews the attached materials, that is, the excerpts of record and any appendices. Given the number of cases heard each day, that almost always amounts to several hundred pages of reading, sometimes well over a thousand.

As discussed in chapter 3, Effective Written Advocacy, lawyers should keep in mind the circumstances in which court of appeals judges do much of their reading in advance of oral argument. Judges may read the briefs at home, while traveling, or while away from the office for other reasons. Because the judges

generally do not have printed copies of the briefs, they will be reading on computer screens or electronic tablets. And they usually are not working in law libraries, so they may have to do online research to find the statutes, administrative rules, and other legal materials that are discussed in the briefs—unless the lawyers helpfully have included those materials in the appendices.

Most judges make detailed notes while reading the briefs in preparation for oral argument, either in separate documents or by annotating the electronic versions of the briefs. A few judges also have student externs or law clerks summarize some of the cases. It is important to understand, however, that those summaries are not analogous to the substantive bench briefs or bench memos that are common in some other appellate courts, like the Ninth Circuit Court of Appeals, and that often include a clerk's or staff attorney's preliminary assessment of the parties' arguments. Rather, any case summaries provided to Oregon Court of Appeals judges before argument usually do little more than provide the judge with a brief outline of the parties' arguments, which the judge can use as a reference and as a place to write notes during oral argument.

> NOTE: Lawyers who argued in the court of appeals before the advent of e-filing may recall that the judges carried stacks of paper briefs into the courtroom, and often had covered the fronts of those briefs with detailed notes about the cases. Those days of printed briefs are gone; judges rarely see a true "blue brief" or "red brief" anymore except in the cases that are assigned to them for opinion drafting. The judge who is assigned to draft an opinion for publication generally will have access to one printed set of the briefs, excerpts of record, and appendices filed in a case.

Before each argument setting, the judges on the panel meet briefly to discuss the cases they are about to hear. The judges may discuss their preliminary impressions of the parties' arguments, including their strongest and weakest points, and also may identify areas in which the briefs seem unclear or ambiguous. Those discussions often foreshadow questions that the judges will ask during the upcoming arguments.

To sum up: Before argument, the judges will have read the briefs, excerpts of record, and appendices. They will have identified those parts of the parties' arguments that they feel need clarification or further exploration. And they may

have reviewed key statutes or other sources of law, particularly if the lawyers had the foresight to include those materials in the appendices to their briefs.

Just as important to understand, however, is what the judges probably will *not* have done. Except for what the parties have included in the briefs or excerpts of record, the judges very rarely will have reviewed the transcript, trial-court file, or exhibits. The judges generally do not have access to those materials until after oral argument. Accordingly, a lawyer who wants the judges to refer to portions of the record during oral argument should bring printed copies of the pertinent documents to the courtroom and speak to the bailiff, ahead of the scheduled 9:00 a.m. or 1:30 p.m. argument time, about the appropriate way to provide those documents to the judges and opposing counsel.

> PRACTICE TIP*:* When you are preparing for argument, start by reviewing only those materials that the parties have provided the appellate judges. As you read the briefs, do you feel a need to look at something outside those materials—perhaps a complicated statute that is only partly quoted in the briefs, or a map or photograph that nobody thought to put in an excerpt of record? If so, the judges probably wish they had those materials, too. Consider providing copies of them at oral argument. (Keep in mind that although the supreme court courtroom has complete sets of statutes and Oregon cases that the judges can access during argument, the court often sits in other courtrooms in which those volumes are not available.)

§ 4.1-1(b) The Judges' Goals for Oral Argument

On any court, judges hold a wide variety of views about the utility of oral argument. Some judges say it rarely influences how they vote to decide a case; others report that it affects their decisions in a significant minority of cases argued. Still other judges believe that argument rarely shifts their vote on the ultimate outcome, but acknowledge that how the parties frame the issues during oral argument often influences the way in which the judges write opinions. What happens during a court of appeals argument certainly can affect the court's decision whether to affirm a lower court's or agency's decision without published opinion (AWOP) or to write an opinion in the case.

Some common themes do emerge in conversations with judges about what they hope to accomplish during oral argument. Judges view argument as their sole opportunity to question the advocates—to engage in a dialogue with the lawyers

instead of merely being on the receiving end of the lawyers' monologues. Because of that, and because 15 minutes go by so quickly, judges may not allow lawyers much time to deliver prepared arguments—which too frequently are only variations on the monologues already delivered in the briefs—before the judges start asking questions.

A primary goal that judges have in questioning lawyers is to clarify what the parties are arguing, in the most basic sense. Before the judges start evaluating the merits of the parties' arguments, they need to understand what those arguments are. For example, the judges want to know exactly which trial-court rulings the appellant is challenging, and on precisely what grounds. If the appellant's brief is vague, ambiguous, or internally inconsistent in that respect, judges are likely to ask clarifying questions before they address the substance of the appellant's arguments.

Court of appeals judges also may not immediately dive into the merits of a case if the briefs have not made clear what issues are properly before the court, and by what standards the appellate judges will review the lower court's rulings on those issues. If the briefs leave the court with questions about whether arguments were preserved for appeal, or what standards of review apply, judges are likely to use argument time to clarify those points.

In addition, court of appeals judges may ask questions related to their general desire to resolve cases in the most straightforward way possible, without addressing more issues than is necessary (a desire that is grounded both in jurisprudential principles and in workload concerns). Judges sometimes refer to this as looking for the "first principled door out" of a case. Accordingly, judges may ask questions aimed at clarifying how the various arguments presented in a party's brief relate to each other. Essentially, the judges are trying to picture the flowchart that shows the relationships between all of those arguments, with the hope of discerning the simplest path from one end of the chart (the assignments of error) to the other (disposition of the appeal). If those analytic pathways are not clearly described in the brief, the judges probably will ask questions on that point.

Beyond clarifying the contours of the parties' arguments and how they interrelate, judges view oral argument as a time to explore the strengths and weaknesses of those arguments. By asking probing questions, the judges intend to give each lawyer an opportunity to make the best case possible for his or her client. Judges may want to know how a party's arguments can be reconciled with (or

distinguished from) existing case law, or if the party can prevail only if some precedent is overruled. In a case that centers on statutory interpretation, judges might ask how a lawyer's proposed construction of a particular provision makes sense in the context of the statutory scheme as a whole. Or a judge might ask a hypothetical question designed to reveal whether a lawyer's argument remains sound when pushed to its logical conclusion. In all of those circumstances, the judge's goal is to make sure that the lawyers have been confronted with any potential weaknesses in their arguments and have had a fair chance to respond.

> PRACTICE TIP: Because the judges will have read the briefs before argument, experienced oral advocates generally spend little time repeating the points they've already made in their briefs. Instead, they focus on responding to their opponent's arguments. Indeed, some of the most compelling oral arguments are those in which the lawyers start by acknowledging their opponents' strongest points and then making their best arguments in response.

Judges also use oral argument as an opportunity to explore the implications of the positions that the parties advocate. In resolving a case, judges must decide whether to publish an opinion (instead of AWOP a case in which the lower court's judgment will be affirmed) and, if they do issue a written opinion, must consider how that published discussion of the law will affect future cases. Those concerns often prompt judges to ask big-picture questions of the lawyers that go beyond the details of the particular case at issue. Thus, if a lawyer's argument is focused mostly on the pertinent facts and the outcome the lawyer advocates, a judge might ask the lawyer what legal principle would lead to that desired result. Indeed, some judges will ask lawyers to articulate the rules of law they think the court should announce in its opinions.

In addition to helping judges better understand the parties' arguments and their implications, oral argument also gives appellate judges an opportunity to get the benefit of their colleagues' thoughts. Because the court of appeals sits in three-judge panels, each judge is able to listen to exchanges that might not have occurred if that judge were the only one asking questions. Many judges go into argument with the goal of breaking out of any "tunnel vision" or "bubbled thinking" they may have developed around the issues in a case.

§ 4.1-1(c) The Advocates' Perspective

Whether appellant or respondent, the appellate advocate must consider several important goal-related questions before he or she even begins preparation for oral argument.

What goals do I have for oral argument?

An appellate oral argument is the one and only opportunity that an advocate has to have a conversation about the case with the judges who will decide it. The primary goal of the oral argument is to address questions or concerns that the court may have about your case or the legal position that you are advancing. The entire argument should be planned to draw out the judges' thinking about the case so that you can address the issues that concern the court. You cannot overcome a judge's objection or doubt about your legal position if you do not have an opportunity to address it. Questions, even those that seem hostile or that are difficult to answer effectively, are the advocate's friend. They are a window into the thinking of the court as it begins to decide the case. An advocate's objective in an appellate argument should be to achieve a state of respectful intellectual equality with the members of the court. The best appellate arguments are a conversation between the advocates and the court.

In every appeal, whether representing the appellant or the respondent, the goal is to win the case. Winning often requires more than simply obtaining an affirmance or a reversal. The scope and terms of a remand and the rules that a court lays down in its decision can be critical to measuring a client's success or failure. If you represent the appellant in the Oregon Court of Appeals, the first benchmark that you must meet is to persuade the court that the questions raised by the appeal warrant the preparation of a written opinion, rather than a decision affirming without opinion (AWOP). The appellant cannot win without an opinion. In one of the busiest appellate courts in the United States, persuading the court to spend its extremely limited resources writing an opinion in your case requires a lucid and compelling argument that there was error below, and, given the standard for review, that the court can fix it. The court usually will make the decision to AWOP or not in a vote immediately after argument.

What can I reasonably hope to accomplish in 15 minutes?

At least one party must request oral argument, or the case will be submitted and decided without oral argument (unless the court directs otherwise). If oral

argument is requested, it will be scheduled for 15 minutes per side unless the court orders otherwise. ORAP 6.05(1)(a), ORAP 6.15(2)(a). With only 15 minutes, the challenge is to reduce the inevitable complexity of the dispute to a theme, an idea, some key evidence, or a legal principle—not unlike reducing your case in a jury trial to a central story.

With only 15 minutes, you must pick the most important one or two issues to address. That requires anticipating what dispositive issues will prompt questions from the court. Since you may guess wrong, you must be prepared to field questions about anything briefed and, sometimes, things implicated but not briefed—like the effect of the standard of review on an issue.

In many cases, the challenge of presenting your argument, defending your position, and answering the court's questions in a meaningful way is simply too big a task for a 15-minute argument. The court of appeals can and will allow motions to enlarge the time for argument. Do not be afraid to ask. But before you ask for more of the court's time, think carefully about whether you will be able to put the extra time to good use. In appropriate cases, the parties (and the court) will usually agree that more time (usually 30 minutes per side) would be helpful. If you cannot draft a short motion that explains in compelling terms why more time is needed, you probably don't need the extra time.

Preparing for a 15-minute argument does not take less time than preparing for a longer argument. Regardless of the time allowed, you must be prepared to address any question that may arise, you must be familiar with the arguments and the record, and you must have devised a plan for presenting your key points as simply and clearly as possible.

Regardless of the time allowed for the argument, do not feel compelled to use all of your allotted time. When you have addressed the few issues that you plan to address, responded to the arguments of opposing counsel, and answered all of the questions you could draw out of the court, sit down. The court will thank you for it.

What should I be thinking about when reviewing my briefs before argument?

You should ask yourself how best to summarize, without tiresome repetition, your arguments, how to overcome the adversary's arguments, and how the court will look at the issues. You should watch for better ways to express the arguments and be on the lookout for flaws in the rationale or weak spots in the record. And

you should be alert for new decisions that might warrant citation in a memorandum of additional authorities.

Oral argument may not take place until several months after the last brief is filed. There is a good chance that you will not have read the briefs or thought about the issues for quite some time when you first begin to prepare for argument. This is an opportunity to look at your case with fresh eyes. Read the briefs critically. What are the weaknesses in your case? Which of your opponent's arguments ring true despite your response? What are the key issues that you must absolutely prevail on to win your case? Most importantly, what are the hard questions that you will have to be prepared to answer when you get to the podium?

Is it ever appropriate to waive oral argument?

Rarely, if ever, is it appropriate to waive oral argument. It might be appropriate to waive oral argument when an adversary does likewise, and particularly when the case is an appeal of an administrative matter or other modest proceeding in which the parties can ill afford added legal fees involved with oral argument. In general, however, if a case is important enough to brief, it is important enough to argue.

At a minimum, it is worth appearing if only to offer to answer the court's questions. You might mistakenly assume that the court would be satisfied with the briefing. But the court may have a dispositive question for oral argument that is better addressed, rather than left unanswered.

What do the judges think about cases in which the parties waive oral argument?

In some cases, the judges may think nothing more about parties waiving argument than to have respect for parties that appear to have tight litigation budgets. Court of appeals judges may understand a party's decision to forgo argument in a case that is controlled by supreme court precedent adverse to the party's position, and in which the party simply hopes to get the issue before the supreme court in a later phase of the appeal. In an obviously weak appeal, a judge might surmise that the decision to forgo argument may reflect the lawyer's own assessment of the merits of the case. In many cases, however—particularly when the briefing is unhelpful—waiving argument may make the case more difficult for the court to decide, possibly causing frustration for the judges and their staff.

§ 4.1-2 Preparing for Oral Argument

Preparing for oral argument is as important as writing the brief. The appellate advocate must take a number of important steps to ensure complete and effective preparation. Within each step, the advocate should consider several important questions.

§ 4.1-2(a) Becoming Reacquainted with the Case

How familiar should I be with the content of the briefs and excerpts of record?

A thorough knowledge of the case is the advocate's greatest tool. No advocate can ever know the inner workings of the court, the personalities of the judges, their attitudes toward the legal issues, or how those issues relate to pending cases as well as the members of the court. Even the best advocate begins the conversation at a distinct disadvantage, because it is the judges who get to decide the case, and it is the judges who get to ask the questions. The one advantage that the advocate has is that the court will not be as familiar with the case as he or she is. No one in the courtroom should be more familiar with the record or the arguments than you as the advocate. The appellate advocate should know the briefs, the key cases, and the excerpts of record as well as a favorite family photo. Knowing the case allows the advocate to be the expert in the room concerning the details. Your arguments will have added credibility if the court knows that it can rely on your familiarity with the record and the applicable law. Conversely, if it is apparent that you do not know your case thoroughly, the court will be inclined to discount or ignore your carefully crafted points.

How familiar should I be with the parts of the record that are not included in the excerpts?

No one in the courtroom should be more familiar with the record than you. You should become familiar with the record at the briefing stage, and the pertinent portions of the record should be addressed in the briefs or included in the excerpt of record. The court will not have access to the trial court file or the transcript at oral argument. If you want the court to see certain exhibits or read certain testimony, it must be included in your filings. When you review the briefs as you begin to prepare for argument, any reference in the briefs' summaries of facts should drive you back to the transcript or the exhibits to review the information in

its source context. If it was worth citing in the brief, it is worth checking again in preparation for oral argument.

Sometimes whole sections of a trial transcript or some proceedings are irrelevant to issues on appeal. No time needs to be wasted reviewing them. Bear in mind, however, that the court is the ultimate arbiter of what portion of the trial court file is irrelevant. You must be familiar with the entire record, if only so that you are able to explain why some matters addressed in it have no bearing on the appeal.

If you prepared a written summary of the transcript during the brief-writing stage (*see* § 3.3-1(a)), that summary is worth a review to ensure that everything is remembered in context and to prepare for the unexpected at oral argument. Critical passages in the transcript should be reviewed in original form, not only in their summary form.

How much should I worry about mastering the specifics of facts in case precedents? Can I leave that to the briefs? Will the judges be more concerned about ideas?

These are a questions of balance. You need to know the principles or holdings for which the key cases stand. That requires knowing the facts on which the holdings rest and the procedural contexts in which the court ruled. Knowing the dispositive facts or the way questions were posed in those appeals is useful to distinguish helpful from harmful cases. But knowing every factual or procedural detail is not necessary. Oral argument is not the place to display a detailed encyclopedic command of cases near and far from the case at bar. The court generally is more interested in examining concepts and principles than matching facts from other cases. You must know why a case holds what it does. If you understand and can explain the reasoning underlying a precedent, but cannot remember the name of the case, you will fare better than if you can rattle off the case's full citation, but cannot explain its meaning.

Knowing every detail of every case cited in the briefs is impossible. The attempt only creates insecurity. It is enough to do whatever gives you a sense of security, such as simply collecting the leading cases, with key language highlighted, in an argument notebook. Some advocates use notecards. Often, a good brief will have already summarized everything important about a precedent.

The court is interested in "ideas" in the sense of principles grounded in statute or case law and applied to the facts of the case at hand. "Ideas"—in the sense of starry talk of public policy such as a moot court advocate might attempt—will only test a judge's patience. Insights that reconcile cases or reveal the meaning expressed in statute will be welcome ideas.

In the court of appeals, it is important to remember that your audience is an intermediate, error-correcting court. The court is bound by decisions of the Oregon Supreme Court and the United States Supreme Court. If there is controlling precedent, that is the end of the matter. Do not hesitate to advise the court that it is bound by controlling precedent. Do not try to persuade the court that it should disregard a controlling supreme court decision by relying on out-of-state decisions or even the court of appeals' own decisions.

If the appeal turns on the sufficiency of the evidence, how much should I worry about being able to cite to the transcript or a trial exhibit for any point?

If a case turns on sufficiency of the evidence, reference to key parts of the record should come readily from your memory. One or two pages of telling testimony or the revealing exhibit may be usefully tucked underneath your notes for oral argument.

§ 4.1-2(b) Getting Myself and the Court Up to Date

What legal research do I need to do before argument?

At the outset of your preparation, you need only to review the cases already cited in the briefs. But you should review those cases to see which ones might have involved the judges on the appellate panel. You should also be alert for new decisions that truly warrant filing a memorandum of additional authorities. As you work through the briefs and the cases, it is not unusual to develop new insights into the case or new ways to rebut your opponent's arguments. Follow your instinct, even if it leads to new original research. A memorandum of additional authorities can be filed at any time before oral argument without seeking leave of court. ORAP 5.85(1).

A memorandum of additional authorities is helpful when it adds to the discussion in the briefs. It should advance the analysis or better distinguish precedent relied on by the other side. Memoranda are limited to two pages (without leave of court). ORAP 5.85(2)(b). They are not an opportunity to add a new

argument. A memorandum of additional authorities must relate to an existing argument in the briefs. It must be within the scope of an existing assignment of error. But the memorandum should add something new; it should do more than offer one more case to a string citation.

Cases that have not been cited in the briefs or in a memorandum of additional authorities cannot be mentioned at oral argument—except to note that you intend to submit a motion after oral argument for leave to file a memorandum of additional authorities. The better practice is to alert opposing counsel and the court before argument that you intend to rely on a new case by filing a memorandum of additional authorities well before argument.

What should I do if I discover that the law has changed since I filed my brief?

If the law has changed, an appellant should call the change to the court's attention in the reply brief, or, if briefing is complete, one or both attorneys should file a memorandum of additional authorities. If the change in law is significant and substantial, counsel should consider asking the court for permission to submit supplemental briefing. Oral argument will be unnecessarily difficult and less helpful to the court if the parties and the court are trying to grasp a major change in the law that has not been fully briefed.

What should I do if I think my case has become moot or soon will be?

If your case has become moot, you should elicit cooperation of the adverse counsel to move promptly to dismiss the case. Before oral argument, you will have a natural incentive to avoid a waste of your time. You might be reminded of the pending appeal when the court sends its notice that, after briefing, the case is now to be submitted to the court (that is to say, without argument unless you request otherwise). *See* ORAP 6.05(1)(a). You will not want to let the notice be blithely filed away in your closed file while the case is submitted without argument and the court begins pointless work.

After argument, judicial resources remain a sparse commodity that ought not be wasted by letting the court work on an academic ruling only to satisfy the advocate's curiosity. The court itself will readily dismiss upon settlement or another similar development that renders the matter nonjusticiable. *See generally* *Appeal and Review: The Basics* § 2.4 (OSB Legal Pubs 2010).

If I realize that I have omitted something critical from my excerpt of record, is there any way to remedy that before argument?

The excerpt of record should include the pleadings relevant to the issues on appeal, any written opinion or findings of fact issued by the lower court, any order relevant to the issues on appeal, and "any other document and part of a document that either is essential to or significantly helpful in understanding the arguments." ORAP 5.50(2)(a)–(b). Before oral argument, the court will not have access to the entire trial court record. Therefore, if you want the court to review a document at or before the argument, you should include it in the excerpt.

You should also include in an appendix any nonrecord material (such as controlling cases or statutes) that you want the court to be able to refer to during the argument. *See* ORAP 5.52. The court's review is not limited to materials in the excerpt. You may refer to any evidence that is in the record during oral argument. It is never appropriate to refer to matters outside the record (except when notifying the court of possible mootness because of settlement or another event that makes the case nonjusticiable). If you intend to refer significantly to a document that is not included in the excerpt, you can bring copies of the document for the court and opposing counsel. The bailiff will put the court's copies at their seats before the court assumes the bench.

If you have omitted a critical document from the excerpt, and you discover the omission well before the oral argument, you can file a motion for leave to file a supplemental or amended excerpt of record.

If the matter happens to be an administrative appeal, ORAP 4.25 and ORS 183.482(5) describe the unusual circumstances for offering something that is not already part of the agency record.

How do I check who my judges will be? Why should I bother?

Four to six weeks before oral argument, the names of the judges assigned to hear a case will appear on that day's docket of cases for the court of appeals. The docket is posted online at the court's website. The court's record staff will also answer a phone call to identify the judges assigned to the case. The docket will show the order of cases scheduled for argument in each session. Although it is helpful to know how long you can expect to wait to be heard, you should not rely on the docket to determine the order in which your case will be called. Cases are often removed from the docket, or the order may be changed to accommodate a

change in the panel hearing the case. You must always arrive at the courtroom several minutes before the argument session is scheduled to begin.

It is helpful to know the judges who will hear your case as you prepare for the argument. It does not help a lot to speculate about judicial personalities or whether the assigned judges will be more or less receptive to your arguments. Such things matter relatively little. The judges happen to be quite judicious. Personalities might matter only in the sense of anticipating which judges might be rule-oriented, linear thinkers, or former trial judges with a bent toward the pragmatic. Their backgrounds might tell you how familiar they may or may not be with your issue, depending on whether they come from the public sector, academia, a personal injury practice, or prior appellate practice. It matters more to know who, among the panel, may have authored or participated in prior opinions that are precedents for your case. If anything, they will have unusual familiarity with the issue and an expressed way of looking at things. Knowing the judges will also help you to anticipate their questions. Some judges are more active than others on the bench. Some tend to ask open-ended, hypothetical questions, while others are inclined to ask specific questions about the record or the authorities cited.

Checking for the judges' names is not done to consider challenging a judge's assignment to the case. The impulse to challenge a judge's assignment should be resisted even in the unexpected circumstance in which a judge might happen to have authored a prior opinion seemingly hostile to a client or lawyer. Trust the court. Prior opinions were the work of panels, not individual judges.

Judges will, of course, recuse themselves from cases in which their participation would violate the Oregon Code of Judicial Conduct. (See www.ojd.state.or.us/Web/OJDPublications.nsf/CJC?OpenView&count=1000 for a link to the current version of the code.) Very rarely, however, a lawyer might discover that a judge assigned to hear an appeal participated in the proceedings below. In such a circumstance, the lawyer must notify the Appellate Court Administrator of that fact. ORAP 8.30(1)–(2). In addition, a lawyer "may move to disqualify a judge . . . for one or more of the grounds specified in ORS 14.210, or upon the ground that the judge's participation in the case would violate the Oregon Code of Judicial Conduct." ORAP 8.30(3)(a). In the vast majority of cases, however, the judges will discover any conflicts and request that cases be reassigned long before any such motion becomes necessary.

§ 4.1-2(c) Preparing for the Argument Itself

How do I match my preparation to what I hope to accomplish and what the judges likely will want to know?

Like preparation for a trial, preparation for oral argument takes all the time needed, regardless of whether the client can be billed for it. Far too much has already been invested in the case to shortchange the time needed to prepare for argument. The economy required for any given case should already have begun with the decision whether to appeal at all, whether to settle on appeal, how much to raise as assignments of error, or how much to research and write in opposition to appeal.

The constraints on time for preparation might best be determined with a focus on the last part of the question above: What will the judges likely want to know? How can they most readily dispose of the case? Which are the one or two dispositive issues? Has the matter been properly preserved for review? What is the standard of review? Without rehashing factual details, what is the key evidence?

Early in your preparation, you should identify the two or three points you plan to make in the argument, the themes you plan to develop (which should already be developed in the briefs), and the few issues that you must win in order to prevail. If you are the appellant, you should also develop an opening statement, ideally no longer than a minute, that sets the stage for the conversation that will unfold. It is a good idea to begin compiling a master list of questions that might arise at the argument. The goal is to anticipate every question that could be asked and to develop answers that advance your argument.

Oral argument is not a solitary endeavor, and your preparation should not be either. Seize every opportunity to discuss the case with colleagues, clients, or anyone who can be a good sounding board. The oral argument should be the last conversation you have about your case, not the first.

If it's not useful to repeat the points I've already made in my brief, and I'm not allowed to make new arguments, what's left to do?

If your own brief was perfect, and if your opponent's did not raise anything new, then there might be little left to do but to smile at the lectern and offer to answer questions. But, after many months of waiting, you are likely to see your arguments in a new light, and your opponent's argument may call for a new spin

on your old argument—something that reconciles the points of view, reveals the opponent's shortcomings, or better expresses your argument. It helps to read the briefs while imagining being a judge. A new way of summarizing the brief should arise.

How can I develop themes for an argument?

Themes for an argument should begin with your brief. Because argument provides precious little time, the one or two issues selected for argument should follow those themes. Sometimes, the nature of the dispute or principles at issue may suggest a theme for argument.

Should I plan to describe the facts to the court?

It generally is not necessary to recite the facts and procedural history that is set forth clearly in your brief. Oregon's appellate courts are "hot courts." The judges have read the briefs, know the facts—usually a little better than one might assume—and will be impatient with the usual factual recital, or procedural rehash, which is commonplace in law school moot courts. There may, however, be unusual circumstances in which a central dispute of fact—something that is left foggy or hotly disputed in the briefs—does require just a few sentences, or a recital of something from the record, to dispel the factual uncertainty. Every rule has its exception.

How do I handle arguments in the alternative? For example, how do I plan argument in a family law appeal, when the standard of review might but might well not be de novo *on the record?*

Pick an argument, selling why it is the preferred approach, and go with it. But be quite prepared to address the problem from the alternate view when the court's questions call for it.

Until case law sets standards for approaching the new discretionary and alternate standard of review (*see* § 2.2-3(b)(4)), family law appeals may be problematic. Hopefully, your brief will have already done a convincing job of arguing why review ought or ought not be *de novo* in your case. Oral argument will reflect the approach or approaches taken in the brief.

Your strategy will likely turn on whether the facts and law on the merits favor your client or whether it is better to stress raising or lowering the standard of review on appeal.

What kind of questions should I expect from the judges?

As regular practitioners know, the court is not hostile. The court comprises mostly people who themselves stood at the appellate lectern. The Oregon Court of Appeals is one of the busiest appellate courts in the nation, and one question is readily predictable: What do you say about your opponent's central argument, especially one you treated dismissively or side-stepped in the briefing? To be prepared, expect the most unwanted question.

Other questions are predictable, too. All come from a need to find an expeditious resolution of the case: Do not several assignments of error all turn on one common problem, that upstages them all? Were issues properly preserved? How do we approach the case? What is the court's standard of review? Does not the standard of review make your argument inappropriate, marginal, or tougher than you pretend?

One question recurs too frequently: What do you want us to do? Exactly how do we dispose of the case? Reverse? Remand?

Every question at oral argument presents a golden opportunity to advance your case. Before you launch into a detailed response that explains how the question illustrates why you should win, be sure to answer the question, preferably with a simple yes or no. Never defer your answer. It does not matter that you planned to address the issue later in your argument. At least one judge has the question now. This is the teachable moment. Listen carefully to the question. Be sure that you understand it before you attempt to answer. Do not be afraid to ask for clarification. And think before you answer. Time is compressed in appellate arguments. It is natural to feel like any delay between a question and the answer is wasted. In fact, taking a moment to compose your response can be the most effective use of the limited time available. Finally, recognize that no question is irrelevant, silly, hostile, or unhelpful. The question matters to at least one of the judges who will decide your case. It therefore should matter to you.

How can I prepare for judges' questions? How can I anticipate what they might ask?

First, when preparing for argument, reread the briefs while imagining how they will be critically reviewed by a judge. Second, ask yourself the most unpleasant questions you would ask as a devil's advocate. Third, discuss the case in some detail with as many different people as you can—those who will take the

time to learn the case and think critically about your argument, and those who have only the most basic understanding of the issues. Consider developing a master list of questions and answers using all of the resources at your disposal to identify every question, large and small, that you may be asked. Listen to oral arguments in recent key cases to learn how the court viewed the issues before issuing its decision.

What should I plan to do with my 15 minutes if the judges do not ask questions?

Proceed ahead, but attentively. Your argument, as originally outlined and rehearsed, should not fill 15 minutes. It should have been planned for less than 10 minutes, to allow for questions. If there are no questions, the court's silence signals either that the briefing succeeded in answering the issues, or, once in a while, that the court is unimpressed with the argument. In either case, the best course of action is to sit down.

What should I plan to take with me to counsel table and to the lectern?

For an appellate argument, no one needs the box or two of files and documents that counsel rolled into circuit court on a wheeled luggage rack. The only things needed are what might be required for reference at argument. Those things are the briefs; the trial exhibits cited; perhaps well-marked copies of key precedents, rules, or statutes in dispute; and, unless bulky and irrelevant, the trial transcript.

Your sense of security dictates what little is carried to the lectern for argument. For many attorneys, that is a page or two of notes outlining the oral argument, along with his or her brief, containing tagged excerpts of record or the statute being construed. For others, security means a typed outline of argument in a notebook containing the lead cases, copies of the statute's surrounding provisions, or exhibits likely to be mentioned.

If I want to use visual aids (like enlarged maps, contracts, or statutes), what do I need to do before the day of argument? What are the risks and possible benefits of using visual aids during argument?

Call ahead to talk to court staff if you need an easel, any electronic equipment, or anything else unusual. You may need to bring it yourself.

As with any spoken presentation, visual aids can be effective in making an argument memorable. Oral argument on appeal is no exception, but it is skill and understatement in their use that makes them effective. Many appellate judges find visual aids to be helpful in two broad categories of cases: those in which the specific wording of a statute or rule is at issue, and those in which a map or other diagram is important. In those cases, the particular material (*e.g.*, the map or statute) should already be in the back of your brief. If they are not, consider providing copies for the judges, giving the copies to the bailiff in advance of argument.

Unfortunately, lawyers often make poor use of visual aids in the courtroom, distracting judges from the lawyers' arguments rather than helping make the lawyers' points. For example, writing talking points on poster paper, as if for a jury, is not particularly persuasive. Likewise, foam board enlargements of statutes can be distracting, because they cause judges to look away from the lawyer and do not provide anything on which the judges can take notes, the way printed copies of the statutes can, if provided to the judges (through the bailiff) in advance of argument.

Moreover, the courtrooms in which appellate arguments are heard are not particularly conducive to the use of large demonstrative exhibits. First, you must remain at the podium for your voice to be amplified and recorded. In addition, there is no convenient location to erect an exhibit so that it can easily be seen by the entire court and opposing counsel. Finally, planning an argument around an exhibit is dangerous. The argument may develop in a way that makes the exhibit useless or distracting. You can end up feeling compelled to use the exhibit when doing so disrupts the flow of your presentation. If the goal is to engage in a conversation with the court, you should not plan a PowerPoint presentation.

When are moot courts helpful?

Whenever possible, organize moot courts. Recruit lawyers, retired judges, or savvy friends to read the briefs and approach the case with the same familiarity with the issues that the court will bring to bear. Answering questions in your head or drafting answers for your master list is not the same thing as engaging in a dynamic exchange with follow-up questions. Practice standing up and fielding questions. Encourage your moot court judges to be as aggressive and direct as they

can be. The goal should be to make your practice sessions significantly more challenging than the actual argument.

It may seem difficult to justify the time and expense required for a moot court. Not all cases will warrant that kind of investment. But there is no real substitute for actually standing up and presenting your argument in circumstances that come as close as possible to the real event.

Is it a good idea to bring my client to oral argument?

It does not hurt, or necessarily help, to bring a client to oral argument. It is one way for the client to see the process at work. The client will see how much the judges labor to get to the bottom of things. In some situations, the client will need help understanding why judges have not talked about the thing that most troubles the client.

Some advocates sense that the judges notice who is in the courtroom. While being seen will certainly not change the outcome, the client may feel better having been seen as a person to whom the appeal matters a great deal.

Most clients will have learned from their lawyers the limited opportunity that an oral argument presents. If the client has not already been counseled on the limitations of appeal, a bit of advice about the process is a good idea before attending oral argument.

Is it ever a good idea to divide argument time?

Rarely is it a good idea to divide argument time. While there are exceptions for every rule, dividing a party's time with cocounsel generally is a bad idea. The court is unlikely to understand or follow the twin-advocates' division of responsibility for the issues. The case may present overlap between the divided issues.

It may be tempting to divide time in the rare case in which an *amicus* party wishes to petition to argue and help carry the load. While that may help when the principal advocate is not much of an appellate advocate, it usually remains a poor idea. Generally, an *amicus* party should remain on the briefs only.

As between separate parties, both allied more or less as appellants or as respondents, a division of time may be forced. If the interests and issues are indeed distinct, then dividing the time may become a necessary evil. Even so, the bulk of the work should be shifted to the stronger or better studied advocate, and the time

minimized by agreement for the second attorney. The opening remarks should tell the court of a logical apportionment of issues between counsel.

§ 4.1-3 At Oral Argument

§ 4.1-3(a) The Judicial Perspective

As the discussion in § 4.1-1(b) suggests, judges go into oral argument with a number of goals, several of which relate to clarifying the parties' arguments and exploring their implications. From the judicial perspective, oral argument is the time for the lawyers to provide the court with that clarifying information—and the most efficient way to accomplish that is for the judges to ask questions and for the lawyers to provide clear, concise answers. Because of that, and because they feel the pressure of having only 15 minutes in which to get their questions answered, judges often will not give the lawyer much time to present an argument before the judges start asking questions.

From the judicial perspective, what can a lawyer usefully do in those very few minutes (perhaps only moments) before the judges start asking questions? Summarizing the brief is not effective. Rather, the lawyer should structure his or her opening remarks with the judges' goals in mind, as well as the lawyer's own. Some ways of doing that include:

The lawyer can concisely outline the points the lawyer hopes to cover, providing the court with a roadmap to the result that the lawyer advocates.

> EXAMPLE: "My brief sets out three ways in which the trial court erred in granting summary judgment to the defendant in this product-liability case [identifying each point briefly, using only a few words]. The result of this appeal will be a reversal if this court agrees with any one of those three arguments. I plan to spend most of my time this morning arguing the second of those three points, [described briefly], and am prepared to answer any questions the court may have on the other two issues."

> EXAMPLE: "As appellant, husband has asked this court to review the facts in this spousal-support case *de novo*. I'll first summarize briefly why this is not an extraordinary case in which *de novo* review is warranted, then turn to discussing why husband cannot prevail if this court applies the usual 'any evidence' standard of review."

The lawyer can also zero right in on the heart of the case, responding directly to the strongest argument the lawyer's opponent has made.

> EXAMPLE: "In the response brief, plaintiff suggests that a recent supreme court decision controls and requires this court to affirm the trial court's judgment in her favor. She is wrong; that opinion is not only distinguishable on the facts, but is based on a statute that does not apply to the circumstances of this case."

If the lawyer has discovered a significant mistake or ambiguity when reviewing his or her brief while preparing for argument, the lawyer can immediately correct the mistake or clear up the ambiguity.

> EXAMPLE: "In reviewing my brief in preparation for oral argument, I discovered a mistake in the Summary of Facts. My brief stated that [describe erroneous information], but should have stated [describe correct information]. This change, however, does not alter the appellant's view of the case because the remainder of the brief was written based on the correct facts.

Another way the lawyer can open is by identifying any potentially troubling implications the lawyer's argument might have, and reassuring the court that it can decide the case in favor of the lawyer's client without creating a precedent that will be problematic in other cases.

> EXAMPLE: "The state suggests that this court can rule in my client's favor only if it stretches the concept of unlawful seizure to encompass much police conduct that currently is viewed as 'mere conversation.' For at least three reasons, that is not so."

Those sorts of opening remarks, which demonstrate an awareness of judicial goals for oral argument, are likely to capture the court's attention. A lawyer who begins argument in this way probably will have at least a couple of minutes to succinctly make the promised points before the judges start asking questions.

Understanding the judges' goals for argument also can help lawyers anticipate questions the judges are likely to ask and to prepare responses to those probable questions. Lawyers should keep in mind that the judges' primary goal is to understand what the parties' arguments are and to clarify any uncertainties or ambiguities in the briefs.

EXAMPLE QUESTION: "Do you contend that the police officers unlawfully seized your client when they conducted the traffic stop, or do you contend, instead, only that the officers unlawfully extended the duration of that stop?"

EXAMPLE QUESTION: "I understand your argument to be that the trial court erred in construing the terms of the oral agreement between the parties and *not* that the trial court should have determined that the parties never reached an agreement. Is that correct?"

EXAMPLE QUESTION: "You have asked us to exercise our discretion to review the facts in this child-custody case *de novo*, and argue that we should find the facts in your client's favor. Do you also contend that you can prevail even if we do not review the facts *de novo*?"

Other questions are designed to clarify how several arguments made in a brief relate to each other. In that regard, judges often ask lawyers to explain the logical connections between the various arguments that their clients have advanced in the briefs.

EXAMPLE QUESTION: "You argue in the brief that the trial court's decision to grant summary judgment to the defendant is flawed for two reasons. Do you need to prevail on both of those points to get a reversal, or do you win if we agree with you on either point?"

EXAMPLE QUESTION: "If we rule in your favor on the first assignment of error, which of the remaining assignments of error do we still need to address?"

Those kinds of road-mapping questions sometimes will push a lawyer to concede a particular point.

EXAMPLE QUESTION: "Isn't it true that we can reverse the trial court's judgment only if we agree with all three of the arguments you're making to us?"

Lawyers should understand their cases well enough to be able to tell from the judges' questions when the judges have read the road map correctly and when they have not. If the appellant in the example immediately above will win if the judges agree that the trial court erred in *any one* of the three ways argued, the appellant should clarify that immediately. Conversely, if the appellant really does

need to prevail on all three points, the appellant's lawyer should acknowledge that fact candidly.

> PRACTICE TIP: In preparing for argument, consider what points you may need to concede and what you should not concede. Better to have thought through the analytic structure of your argument ahead of time, instead of having to decide quickly whether a particular concession will be fatal to your case.

Other questions may relate to the judges' goal of exploring the strengths and weaknesses of the parties' arguments. Judges sometimes feel that the parties have not fully engaged on an issue—for example, that the respondent's brief does not address all of the points in the appellant's brief—and will ask questions designed to make sure the parties have had a chance to respond completely to their opponent's arguments.

> EXAMPLE QUESTION: "How do you respond to the appellant's contention that the trial court weighed the evidence in the course of deciding your summary-judgment motion, instead of viewing the evidence in the light most favorable to the nonmoving party?"

Frequently, of course, the judges' questions relate to their own understanding of the law and their desire to figure out how the parties' arguments fit into it.

> EXAMPLE QUESTION: "The supreme court's recent decision in *State v. Doe* dealt with a traffic stop that occurred in circumstances very similar to those in this case. In *Doe*, the court held that the officer lacked probable cause to make the stop. Why doesn't that holding control here?"

Experienced appellate advocates welcome those kinds of questions, even the most challenging. If not for such questions, lawyers would not know with certainty (and might not even suspect) what aspects of their arguments trouble the judges. Without that knowledge, lawyers might miss the opportunity to direct their oral arguments to the issues that will be most critical to the court's decision.

Judges hope that appellate lawyers will approach oral argument with that in mind: that lawyers can spend their time most productively by listening to the judges' questions and answering them forthrightly. Judges recognize that questions may seem intimidating, but encourage lawyers to understand that—at least most of

the time—the questions reflect judges' genuine uncertainty about some aspect of the case. A lawyer should value the opportunity to clarify a point that might have been unclear from the briefing, or to address a concern that the lawyer may not previously have realized the court would have. In doing so, the lawyer should provide clear answers (usually starting with "yes" or "no") and also use the opportunity to explain to the court why, either because of the answer or despite it, the lawyer's client should prevail.

> PRACTICE TIP: Try to frame your answers to the court's questions in terms of the appropriate standard of review. For example, when the issue is whether a trial court correctly granted a motion for directed verdict, it's important to speak in terms of what facts a reasonable factfinder could have found, rather than speaking about the facts or evidence in more general terms.

> PRACTICE TIP: Lawyers sometimes become frustrated when judges seem to ask the same question repeatedly, only slightly rephrased. If you face that situation, listen very carefully to precisely what question is being asked, because the odds are low that you understood the judge's question correctly the first time and provided a satisfactory answer to it. Also think about the first answer that you provided. Did it start with a clear "yes" or "no," followed by an explanation? If not, that may well be what the judge is hoping to hear.

Judges have varying opinions regarding the utility of hypothetical questions: those that ask lawyers to explain what results would follow if their proposed rules of law were applied in hypothetical circumstances different from those in the case at hand. Some judges find those questions invaluable in exploring the logical consequences of the parties' positions; other judges find the questions somewhat distracting and overly time consuming. Whether or not they are fans of hypothetical questions, however, all judges will be interested in thinking about the implications that the decision in a case being argued will have for future cases. And part of that thought process is identifying the precise legal rule that each party is urging the court to adopt. Indeed, sometimes judges will ask the advocates for help on that exact point.

EXAMPLE QUESTION: "I understand the facts from your brief, and the outcome you advocate. What legal principle leads from those facts to that result?"

EXAMPLE QUESTION: "If you were writing the opinion in this case, how would you describe the rule of law that you are asking us to announce?"

EXAMPLE QUESTION: "How would that rule apply in [hypothetical circumstances]?"

To prepare for hypothetical questions, lawyers should carefully consider two points with respect to each argument they make: (1) what legal rule or principle they advocate, and (2) how that rule or principle will apply in other situations that plausibly might arise in the future.

As the discussion above suggests, judges highly value appellate lawyers' ability and willingness to provide helpful answers to the questions asked during oral argument. Not surprisingly, then, many judges, when asked to identify their pet peeves about what lawyers do at oral argument, quickly respond, "unwillingness or inability to answer the questions asked." A lawyer who avoids answering judges' challenging questions risks creating the impression that no good answer exists.

Additional items on judges' "things not to do during oral argument" lists include:

- Delivering an argument that simply echoes what's in the briefs.
- Rehashing the facts, instead of getting to the key points of the case (although sometimes discussion of the facts is unavoidable, particularly in cases that may involve *de novo* review).
- Not being familiar with the entire record on appeal.
- Not taking into consideration what parts of that record are in the excerpts of record and appendices (and therefore are available to the judges before and during argument) and which parts of the record the judges have not yet seen.
- Referring to material that is not in the record. Lawyers should not refer to extra-record facts unless the court specifically asks them to;

even then, lawyers answering such questions should state clearly what is in the record and what is not.

- Giving long-winded answers to judges' questions, instead of answering them clearly and concisely, and avoiding giving "yes" or "no" answers to questions that call for that kind of answer.
- Using scornful labels (e.g., "ludicrous," "ridiculous") to describe an opponent's argument or a trial court's ruling, instead of explaining the flaw in the reasoning.
- Making what essentially is a jury argument in a bid to get sympathy.
- Attacking or otherwise showing disrespect to the trial-court judge or opposing counsel. Name-calling adds nothing to a lawyer's argument and may weaken it, if it leads the judges to suspect that the lawyer has nothing more substantive to say.
- Talking down to the court. Lawyers should not be sarcastic or condescending. Projecting an attitude of "this is so obvious that even you dummies should be able to figure it out" is not persuasive advocacy. Explain, don't lecture.
- Being overly ingratiating to the court. ("That's an excellent question, Your Honor" adds no value to an argument.)
- Doing anything that might distract the court from the substance of the arguments, like wearing too-casual clothing, addressing the court inappropriately (e.g., "you guys"), or endlessly fidgeting at the lectern. Judges will attempt to focus on the merits of the parties' arguments no matter what the circumstances, but don't make that task more challenging for the judges than it needs to be.
- Addressing argument only to the judge who asked the most recent question, instead of all three judges on the panel, all of whom are interested in what you have to say (including those who prefer to listen to the lawyers' interactions with other judges, instead of asking questions themselves). After all, lawyers should be interested in seeing how all of the judges react to the points being made, and whether any of them may have follow-up questions.

- Using body language instead of words to answer questions (head nodding or shaking), speaking softly or away from the microphone, or not enunciating clearly. Any of those behaviors can cause problems for the judges, staff attorneys, and law clerks who may listen to recordings of oral arguments months later.
- Visibly responding, from counsel table, to the opposing side's argument. Lawyers should try to maintain a calm, neutral demeanor as they listen carefully to the judges' interaction with opposing counsel.
- Not stopping when the red light goes on, whether the presiding judge mentions the light or not. The lawyer should have a good enough sense of time to suspect when the white light, and then the red, is about to go on.
- Insisting on using all 15 minutes of argument time, even when the judges have no more questions and the lawyer has nothing more to say beyond what's already been stated in the briefs.
- Trying to hide a lack of certainty about the record or the law by dancing around the point, instead of saying "I don't know" if that's the honest answer.
- Being less than entirely honest and forthcoming with the court or trying to "hide the ball."

That last point merits further examination. Almost any discussion of appellate advocacy will mention the importance of lawyers maintaining their credibility with the court. By "credibility with the court," most judges mean one or both of two things: (1) the lawyer's honesty and integrity; and (2) the lawyer's credibility as an intelligent, respected advocate. Both aspects of credibility matter, but in different ways.

Addressing the honesty point first, having that kind of credibility should matter to all lawyers as a matter of personal integrity and pride. It also matters in terms of effective advocacy. A lawyer's reputation for complete integrity—or the opposite—probably won't affect the outcome of an issue on appeal, since the court will double-check all lawyers' representations about the law and the trial-court record, no matter who makes those assertions. But that reputation certainly can affect the dynamic of an oral argument. A judge who is concerned that a lawyer

may be misrepresenting the record or the law may have difficulty giving the lawyer's argument his or her undivided attention. Concerns about a lawyer's honesty can be extremely distracting.

In addition, a lawyer who lacks credibility with the court often will end up spending time talking about matters other than the points the lawyer hoped to address during oral argument. Consider two lawyers, one who has an excellent reputation with the court and one who does not. If the trusted lawyer describes a witness's testimony in a certain way during oral argument, the judges probably won't spend much time pressing for more details, because they will presume that the lawyer's description is accurate and will move on to other points. If that same description of testimony is given by a distrusted lawyer, however, the judges might ask more follow-up questions to make sure that the lawyer is not dissembling or glossing over unfavorable aspects of the evidence. The end result for the lawyer suspected of dishonesty will be a loss of time to spend on more important parts of the argument.

The lawyer's credibility as an advocate also matters during oral argument. If the judges view a lawyer as someone who regularly delivers informative and intriguing arguments, they are most likely to listen carefully and without skepticism, even if the lawyer's arguments in a particular case initially seem weak. Nobody wants to be the other kind of lawyer—the one who prompts judicial skepticism the moment he or she steps to the lectern.

> PRACTICE TIP: Be precise when discussing holdings in published opinions. It's not like the judges are not going to read the opinions themselves. If you think that a case stands for a proposition that the judges might not immediately discern, acknowledge what the case might on first read seem to hold, and then explain carefully, with attention to the court's exact words, why it actually means something different.

> PRACTICE TIP: If you know you have an uphill battle on your hands, think about ways of acknowledging that during argument. If you mischaracterize your case as involving only simple issues, or as one in which the result is a "no brainer," the judges will be able to dismiss your argument too easily if they sense the issues are more complicated than you've acknowledged. You'll be a more effective advocate if you admit the

challenge you face, but provide the court with persuasive reasons why it should nonetheless adopt the position for which you're arguing.

In the end, the appellate advocate should strive to have a "conversation with the court," that is, to engage in a dialogue with the judges in which the lawyer provides direct, forthright answers to the judges' questions in a way that advances the client's interests. During that conversation, the lawyers and judges should be able to work through the issues together, refining the pertinent analyses through question and answer. A lawyer who has a deep understanding of the record and the law, who directs his or her oral argument to topics of likely judicial concern, and who provides clear answers to the judges' questions is most likely to experience that kind of extremely rewarding conversation with the court.

§ 4.1-3(b) The Advocates' Perspective

Whether appellant or respondent, the appellate advocate's adequate preparation for oral argument is critical. But the work is not done until oral argument is over. As the advocate enters the courtroom, he or she must consider several important questions and always keep them in mind.

What should I pay attention to while I'm at the lectern? While my opponent is arguing?

While at the lectern, you should pay attention to three things:

(1) Keeping eye contact with the judges to sense how attentively they are listening, particularly when you make the opening serve that communicates the gist of your argument before questions start;

(2) Slowing down to hear each question, understanding the question, and resolving that question with a direct answer; and

(3) Remembering where you were going before the question was asked, so as to adhere to the theme or structure of your argument and weave most answers into that framework.

While seated and listening to your adversary, you will pay attention to which few arguments must be rebutted, while resisting the urge to rebut everything. The big clue is the court's interaction with the adversary. Pay particular attention to the questions the court asks your opponent. You may be able to correct your opponent's answer, answer a question that your opponent avoided, or seize upon a concession that your opponent was required to make.

What can I learn from listening carefully to the judges' questions?

The questions may challenge an unpersuasive argument or simply ask for help with a supporting fact or proposition. Listening carefully to the question may indicate the court's sticking point. Most obvious are questions that suggest that the standard of review or a failure to preserve error will preclude consideration of an argument. By nature, most judges are simply trying to get to the bottom of the issue.

How can I best respond to judges' questions?

You can best respond to a question by responding directly. Any necessary elaboration, hedging, or qualification should come only secondarily. Just like a witness at a deposition, candidly declare a "yes" or "no" first. A direct response might require stopping momentarily to think, and sometimes asking politely for a clarification, such as which of two meanings is being asked.

What do I do if I don't know the answer to a question?

Admit it. Hopefully, you can explain that no one knows the answer to the question, because perhaps case law has left confusion or contradiction, or perhaps a factual point was never covered in the record. Candor will lend credibility to other arguments.

If the question relates to something that could have been considered in the trial court but was never raised or discussed, then your lack of an answer may not be shameful, since, until now, no one thought of the question. You might turn the lack of an answer to your advantage, depending on who has the burden of proof and duty to preserve error. After admitting that you do not have an answer, you may also need to explain why the answer to the question does not affect the proper resolution of the case.

How do I get back on track when a judge's questions have taken me far from what I think the judges need to be thinking about?

Answer the distracting last question briefly. Do not be dismissive about the line of questions. But having addressed the questions, return to your analysis, explaining, if possible, why that analysis is where the focus should lie.

What should I do when one judge seems to monopolize the argument time?

That is a problem for the other members of the court, if it is a problem at all. That judge may be expressing the principal line of inquiry that the judges collectively addressed in their preargument conference. Challenging a judge's prerogative to pursue a question is asking for trouble.

If, however, you know that one judge is pursuing some pet peeve while your precious time to pursue your argument is disappearing, then answer the question briefly, trying to tie the answer into your theme or outline, and resume your arguments.

What should I do if a judge asks what I regard as a really dumb question?

Answer it. Be grateful the question was asked in oral argument, rather than later in court conference where you could not answer it. Be respectful. Swallow any notion that the question was dumb. It may show otherwise.

What should I do if the judges ask no questions?

Proceed with your argument as you have planned (*see* § 4.1-2(c)), thank the court, and sit down. You don't have to use all of your allotted time.

How can I signal that my case involves an important legal question on which the court should publish an opinion?

There may be little that you can do to signal that the case deserves an opinion, other than to have framed the question, in your brief, as a new question or as a new elaboration of a principle that is significant to the public or to lawyers in a particular area.

What makes a good rebuttal argument?

A good rebuttal argument begins with having sorted through the adversaries' points to isolate the key points for rebuttal. A good rebuttal ties back to the theme or structure of the argument, without belaboring it. And a good rebuttal is almost always short. By the time the respondent's counsel sits down, the court is already moving to the next case. Try to limit your rebuttal to two or three points.

What can I do if my opponent does something really outrageous during argument? Is it ever appropriate to object?

It is never appropriate to interrupt to object. If you are a respondent, you may object to an appellant's argument that goes outside the record by simply calling attention to it during your argument. If you are an appellant, you may do

likewise in your rebuttal to the respondent's argument. If in a rebuttal argument an opponent has, in effect, introduced material outside the record, you might consider a motion after argument to strike the material from consideration.

If it is the rare occasion when the adversary is truly out of bounds, such as unbecoming behavior, the court itself will control the situation.

§ 4.1-4 After Oral Argument

When oral argument is over, the advocate will inevitably have new questions he or she will want to know the answers to.

What's the rate of decay of an oral argument? Is it remembered only that day through the court's initial postargument conference? Is oral argument forgotten by the time an opinion is prepared?

The value of oral argument may diminish over time, but that does not mean it does not matter. Its immediate value is to guide the court in the postargument conference that day. It may influence whether a case is summarily affirmed without opinion or taken for further review and an eventual opinion. Oral argument helps steer the case toward a tentative vote to affirm or reverse and an assignment of the case to a particular judge for preparation of an opinion. Sometimes a concession at oral argument confirms the court's preliminary assessment of the case's merits, and the outcome follows the concession.

The oral argument recordings are available to the judges and court staff after the case is taken under advisement. Sometimes a new judge must substitute in to complete a panel, and that judge will review the recording of the argument. Law clerks and staff attorneys who assist with opinion drafting may listen to the arguments, as may judges who heard the case, to refresh their memories about the parties' arguments. However, the significance of the argument often will diminish over time, as the judges more completely develop their own analysis of the record, precedents, and questions presented.

How true is it that you can't tell anything from how oral argument goes? Are there two or three patterns that might give a disinterested observer a clue about the outcome?

If the question is at all close, the ebb and flow of oral argument tells little about the outcome. Even after a tentative vote to affirm or reverse in the postargument conference, the panel—or full court—may change directions.

If an appellant or respondent is in serious trouble, such as when the party clearly failed to preserve error, or the party is defending a judgment based on a trial judge's obvious contravention of an established principle, oral argument may tell a lot about the likely outcome.

In either circumstance, however, the advocates involved usually are the least able to read the outcome from the court's questions.

After remand from the Oregon Supreme Court to the Oregon Court of Appeals for further proceedings, is there ever an opportunity for oral argument or a reason to petition the court of appeals to entertain further oral argument?

Usually, after remand from the supreme court to the court of appeals for further consideration, there is no opportunity for further oral argument. If, however, the ruling in the supreme court shifted the law as previously briefed, or if unusual circumstances dictate, a party may petition for oral argument.

§ 4.2 ARGUMENT IN THE OREGON SUPREME COURT

The basic objectives, strategies, and techniques of appellate argument apply regardless of the court to which you argue. Nearly all of the advice in the previous section about argument preparation and delivery in the Oregon Court of Appeals applies with equal force to arguments before the Oregon Supreme Court. There are, however, some differences in the work of the two courts, in their internal practices, in the types of cases that they decide, and in their protocols. Those differences will—or at least should—affect how you prepare for argument. In this section, we focus on those differences.

§ 4.2-1 Oregon Supreme Court Internal Practices

At the outset, here are some basics about the court, its caseload, and its internal practices. The Oregon Supreme Court consists of seven justices, who nearly always sit en banc. The majority of the court's caseload consists of cases that it has exercised discretion to hear from those that the Oregon Court of Appeals has decided. (The remainder consists of cases that the legislature has assigned to the supreme court to hear directly—death penalty, original mandamus, tax court, ballot title, bar discipline, Energy Facility Siting Council, and other cases. *See* ORAP chs 11–12. Our focus will be on the discretionary-review cases that you are most likely to be arguing.)

Supreme court review is initiated by filing a petition for review, sometimes followed by a brief in opposition to the petition. *See* ORAP 9.05, ORAP 9.10. Each petition is assigned to one member of the court for preparation of a "petition memorandum." That member reviews the parties' filings, plus the briefs from the court of appeals and the opinion of that court, if it issued one. He or she then prepares a memorandum that summarizes the issues and arguments and offers a recommendation about whether the court should grant review. The petition memorandum is circulated to the other members of the court, who may also review the parties' filings, court of appeals briefs, and so forth.

The court meets twice monthly to confer about pending petitions for review. At that conference, the focus tends to be on the nature of the issue and whether it is the sort that warrants the attention of the supreme court. Whether the court of appeals decided a case correctly is an issue that the justices discuss, of course. But it is not the controlling consideration in deciding whether to grant review. *See* ORAP 9.07 (setting forth criteria for determining whether to grant petition for review). A vote of one member less than a majority (usually three) is sufficient to grant review. ORAP 9.20(1). The court may grant review on fewer than all issues that were before the court of appeals. ORAP 9.20(2). *See generally* *Appeal and Review: The Basics* ch 11 (OSB Legal Pubs 2010).

Once the court grants review, it notifies the parties, informs them if review has been limited to particular issues, and sets an argument date and a briefing schedule. The justices receive the brief packets for each month's argument calendar approximately one month before argument. The packet includes the petition memorandum, the petition for review, any responsive brief, the parties' briefs on the merits on review, their briefs before the court of appeals, and the court of appeals opinion, if any. The brief packet for each case can range in size from a hundred to more than a thousand pages, depending on the nature of the case and whether a substantial number of *amici curiae* file briefs. The briefs are usually delivered to the justices in electronic form, though hard copies are prepared for those who prefer to read in that form.

Like the court of appeals judges, the members of the supreme court read their briefs in a variety of settings—in the office, at home, in a carpool, while traveling. The justices tend to make detailed notes in preparation for argument, either on paper or by electronic annotation. Also like the court of appeals judges, the members of the supreme court generally do not review the transcript, trial-court

file, exhibits, and similar materials before argument. Accordingly, advocates are advised to include in their briefs any excerpts from the record that may be important to the court's oral argument preparation. *See* § 4.1-1(a).

Ordinarily, the court hears argument during the first weeks of January, March, May, June, September, and November. Each argument week, 10 to 15 cases are set, usually three or four arguments per day. In the past, specific times were set for each argument, and the court took a half-hour break between each argument to confer. That is no longer the case. The court recently changed that practice so that now cases are assigned a morning or an afternoon time. That means that counsel will no longer be able to show up at a time certain, and instead will be required to show up either at 9:00 a.m. or 1:30 p.m., depending on whether the case has been assigned to the morning or afternoon calendar.

Before each day of argument, the court meets to discuss the cases that they are going to hear that day. The members of the court briefly discuss the significant issues presented in each case and highlight any questions that they feel may warrant discussion during the argument.

To sum up: The justices of the supreme court come to oral argument well prepared. They usually will have read the petition for review along with any opposing briefs; the briefs of the parties on the merits; a petition memorandum summarizing the issues and arguments; the court of appeals opinion, if any; and the court of appeals briefs. They also will have discussed the case, both at petitions conference and in the preargument conference. In addition, they are likely to have reviewed key statutes or case law in preparation for the argument.

§ 4.2-2 Oral Argument before the Oregon Supreme Court

In general, the goals of oral argument are the same for both the Oregon Court of Appeals and the Oregon Supreme Court—clarify the parties' positions and the relief they are requesting; resolve questions about the state of the record and the nature of the rulings being challenged; and explore strengths, weaknesses, and implications of the parties' arguments. The process likewise is similar. In both courts, the goal is to have a conversation with the judges, one that is helpful to their resolution of the disputes before them. *See* § 4.1-1(b). There are some significant differences, though.

First, there is the fact that you will be arguing before seven judges, rather than three. As a matter of arithmetic, that means that you are likely to be required

to juggle more questions in the course of an argument. It is still a conversation, just one with more participants. The court endeavors to be polite, but interruptions are sometimes unavoidable. Do not become flustered by such interruptions. Remember that the purpose of oral argument is not to provide you with a stage on which to orate, but an opportunity to persuade. Each question is an opportunity to do just that. Sometimes the questions can come at you in fairly rapid-fire fashion. The particular challenge of the supreme court advocate is to acknowledge all such questions, quickly order them, and then answer each and every one. In a related vein, sometimes the justices, in effect, will have a conversation with one another through their questions of counsel. Being aware of that dynamic can provide an advocate with the opportunity to be more responsive and, in the process, more persuasive.

Second, arguments may be longer before the supreme court. Current rules provide for 30 minutes per side, ORAP 6.15(1)(a), which provides counsel a bit more time to flesh out arguments and answer questions. That said, even before the supreme court, counsel should not assume that they must use every minute of argument that the rules allow. The point is to make the time count.

Third, the focus of the argument often will be slightly different because of the nature of the supreme court's function as a law-announcing, as opposed to an error-correcting, court. *See* § 3.4-2(a). In the vast majority of cases argued before the court of appeals, the focus tends to be on whether a trial court or administrative agency erred in the application of the law. The court's questions during argument frequently target such issues as preservation of error, the state of the record, and standards of review, in an effort to find the narrowest principled ground on which to decide the case. On the merits, questions in the court of appeals tend to focus on the proper interpretation and application of existing precedent. One good supreme court decision can win a case.

Before the supreme court, the focus is different. The court usually decides to take a case not to correct error, but to make law—that is, to address an issue of first impression or to clarify or alter existing precedents. As a result, touting a recent case often will not get you very far before the supreme court. Nor will arguments about lack of preservation (the court does not usually take cases only to dispose of them on preservation grounds). Nor will an argument that the result you are advocating is justified by the unique facts of your case.

When arguing before the supreme court, always come prepared to explain the rule of law that you are proposing. Be prepared to explain why it is correct, and not merely because it is consistent with prior cases. Although consistency with prior case law is usually a good thing, the fact remains that the supreme court is not bound by its own cases. Accordingly, the court is likely to be more interested in why a case that you cite or rule that you propose makes sense, and whether it is consistent with the wording of relevant statutory or constitutional provisions and the court's adopted methods of interpreting them.

Be prepared to spend much of your time answering the court's hypothetical questions. Again, the court likely took the case to announce new law—law that will apply to other cases and other circumstances. It is almost never a very good idea to respond with, "of course, those are not the facts of this case, your honors." The court usually knows that and is asking hypothetical questions to test how the law that you are asking it to adopt will apply not just to your case, but to others.

At the same time, be prepared to explain how the adoption of your proposed rule of law plays out in your case. Will it require outright reversal? A new trial? Correction of the judgment? What specific instructions to the trial court or administrative agency will adopting your rule of law require?

Finally, the nature of the supreme court's case load is such that it tends to take cases that present difficult, close questions. Whether the issue is one of constitutional or statutory interpretation or common-law doctrine, there sometimes are no clear answers. Although the job of the supreme court advocate certainly is to offer the court the clearest possible answer, care must be taken not to overdo it. A certain amount of humility and candor in the face of a truly difficult problem can be more persuasive than bravado and false certainty. In a similar vein, policy arguments can have a legitimate place in arguments to the supreme court. In the case of a particularly ambiguous statutory provision, it may be appropriate to refer to the policy consequences of adopting one interpretation or another to avoid absurd results.

Chapter 5: APPELLATE MOTIONS PRACTICE

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§ 5.1 SCOPE OF THE CHAPTER

This chapter provides additional information concerning certain topics addressed in *Appeal and Review: The Basics* (OSB Legal Pubs 2010), including motions for stays, motions concerning the record on appeal or judicial review, and motions and petitions for reconsideration of Oregon Court of Appeals decisions. The chapter addresses other specific types of motions commonly filed in the court of appeals and Oregon Supreme Court, such as applications to appear *amicus curiae*, motions relating to representation by counsel on appeal, and motions for disqualification of a judge or the appellate commissioner. Also addressed is a motion type in a class all by itself—motions relating to class actions—as well as brief mention of various miscellaneous motions. Wrapping up the chapter is a discussion of various types of motions filed in the trial court in connection with an appeal.

This chapter assumes the reader is familiar with the information about motions in chapter 8 of *Appeal and Review: The Basics*.

§ 5.2 MOTIONS FOR STAYS AND OTHER EMERGENCY RELIEF

Motions for stay of enforcement of judgments on appeal in civil cases and for stays of agency orders on judicial review of administrative agency decisions are discussed thoroughly in *Appeal and Review: The Basics* § 8.28 to § 8.32 (OSB Legal Pubs 2010). This chapter provides additional information respecting stays (1) in civil cases generally and in domestic relations, juvenile, and other case types in which the appellate courts have *de novo* review authority, and (2) on judicial review of administrative rules.

This chapter also addresses motions for stays in mandamus proceedings in the Oregon Supreme Court, motions to hold a case in abeyance as a result of a party filing a petition in bankruptcy, and motions for stays or to hold in abeyance pending filing and disposition of a petition for writ of *certiorari* in the United States Supreme Court.

§ 5.2-1 Motion for Stay on Appeal from Court of Law

§ 5.2-1(a) Civil Cases

As noted in *Appeal and Review: The Basics* § 8.28 (OSB Legal Pubs 2010), a judgment is enforceable only upon entry of the judgment in the trial court register. *See* ORS 18.082(1)(b). However, there are two exceptions to that general rule: (1) When the judge signs a judgment in open court, ORS 3.070, *Strawn v. Farmers Ins. Co. of Oregon*, 350 Or 336, 367, 258 P3d 1199, *adh'd to on recons*, 350 Or 521, 256 P3d 100 (2011), *cert den*, 132 S Ct 1142 (2012) (order or judgment signed in open court effective immediately); and (2) when the trial judge directs otherwise. ORCP 72 A (trial court may stay enforcement of judgment temporarily pending filing notice of appeal or pending disposition of appeal); ORCP 72 D (trial court may stay enforcement of limited judgment entered under ORCP 67 B).

§ 5.2-1(b) Domestic Relations, Juvenile, and Other Case Types in Which the Court Has *De Novo* Review Authority

PRACTICE TIP: In the Oregon Court of Appeals, if the party seeking a discretionary stay intends to seek *de novo* review under ORS 19.415(3)(b) and ORAP 5.40(8) of the trial court's explicit or implied findings of fact, the party should so indicate in the motion for stay.

§ 5.2-2 Motion to Stay Enforcement of Administrative Rules Pending Judicial Review under ORS 183.400

Appeal and Review: The Basics § 8.31 (OSB Legal Pubs 2010), noted that in *Nw. Title Loans, LLC v. Div. of Fin. & Corporate Sec., Div. of Dep't of Consumer & Bus. Servs.*, 180 Or App 1, 42 P3d 313 (2002), the Oregon Court of Appeals addressed its inherent authority to stay enforcement of an administrative review pending judicial review of the rule under ORS 183.400. Two observations are pertinent: First, that case was moot by the time the court rendered the decision; consequently, the court withdrew the decision on that ground, by unpublished order dated June 12, 2002. However, in *Lovelace v. Bd. of Parole & Post-Prison Supervision*, 183 Or App 283, 288 n 3, 51 P3d 1269 (2002), the court stated that, notwithstanding that the *Nw. Title Loans* decision had been withdrawn, the court would continue to refer to the parts of the decision that remained persuasive.

Second, the court's inherent authority to stay enforcement of an administrative rule, and the standards for exercising that authority, may also apply to an administrative rule involved in a judicial review in a contested case. On judicial review in a contested case, the petitioner may be able to assert the invalidity of a rule "as applied," and may not be limited to a facial validity challenge as is the situation under ORS 183.400. However, no published decisions address that situation.

§ 5.2-3 Motion for Stay in Supreme Court Mandamus Case

The relator in a mandamus case filed in the Oregon Supreme Court who seeks a stay in the proceedings from which the mandamus matter arises must comply with ORAP 11.05(2)(e). The caption of the case must indicate "STAY REQUESTED" and must show that the relator sought relief from the tribunal or official whose decision is being challenged or show that it would be futile to do so. The motion requesting the stay must comply with ORAP chapter 7 governing the form of motions generally. ORAP 11.05(2)(e).

§ 5.2-4 Motion to Stay or Hold in Abeyance Pending Bankruptcy Proceeding

On appeal in a case subject to the automatic stay under 11 USC § 362(a)(1) that arises upon the filing of bankruptcy proceedings, the party seeking bankruptcy relief should file a motion to hold the appeal in abeyance. ORAP 8.20(1). If the appellant believes the appeal is subject to the stay when the appeal is filed, the appellant should include the request to hold the appeal in abeyance in the notice of appeal. ORAP 8.20(3). When the bankruptcy proceeding is resolved or if the bankruptcy court grants relief from the automatic stay to allow the appeal to proceed, the appellant should so inform the appellate court.

§ 5.2-5 Motion to Stay Enforcement of Appellate Judgment Pending a Petition for Certiorari in United States Supreme Court

Sometimes a party will want to petition the United States Supreme Court for a writ of *certiorari* with respect to the appellate court decision on the merits of an appeal or judicial review. Typically, such a party will want the appellate decision not to be enforced while the Supreme Court decides whether to grant the petition and, if the Supreme Court grants the petition, pending that court's decision. ORS 19.270(6) and ORAP 14.10 spell out the procedure for seeking to avoid issuance of

the appellate judgment or enforcement of the appellate court decision during that process.

The decision of the Oregon Court of Appeals or Oregon Supreme Court disposing of a case on appeal generally does not become effective and enforceable until the appellate judgment issues. *See* ORS 19.270(8); ORAP 14.05(2). There is a difference of opinion amongst appellate lawyers about whether, under United States Supreme Court Rule 13, the time to file a petition for *certiorari* runs from issuance of the appellate judgment or from the date of the last decision of the appellate court for which the writ of *certiorari* is sought. Lawyers in the camp of those who believe that the time for filing a petition for writ of *certiorari* runs from the date of the Oregon Supreme Court's decision, denial of reconsideration, or denial of review will want to move to stay issuance of the appellate judgment pending the filing and disposition of the petition for *certiorari*. Lawyers who believe that the time for filing the petition does not begin to run until after the appellate judgment issues will want to move to stay enforcement of the appellate judgment after it issues. *See* ORAP 14.10(1). That rule allows for both possibilities, because it is not the place of the Oregon appellate courts to decide for the United Supreme Court the event that triggers the running of the petition for *certiorari* period.

The motion to stay either issuance or enforcement of an appellate judgment must be filed in the court of appeals if the decision sought to be reviewed by the United States Supreme Court is that of the court of appeals, and the only role of the Oregon Supreme Court has been to deny a petition for review of the court of appeals decision. If the Oregon Supreme Court has granted a petition for review and has issued a substantive decision, or even merely vacated the court of appeals decision and remanded for reconsideration, the motion to stay should be filed in the Oregon Supreme Court. ORAP 14.10(2).

§ 5.3 MOTIONS CONCERNING JURISDICTION

§ 5.3-1 Motion to Dismiss for Failure to Timely Serve or File a Case-Initiating Document

§ 5.3-1(a) Notice of Appeal on Appeal from Circuit Court

The time for filing notice of appeal in a civil case subject to ORS chapter 19 is jurisdictional and cannot be extended or waived; the same is true about the time

within which to serve copies of the notice of appeal on other parties to the case. ORS 19.270(2); *see Pohrman v. Klamath County Com'rs*, 272 Or 390, 397, 538 P2d 70 (1975) (timely service of notice of appeal is jurisdictional); *accord Hein v. Columbia Cnty.*, 96 Or App 576, 580–81, 773 P2d 791, *rev den*, 308 Or 197 (1989), *superseded by statute on other grounds*, Or Laws 1989, ch 768, § 12, *as stated in Matter of Marriage of Harris*, 104 Or App 209, 213, 799 P2d 699 (1990) (same). If the respondent determines that the appellant failed in either respect, the respondent's remedy is to file a motion to dismiss the appeal.

ORS 19.270 is made applicable to appeals in criminal cases by ORS 138.185(2); thus timely filing and service of the notice of appeal in criminal cases likewise is jurisdictional and subject to a motion to dismiss for defects in either. But if the notice of appeal is filed and served within 90 days of the date of entry of judgment in criminal and postconviction relief cases, on motion of the offender, the court must grant leave for the offender to pursue an otherwise untimely appeal if the offender makes the showings required by ORS 138.071(5) (criminal cases) or ORS 138.650(2) (postconviction relief cases).

If a motion to dismiss an appeal is filed before the transcript has been filed, the party filing the motion must serve a copy on the transcript coordinator and, if known to the party filing the motion, any court reporter or transcriber who is preparing all or part of a transcript. ORAP 7.10(4). If the motion to dismiss is filed after the transcript has been prepared and filed, service on the transcript coordinator, transcriber, or court reporter is not necessary.

> PRACTICE TIP: The appellate courts screen appeals for, among other things, jurisdictional defects, including determining whether the notice of appeal appears to have been timely filed and served. Depending on how clear or unclear it is that the notice of appeal was filed or served timely, the court may issue an order of dismissal or an order to show cause why the appeal should not be dismissed. The court may issue such an order within as short a time as a couple of weeks after the notice of appeal is filed, depending on the court's work load. A lawyer representing a respondent who wishes to avoid incurring additional attorney fees and who believes that the notice of appeal may have been filed or served untimely may choose to wait to see if the court acts on its own motion. Alternatively, if time is of the essence, the lawyer may wish to immediately move to dismiss the appeal.

PRACTICE TIP: An appellant's lawyer who harbors doubt about whether the notice of appeal was filed or served timely may file a motion to determine jurisdiction at the same time or shortly after filing the notice of appeal. That practice has the advantage of resolving whether the appeal will be dismissed before the appellant incurs the cost of preparing a transcript or incurs attorney fees for preparation of a brief.

§ 5.3-1(b) Petition for Judicial Review of State-Agency Order

ORS 183.482(1) imposes a time limit for filing a petition for judicial review in a contested case under the Oregon Administrative Procedures Act (APA). Subsection (2) of the same statute requires service of a copy of the petition on all other parties of record to the agency proceeding. However, there is no statute comparable to ORS 19.270 stating that either timely filing or service is jurisdictional. Nevertheless, the Oregon Court of Appeals treats an untimely filed petition as a ground for dismissal of the judicial review. *See Vorm v. David Douglas Sch. Dist. No. 40*, 45 Or App 225, 227–28, 608 P2d 193 (1980) (rejecting respondent's contention that petition for judicial review was filed untimely). There do not appear to be any reported cases suggesting that timely service of a petition for judicial review under the APA is jurisdictional, and the appellate courts do not, on their own motion, dismiss judicial reviews under the APA on that ground.

By contrast, the timely filing and service of a petition for judicial review of an order of the Land Use Board of Appeals is jurisdictional. ORS 197.850(3)(b); *Wal-Mart Stores, Inc. v. City of Cent. Point*, 341 Or 393, 399–400, 144 P3d 914 (2006). The same is true of orders of the Workers' Compensation Board. ORS 656.298(5).

§ 5.3-1(c) Other Factors to Consider

Two aspects of motions to dismiss on jurisdictional grounds should be noted. First, merely because the chief judge, the appellate commissioner, or the Motions Department has denied a motion to dismiss on jurisdictional grounds does not preclude the department of the court that hears the case on its merits from revisiting that issue. ORAP 7.15(3). *See, e.g, In re Marriage of Jensen*, 169 Or App 19, 22, 7 P3d 691 (2000).

Second, the facts relating to filing and service of a case-initiating document typically occur outside of the record of the tribunal from which the appeal or judicial review arises. *See, e.g., Mullens v. L.Q. Dev., Oregon Ltd.*, 312 Or 599,

607, 825 P2d 1376 (1992); *In re Marriage of McKinney*, 201 Or App 721, 725, 120 P3d 921 (2005), *rev den*, 341 Or 245 (2006). Thus, the appellate court may be placed in the position of considering affidavits or declarations, mailing receipts, and other evidence outside the trial-court record regarding how filing or service was accomplished. Such materials should be attached to or accompany a motion to dismiss or response to a motion to dismiss.

In extreme cases, the court may appoint a special master to take evidence on the question, or remand the case to the trial court to conduct a hearing, take evidence, and make recommended findings of fact on the question.

§ 5.3-1(d) Original Jurisdiction Cases in the Supreme Court

With respect to petitions invoking the Oregon Supreme Court's original jurisdiction in mandamus, habeas corpus, and quo warranto cases, there is no specific time limit for filing the petition. At least as to mandamus cases, the supreme court has held that whether the petition is timely filed is governed by the doctrine of laches. *See, e.g., State ex rel. Fidanque v. Paulus*, 297 Or 711, 717, 688 P2d 1303 (1984).

> PRACTICE TIP: Because there is no hard and fast deadline for invoking the supreme court's original jurisdiction, and because the court has discretion to deny a petition invoking the court's jurisdiction in such cases, a contention that the petition was filed untimely is more appropriately made in a memorandum in opposition to the petition rather than by way of a motion to dismiss.

§ 5.3-2 Other Motions Related to Jurisdiction and Appealability

§ 5.3-2(a) Motion to Dismiss for Lack of Appealable Decision

Regrettably, parties, including parties represented by lawyers, all too often take appeals from nonappealable decisions. The respondent's remedy for raising that issue with the appellate court is by way of a motion to dismiss.

> PRACTICE TIP: Currently, at the outset of the appeal, the appellate court does not have access to the trial-court record. That will change when the judicial branch's eCourt initiative is implemented, but until then, the lawyer should append to a motion to dismiss (or response to a motion to dismiss) copies of documents from the trial court supporting the party's position.

§ 5.3-2(b) Motions for Rulings on Appealability

§ 5.3-2(b)(1) Motion for Determination of Appealability

Sometimes the appellant or petitioner harbors doubt about whether a judgment or order is subject to appeal and does not want to take the chance of losing the opportunity to appeal or seek judicial review at that time. One remedy would be to file a motion for determination of appealability along with, or shortly after, filing notice of appeal. In that manner, the appellant or petitioner can get a ruling up front on the jurisdictional issue without risk of forfeiting the opportunity to appeal at all, or incurring the expense of preparing a transcript and a brief only to be confronted by a motion to dismiss well into the appeal.

The downside is that like any matter of jurisdiction, the court's initial ruling is subject to a second look later. ORAP 7.15(3) (motion other than challenge to court's jurisdiction may not be resubmitted without leave of court in order ruling on motion). Especially in the Oregon Court of Appeals, where the chief judge or appellate commissioner typically rule on a motion to determine appealability, the department of the court that hears the case on its merits may revisit the issue and reach a different conclusion. *See, e.g.*, *In re Marriage of Jensen*, 169 Or App 19, 22, 7 P3d 691 (2000).

§ 5.3-2(b)(2) Summary Determination of Appealability

If time is of the essence, the lawyer should consider filing a motion for summary determination of appealability under ORS 19.235(3). If such a motion is filed in an appeal pending in the Oregon Court of Appeals, and the court elects to make a summary determination of appealability, then the determination is subject to expedited review by the Oregon Supreme Court. Unless either the court of appeals or supreme court further shortens the time within which to seek review, any petition for review of the court of appeals' summary determination must be filed within 14 days after the decision. The supreme court must expedite its consideration of the petition for review. ORS 19.235(3).

The court of appeals decides whether to treat a determination of appealability as a summary determination subject to the provisions of ORS 19.235(3), and if the court does so, it will include a notice to that effect in its decision. *Hawkins v. City of La Grande*, 93 Or App 63, 68, 760 P2d 1346, *rev den*, 307 Or 145 (1988); ORAP 2.35(3)(a). Even if a party moves for a summary determination under ORS 19.235(3), the court may elect not to treat the

determination as such; conversely, even if a party does not request a summary determination, the court may elect to make its determination subject to ORS 19.235(3). Similarly, when the court on its own motion makes a determination of appealability, it may or may not elect to do so under the summary determination provisions of ORS 19.235(3).

The criteria the court uses to decide whether to make a summary determination of appealability under ORS 19.235(3) include assessing the status of proceedings in the trial court, determining whether the pendency of the appeal is seriously disrupting proceedings in the trial court, and determining whether the pace of litigation will permit the normal appellate process to run its course.

A party may file a motion for summary determination of appealability in the trial court. ORS 19.235(1). If the trial court determines that the trial-court decision from which an appeal has been attempted is not appealable, the trial court may continue to exercise jurisdiction in the case, including through entry of judgment. The trial court may also refer the appealability question to the appellate court. ORS 19.235(2).

> PRACTICE TIP: If a party files a notice of appeal in the middle of litigation, it makes sense to move the trial court under ORS 19.235(1) to determine the appealability question, because if the trial court determines that the decision being appealed is not appealable, even if the trial court ultimately is wrong about that question, the trial court retains jurisdiction to proceed with the case. ORS 19.235(4)(b). If a party files notice of appeal after the litigation is largely over and time is no longer of the essence, it makes more sense to move the appellate court for a determination of appealability under ORS 19.235(3).

§ 5.3-2(c) Motion for Leave to Enter Appealable Judgment

Sometimes the trial court has conclusively disposed of a matter, and the matter is ripe for entry of either a general judgment, limited judgment, or supplemental judgment, but a party jumps the gun and files notice of appeal before preparation, signing, filing, or entry of the judgment in the trial court register. If the judgment is not appealable solely for that reason, the appellate court has authority to give the trial court leave to enter the judgment. ORS 19.270(4). *See Ellis v. Roberts*, 302 Or 6, 9–10, 725 P2d 886 (1986). Although the appellate court typically on its own motion will give a trial court leave if it determines that an

appeal fits the criteria of ORS 19.270(4), there is no harm in a party including a request for that relief, when appropriate, in a motion to dismiss, a motion to determine jurisdiction, or a motion to give leave for entry of judgment under ORS 19.270(4).

The trial court now has authority, without leave of the appellate court, to enter a judgment that the trial judge signed before the notice of appeal was filed. ORS 19.270(5)(a) (subsection added by Or Laws 2013, ch 10, § 1).

The appellate court's order giving a trial court leave to enter judgment under ORS 19.270(4) may hold the appeal in abeyance until the judgment is entered, and also may require the filing of an amended notice of appeal or notice of intent to proceed with the appeal. The appellant who fails to file an amended notice of appeal or notice of intent to proceed within the time prescribed in the order may be subject to dismissal of the appeal for lack of prosecution, but the appeal may not be dismissed for lack of jurisdiction. *Baugh v. Bryant Ltd. Partnerships I through XV*, 312 Or 635, 644–45, 825 P2d 1383 (1992).

There is no similar grant of authority comparable to ORS 19.270(4) applicable to judicial reviews to give an administrative agency leave to issue a final order when a party has filed a premature petition for judicial review. But, likewise, there is no statute comparable to ORS 19.270(1) providing that the filing of a premature petition for judicial review deprives the agency of jurisdiction to issue its order. Thus, except on judicial review of decisions of the Board of Parole and Post-Prison Supervision, which is subject to a requirement to exhaust administrative remedies under ORS 144.335(1)(b), the problem does not often present itself in agency review proceedings.

Similarly, there is no statute or rule for either an appeal or a judicial review that authorizes the filing of a motion to determine other potential jurisdictional defects, such as untimely filing of the notice of appeal or petition for judicial review, or untimely service of either. By the same token, there is no rule barring an appellant or a petitioner from filing such a motion if there is legitimate doubt at the outset of the case of whether such a jurisdictional defect exists.

§ 5.4 MOTIONS CONCERNING THE RECORD ON APPEAL OR JUDICIAL REVIEW

Appeal and Review: The Basics (OSB Legal Pubs 2010), § 8.33 to § 8.39, addresses motions concerning the record on appeal. In § 5.4-1(a) to § 5.4-2, this chapter provides additional information about topics addressed in those sections.

§ 5.4-1 On Appeal from Circuit Court

§ 5.4-1(a) Transcriber Motion for Extension of Time to Prepare Transcript

The transcriber should file the motion for extension of time to prepare and file the transcript if the transcriber is the cause of the delay, such as when the transcriber is responsible for preparing other transcripts that are due at an earlier date. A transcriber is not required to pay a fee for filing a motion for extension of time to file the transcript.

> PRACTICE TIP: Because transcribers are not required to pay the $50 fee for a motion for extension of time to file a transcript, a lawyer may be tempted to persuade a transcriber to file a motion for extension of time even when the failure to file the transcript timely is attributable to the lawyer, such as when the lawyer has not arranged for timely payment for the transcript. The appellate courts are aware of that possibility, and may deny a transcriber's motion for extension of time and direct the appeal to proceed without a transcript if it appears that the lawyer is using the transcriber to avoid paying the motion filing fee.

§ 5.4-1(b) Motion for Preparation of the Transcript at State Expense in a Civil Case

A party in a civil case who has designated the transcript of oral proceedings in the trial court as part of the record on appeal may ask the appellate court to "waive" or "defer" the cost of preparing the transcript. ORS 21.695(1). The appellate court does not really waive or defer the expense of preparing the transcript, because the transcriber must be paid for preparing it; rather, under ORS 21.695(2), the state court administrator will pay that expense. The party must show that it is unable to pay for the transcript and that the transcript is necessary for the appeal and would reveal reversible error. ORS 21.695(1). *Compare Matter of Marriage of Roberts*, 34 Or App 507, 579 P2d 862 (1978) (court will deny request

for transcript at state expense if legislature has not appropriated funds for that purpose), *with City of Lake Oswego v. $23,232.23 in Cash*, 121 Or App 432, 435, 855 P2d 201 (1993) (legislature had appropriated funds that biennium for preparing transcripts for indigent persons in civil cases).

> PRACTICE TIP: A motion for preparation of the transcript at state expense in a civil case should be fairly specific about the nature of the claimed trial-court errors that the lawyer believes will result in modification or reversal of the judgment being appealed and should contain some reference to the record to show that the issue is raised in the record. The motion should also state the transcriber's estimated cost for preparing the transcript.

§ 5.4-2 On Judicial Review of State-Agency Orders

As stated in *Appeal and Review: The Basics* § 8.38 (OSB Legal Pubs 2010), a party on judicial review of an agency order may seek to correct or add to the agency record. The party must file a motion with the agency and serve a copy on the appellate court. ORAP 4.22(1)–(2).

> PRACTICE TIP: Because ORAP 4.22(1) requires the original of a motion to correct or add to the agency record to be filed with the agency, the motion should be styled in the name of the agency rather than the name of the appellate court. If a party styles the motion in the name of the appellate court, uncertainly arises regarding whether the party really intended the court or the agency to rule on the motion. A state agency may treat a mis-styled motion as nevertheless directed to the agency and rule on it, but the lawyer should not count on it.

Unlike an appeal, on judicial review, the state agency does not need to issue a separate order settling the record; it is sufficient that the agency file its order disposing of the motion and, if the agency granted the motion, the corrected transcript or record. At that point, the record is considered settled and the due date of the petitioner's brief begins to run. ORAP 4.22(4).

However, a petitioner dissatisfied with the state agency's disposition of a motion to correct or add to the agency record has 14 days to move the appellate court for review of the agency's decision. ORAP 4.22(5). The filing of the motion will toll the due date of the petitioner's brief until the court disposes of the motion. ORAP 7.30.

§ 5.5 APPLICATIONS TO APPEAR AMICUS CURIAE

A person or an organization may ask the appellate court's permission to appear as *amicus curiae*, ORAP 8.15(1), except that the State of Oregon may appear as *amicus curiae* without leave of the court, ORAP 8.15(9).

A request to appear *amicus curiae* is made by "application," not by motion, but the application must comply with the form requirements for motions. ORAP 8.15(2).

In the Oregon Court of Appeals, the application to appear *amicus curiae* may be accompanied by *amicus*' proposed brief; in the Oregon Supreme Court, the application must be accompanied by the proposed brief. ORAP 8.15(3).

An *amicus* brief is due in the court of appeals, and in the supreme court for cases other than those on review from the court of appeals, seven days after the due date of the brief of the party with whom the *amicus* is aligned, or seven days after the due date of the opening brief if the *amicus* is not aligned with any party. ORAP 8.15(4), (6). In the supreme court, an *amicus* brief can be filed in connection with a petition for review or on the merits after review is granted; ORAP 8.15(5) addresses the due dates of *amicus* briefs in those different situations. ORAP 8.15(5)(e) addresses the effect on the due date of an *amicus* brief when a party obtains an extension of time to file that party's petition or brief.

If a person has obtained leave to appear as *amicus curiae* in connection with a petition for review of a court of appeals decision and the supreme court grants review, the person may file an *amicus curiae* brief on the merits without leave of the court. ORAP 8.15(5)(d).

An *amicus curiae* may file a memorandum of additional authorities, or move for leave to do so, under the same circumstances that a party to the case may. ORAP 8.15(7).

Although requests to appear *amicus curiae* most often are filed in connection with briefing, interested persons may request to appear *amicus curiae* in connection with motions, particularly a motion for stay of an administrative rule, which, if granted, likely would affect persons other than the parties to the case.

§ 5.6 MOTIONS AND PETITIONS FOR RECONSIDERATION OF COURT OF APPEALS DECISIONS

§ 5.6-1 Motion for Reconsideration

The material in § 5.6-1(a) to § 5.6-1(c) provides additional information regarding topics addressed in *Appeal and Review: The Basics* § 8.45 (OSB Legal Pubs 2010), relating to motions for reconsideration.

§ 5.6-1(a) Grounds for Seeking Reconsideration

Some motions may rely on facts not found in the record of the tribunal from which the appeal or judicial review arises. Examples include a motion to dismiss for a defect in serving an adverse party or a motion for stay based on the effect of granting or denying a stay. The court in its order disposing of the motion may make implied or explicit findings based on such extra-record facts. A party may seek reconsideration of the court's explicit or implicit factual findings and inferences from those findings, even though the party's contentions may not fit precisely any of the criteria identified in ORAP 6.25(1).

§ 5.6-1(b) Form of Motion for Reconsideration

Under ORAP 6.25(5), a motion for reconsideration must comply with the general rules for motions set forth in ORAP 7.05.

§ 5.6-1(c) Time Tolled for Petition for Review

Although ORAP 9.05(2)(b) tolls the time for filing a petition for review on account of the filing and disposition of a petition for reconsideration, there is no comparable provision for motions for reconsideration. Perhaps that is because the types of decisions that appropriately are the subject of a motion for reconsideration are not often suitable fodder for a petition for review. Nevertheless, the practice of the Oregon Supreme Court is to treat a petition for review as timely filed if a party promptly moves for reconsideration of an Oregon Court of Appeals decision and files a petition for review within 35 days of the date of the court of appeals disposition of the motion.

§ 5.6-2 Petition for Reconsideration

This section provides additional information regarding topics addressed in *Appeal and Review: The Basics* § 8.46 (OSB Legal Pubs 2010), relating to

petitions for reconsideration. In particular, it discusses the form of a petition for review.

The rules for preparing, filing, and serving the petition are the same as for briefs generally (*see* ORAP 9.05(3)), except (1) the petition must have a title page containing certain information; (2) the petition must be accompanied by a copy of the decision for which reconsideration is sought; and (3) if the petition is conventionally filed, the petition must be accompanied by four copies if the case was decided by a department of the court, or by 10 copies if the case was decided by the full court. ORAP 6.25(2). (Presumably, the rule will be amended to require 13 copies for cases decided by the full court after January 1, 2014.) Although not specified in the rule, when seeking reconsideration of a decision of the appellate commissioner, a lawyer need file only the original and one copy.

> NOTE: If a petition for reconsideration is filed using the appellate courts' electronic filing system, the number of copies the filing party must pay for may differ from the number of paper copies one must file. ORAP 16.20.

§ 5.7 MOTION TO WITHDRAW, SUBSTITUTE, ASSOCIATE, OR DISCHARGE COUNSEL

§ 5.7-1 Retained Counsel

A retained lawyer who wishes to withdraw without having made arrangements for new counsel must request the appellate court's permission by motion, which must include proof of service of the motion on the client. ORAP 8.10(1). If the withdrawing lawyer has arranged for new counsel, they both may simply sign the motion for substitution of counsel and file it in the appellate court, in which event the motion is deemed granted without further ado. ORAP 8.10(2).

Attorneys from the same firm do not need to file notice of association of counsel, but if an attorney from a different law firm associates with existing counsel on behalf of a client, notice thereof must be filed, with proof of service on all other parties to the case. ORAP 8.10(3).

Appearance by out-of-state counsel is governed by ORS 9.241. An attorney admitted to the practice of law in another jurisdiction, but not in Oregon, may move to appear by brief and participate in oral argument, but must comply with UTCR 3.170, including associating with an Oregon lawyer. If the appellate court

has allowed the out-of-state attorney to appear *pro hac vice* ("for this occasion") for the purpose of filing or appearing on the brief, the attorney need not move separately to appear at oral argument. ORAP 6.10(4).

§ 5.7-2 Court-Appointed Counsel or Legal Advisor

Because of the constitutional right to counsel in certain circumstances and provisions in Oregon law for appointment of counsel or legal advisor for financially eligible persons in criminal, postconviction relief, habeas corpus, juvenile court, and mental commitment cases, motions for the withdrawal, substitution, and discharge of counsel are considerably more complicated. ORS 138.500 generally addresses appointment of counsel on appeal for financially eligible persons in those cases.

If court-appointed counsel determines that substitution of other court-appointed counsel is necessary (for instance, because the attorney discovers a conflict of interest arising from representation of another party or the attorney is leaving the practice of law), the attorney must consult with the Office of Public Defense Services to determine if the attorney to be substituted is qualified and eligible to do so, and then move in the appellate court for substitution of counsel. See ORAP 8.12(2) for information about such motions.

Mere disagreement between counsel and the client about strategy, including what issues to raise on appeal, typically does not justify substitution of court-appointed counsel.

The appellate courts expect that counsel will exercise professional judgment in determining what issues to raise on appeal. Counsel may choose to refrain from raising even meritorious issues. *Jones v. Barnes*, 463 US 745, 751, 103 S Ct 3308, 77 L Ed 2d 987 (1983) (defendants, indigent or not, have no right to compel counsel to press even a nonfrivolous issue requested by a client, if counsel decides as a matter of professional judgment not to raise the issue); *Pratt v. Armenakis*, 335 Or 35, 40, 56 P3d 920 (2002) (counsel is expected to exercise professional judgment to pick and choose among arguments). Counsel must refrain from raising frivolous issues. *State v. Balfour*, 311 Or 434, 449, 814 P2d 1069 (1991) (counsel has ethical duty to refrain from raising frivolous issues on appeal).

Thus, merely because the client disagrees with counsel regarding the issues to be raised on appeal does not justify the court discharging current court-appointed counsel and appointing new counsel.

Moreover, even the act of the client filing a complaint with the Oregon State Bar alleging professional misconduct is not *per se* a ground for removing counsel; rather, the court must determine for itself whether the alleged unprofessional conduct constitutes a sufficient ground to appoint new counsel. *State v. Taylor*, 207 Or App 649, 663–65, 142 P3d 1093 (2006), *rev den*, 342 Or 299 (2007). Nor may the perceived need to exhaust claims for federal court purposes justify appointment of new counsel. *Cf. Pratt*, 335 Or at 40 (perceived need to exhaust claims for federal court purposes not sufficient ground to exceed brief page limit).

ORAP 8.12(3)(b) recognizes that when a party has a constitutional or statutory right to counsel, counsel's motion to withdraw or the client's motion to discharge counsel implicates a waiver of counsel. When there is a constitutional right to counsel, there is a corresponding obligation on the part of the appellate court to determine that any attempt by the party to proceed without counsel is knowing, intelligent, and unequivocal. *Hendricks v. Zenon*, 993 F2d 664, 669 (9th Cir 1993). Thus, on direct appeal in criminal cases (and probably in any juvenile court and mental commitment case in which the party has a constitutional right to appointed counsel), a party represented by court-appointed counsel cannot merely fire counsel and proceed without counsel. Rather, if the party moves to discharge counsel, or if counsel moves to withdraw without appointment of new counsel, the court must satisfy itself, for instance, in a criminal case, that the party is aware of what the party is charged with, the sentence that has been imposed, generally the requirements for filing a brief, and that the appeal will not be orally argued. In such cases, the court will issue a notice to the defendant containing that information and offering a choice to the defendant to request appointment of new counsel or to proceed without counsel. If the defendant requests appointment of new counsel, the defendant must identify in what way current counsel's representation has been deficient. When the court denies such a motion, the court will give the party leave to file a supplemental *pro se* brief. ORAP 8.12(3)(c).

The appellate courts do not employ the same rigorous methodology to satisfy themselves that a party has waived a statutory right to court-appointed counsel, such as in postconviction relief and habeas corpus cases. In such cases, the courts are more inclined to allow the party to proceed without counsel, even if the client merely disagrees with counsel about how the appeal should be prosecuted.

§ 5.8 MOTION FOR DISQUALIFICATION OF JUDGE OR APPELLATE COMMISSIONER

A party may move to disqualify an appellate judge on one or more grounds specified in ORS 14.210 for disqualifying judges generally or on the ground that the judge's participation would violate the Oregon Code of Judicial Conduct. ORS 14.275. The motion must be filed as soon as practicable after the party learns of the ground for disqualification. ORAP 8.30(3)(a). The motion is forwarded to the judge against whom it is directed, and that judge may grant the motion with or without waiting for an answer from any other party. If the judge believes the motion is not well-taken, the judge must refer the motion to the presiding judge or justice, together with any written response that the judge wishes to make. A copy of that written response must be provided to the parties. If the motion is directed at the chief judge or chief justice, the motion will be referred to the next senior judge or justice. ORAP 8.30(3)(b).

A motion to disqualify the appellate commissioner follows a similar procedure. By court practice, it is referred in the first instance to the appellate commissioner. If the commissioner grants the motion, that is the end of the matter. If the commissioner would deny the motion, the motion is referred to the chief judge together with any response the commissioner may wish to make, with a copy of the response provided to the parties.

§ 5.9 CLASS ACTIONS

§ 5.9-1 Application for Interlocutory Appeal in a Class Action

In a class action under ORCP 32, a trial court may state in an order that the order presents "a controlling question of law as to which there is substantial ground for difference of opinion and that an immediate appeal from the order may materially advance the ultimate termination of the litigation." ORS 19.225. Such an order would not be appealable under ORS 19.205(2), but, based on such a statement, any party to the case has 10 days to file an application with the Oregon Court of Appeals for leave to file an interlocutory appeal from the order. See ORAP 10.05 for the details about the practice and procedure for such an application. The court of appeals has discretion whether to accept the application. ORS 19.225.

A party may apply for leave to take an interlocutory appeal even if the controlling question of law arises in the course of a trial court order denying class action status, *Joachim v. Crater Lake Lodge, Inc.*, 276 Or 875, 880–81, 556 P2d 1334 (1976), or in the course of deciding whether a case is suitable for certification as a class action, *Joarnt v. Autozone, Inc.*, 343 Or 187, 194, 166 P3d 525 (2007).

§ 5.9-2 Motion for Coordination of Class Actions

ORCP 32 K addresses the possibility of multiple class actions sharing common questions of fact or law pending in different courts, and the commensurate need to appoint a single judge to coordinate such class actions. ORCP 32 K authorizes the Oregon Supreme Court to appoint such a judge; ORAP 12.15 details the procedure for invoking that authority.

§ 5.10 MISCELLANEOUS OTHER MOTIONS

The Oregon Rules of Appellate Procedure address certain specific types of motions:

- Motion to dismiss for want of prosecution—ORAP 1.20(4).

  PRACTICE TIP: The appellate courts use a tickler system to keep track of the next event in the appeal or judicial review and will issue a notice of default if a party fails to file something when it is due, and if the party fails to cure the default, the court will dismiss the appeal or judicial review. File a motion to dismiss for want of prosecution only if you believe that the court is being too forgiving or based on a showing that further delay is unusually prejudicial.

- Motion for waiver of an appellate rule—ORAP 1.20(5).

- Motion to consolidate appeals; motion for submission of cases to the same department for decision at the same time; motion to sever—ORAP 2.30.

  PRACTICE TIP: Consolidation of cases results in the reduction of the number of pages of briefing available to the parties and reduction of oral argument time. Consider merely requesting that closely related cases be submitted to the same department for decision at the same time.

- Motion for leave to inspect confidential or sealed material—ORAP 3.07(5).

- Motion to withdraw a document from the record on appeal—ORAP 3.55(3).
- Motion for a state agency to intervene and to orally argue—ORAP 4.40; motion to appear *amicus curiae* in lieu of a motion to intervene in a ballot title case—ORAP 11.30(7).
- Motion to dismiss one's own appeal—ORAP 7.45(1) (motion must state whether the dismissal is the result of a negotiated settlement or compromise of the matter).
- Motion for summary affirmance in cases in which a party is represented by court-appointed counsel—ORAP 7.50.
- Motion for substitution of parties, adopting ORCP 34 as a rule of appellate procedure—ORAP 8.05(1).

PRACTICE TIP: ORAP 8.05(1), by adopting ORCP 34 as a rule of appellate procedure, requires that an appeal or judicial review be prosecuted or defended in the name of the real party in interest. If your client dies or a corporate entity dissolves while an appeal or judicial review is pending, determine who the successor real party in interest is and move to substitute the successor in interest. That may involve initiating a probate proceeding for the purpose of appointing a personal representative of the deceased's estate, and moving to hold the appeal or judicial review in abeyance until a personal representative is appointed.

- Motion to dismiss because of the death of the defendant in criminal cases—ORAP 8.05(2).

PRACTICE TIP: In some instances, the court may have authority to vacate the conviction from which the appeal is taken, but the court will not do so on its own, and the deceased's representative must seek that relief.

- Motion to dismiss arising from the offender absconding during pendency of appeal—ORAP 8.05(3).
- Motion to hold the appeal in abeyance pending a ruling on motions for relief from judgment; motions to reactivate appeals—ORAP 8.25(2), ORAP 2.22(2) (juvenile cases), ORAP 8.27 (dissolution cases).

- Motion to exempt a juvenile court case from expedited treatment—ORAP 10.15(1)(b).
- Motion to include a transcript or exhibit from an earlier proceeding in a juvenile court case—ORAP 10.15(3)(c).
- Motion for selection of an arbitrator for disputes over the provision of public services for prison sites—ORAP 10.20(1).
- Motion for oral argument in ballot title case—ORAP 11.30(9).
- Motion for a special briefing schedule on direct appeal or judicial review in the Oregon Supreme Court—ORAP 12.05(5).
- Motion for review of the Oregon Public Defense Services director's decision on compensation and expenses allowed to court-appointed counsel and other service providers—ORAP 13.15(2).
- Motion for reasonable expenses or attorney fees under ORAP 1.40(4) and ORCP 17 D—ORAP 13.25(2).
- Motions relating to the Appellate Settlement Conference Program: motion to waive or defer program fees—ORAP 15.05(7)(d); motion for sanctions—ORAP 15.05(9); and motion in the supreme court to reactivate the case, ORAP 15.10(2)(b).

§ 5.11 MOTIONS FILED IN THE TRIAL COURT AFFECTING OR IN CONNECTION WITH AN APPEAL

This part of the chapter identifies certain motions filed in the trial court that may affect the timing of an appeal, the jurisdiction of the appellate court, and the progress of an appeal. *See* § 5.11-1(a) to § 5.11-1(c). This part also discusses certain motions filed in the trial court in connection with an appeal or judicial review. *See* § 5.11-2(a) to § 5.11-2(f). Lastly, this part addresses appellate court review of trial court orders arising from motions filed in the trial court affecting or in connection with an appeal. *See* § 5.11-3.

§ 5.11-1 Trial Court Motions That May Affect Timing, Jurisdiction, and Progress of an Appeal

§ 5.11-1(a) Motion for Judgment Notwithstanding the Verdict and Motion for New Trial

Complexities and nuances in procedure arise from the interplay between an appeal on the one hand and, on the other hand, a motion for judgment notwithstanding the verdict ("motion jnov") under ORCP 63 and a motion for new trial under ORCP 64. Those rules contemplate that, generally, a motion jnov or for new trial will be filed after entry of the judgment, which is, of course, when notice of appeal might be filed. Further, those rules impose a time limitation on when such a motion must be filed, and also provide that if the motion is not decided within a particular time, the motion is deemed denied. *See* ORCP 63 D, ORCP 64 F. The appellate courts have held that a timely filed motion jnov or for new trial renders the judgment nonconclusive and nonappealable until the motion is disposed of. *Welker ex rel. Bradbury v. Teachers Standards & Practices Comm'n*, 332 Or 306, 312–13, 27 P3d 1038 (2001); *see* ORS 19.255(2) (when timely motion jnov or for new trial is filed, appeal period begins to run when motion is disposed of). Thus, it is important for the lawyer to be aware of the time limits for filing and disposing of motions jnov and for new trial.

In the trial court, following trial of a cause, a party may file a motion jnov under ORCP 63 or, in the alternative, for a new trial under ORCP 64. Such motion or motions must be filed "not later than 10 days after the entry of the judgment sought to be set aside, or such further time as the [trial] court may allow." ORCP 63 D(1), ORCP 64 F(1). "Not later than" has been construed to allow a motion jnov or for new trial to be filed before entry of judgment, at least when the opposing party does not object. *Way v. Prosch*, 163 Or App 437, 442, 988 P2d 422 (1999). If a trial court grants additional time to file a motion jnov or for new trial, it must do so before expiration of the 10-day period following entry of judgment. *State ex rel. State Farm Mut. Auto. Ins. Co. v. Olsen*, 285 Or 179, 181, 590 P2d 231 (1979), *overruled on other grounds by Ass'n of Unit Owners of Timbercrest Condominiums v. Warren*, 352 Or 583, 591–92, 598, 288 P3d 958 (2012).

> NOTE: If a party has filed notice of appeal in a case, a party filing a motion jnov or for new trial must serve a copy of the motion on the appellate court. ORCP 63 D(2), ORCP 64 F(2).

A motion jnov or for new trial is considered disposed of by an order entered in the trial court register within 55 days of the date of entry of judgment, *Ryerse v. Haddock*, 337 Or 273, 281, 95 P3d 1120 (2004); by oral ruling and signed order in open court, *Strawn v. Farmers Ins. Co. of Oregon*, 350 Or 336, 367, 258 P3d 1199, *adh'd to on recons*, 350 Or 521, 256 P3d 100 (2011), *cert den*, 132 S Ct 1142 (2012); or by operation of law on the 56th day after entry of judgment, *Propp v. Long*, 313 Or 218, 226, 831 P2d 685 (1992). *See* ORCP 63 D(1), ORCP 64 F(1).

> NOTE: If a motion jnov or for new trial is decided by trial-court order, the party that filed the motion must provide the appellate court with a copy of the order within seven days after entry of it. ORCP 63 D(2), ORCP 64 F(2).

The parties' agreement to reschedule the hearing on a motion for new trial does not waive the 55-day "deemed denied" period. *White v. Lei*, 196 Or App 243, 246, 101 P3d 368 (2004), *rev den*, 338 Or 375 (2005). However, when the parties jointly agree to a new trial, the trial court has authority to grant the motion for new trial and to vacate the judgment more than 55 days after entry of judgment. *Guenther v. Martinez*, 98 Or App 735, 738, 780 P2d 799 (1989).

Notwithstanding that the timely filing of a motion jnov or motion for new trial could render a judgment nonappealable, parties often file notice of appeal before those motions are decided. Some would argue that it is prudent to file notice of appeal within 30 days of entry of judgment and without regard to the pendency of a motion jnov or for new trial, because the appellate court could determine later that the motion was not timely filed, that a motion jnov or for new trial was not applicable to the particular kind of case, or because of uncertainty about when the 55-day "deemed denied" period expires. *See Ass'n of Unit Owners of Timbercrest Condominiums*, 352 Or at 598 (when case is resolved on motion for summary judgment, there is no trial, therefore motion for new trial was inapplicable and did not toll appeal period); *Alt v. City of Salem*, 306 Or 80, 85, 756 P2d 637 (1988) (in writ of review case, there is no trial, therefore, motion for new trial did not toll appeal period); *White*, 196 Or App at 246 (parties agreement to reschedule hearing does not waive 55-day "deemed denied" period); *Guenther*, 98 Or App at 738 (55-day "deemed denied" period does not apply when parties jointly moved the court to vacate judgment and grant a new trial); *Schmidling v. Dove*, 65 Or App 1, 6–7, 670 P2d 166 (1983) (motion for reconsideration treated as motion for new trial did not toll appeal time because motion was filed more than 10 days after judgment).

In light of the foregoing vagaries, proponents of filing notice of appeal prematurely might seem to have the better argument. However, doing so creates other complications. At one time, if a party appealed from a judgment during the pendency of a motion jnov or for new trial, the appellate court had to dismiss the appeal and the trial court was deprived of jurisdiction to rule on the motion, which had the effect of tolling the 55-day "deemed denied" period until the appellate judgment issued. *Welker*, 332 Or at 312–13 (describing procedural problems created by premature notice of appeal). The parties then would need to calculate how many of the 55 days remained during which the trial court could enter an order disposing of the motion or after which the motion was deemed denied to determine when the notice-of-appeal period resumed.

In 2006, the Council on Court Procedures amended ORCP 63 D and ORCP 64 F to provide that the trial court retains jurisdiction notwithstanding the filing of notice of appeal to rule on a motion jnov or for new trial. The 2007 Legislative Assembly adopted conforming amendments to ORS 19.270(1). Or Laws 2007, ch 66, § 1. Under current law, then, if a party files notice of appeal during the pendency of a motion jnov or for new trial (or if a party files notice of appeal within the 10-day period in which a party could file a motion jnov or for new trial and a party timely files such a motion within the 10-day period), the trial court retains jurisdiction to rule on the motion. The appellate court need not dismiss the appeal, but may hold the appeal in abeyance until the motion is disposed of, without further disruption of the appellate process.

Despite the 2006 to 2007 amendments to ORCP 63, ORCP 64, and ORS 19.270, one wrinkle remains: If a party files a premature notice of appeal and the appellate court holds the appeal in abeyance until the trial court disposes of the motion, what happens after the motion jnov or for new trial is disposed of; specifically, must the appellant file a new notice of appeal? The 2006 to 2007 amendments did not change the holding of *Welker* that the filing of a motion jnov or for new trial rendered the judgment nonconclusive and nonappealable, and the judgment becomes appealable only after the motion is disposed of. In *Ass'n of Unit Owners of Timbercrest Condominiums v. Warren*, 242 Or App 425, 436–37, 256 P3d 146 (2011), *aff'd*, 352 Or 583, 288 P3d 958 (2012), the Oregon Court of Appeals held that when a party files a premature notice of appeal during the pendency of a timely filed motion for new trial, the party need not file a new notice of appeal after the trial court disposes of the motion for new trial. On review in that

case, the Oregon Supreme Court ultimately affirmed the court of appeals disposition of the case on other grounds, *Ass'n of Unit Owners of Timbercrest Condominiums*, 352 Or at 599, thus rendering the court of appeals holding *dictum*. Moreover, although the procedural posture in *Johnson v. Assured Employment*, 277 Or 11, 16, 558 P2d 1228 (1977), was different, the court held that a premature appeal does not ripen into a proper appeal when the reason for prematurity is subsequently removed.

PRACTICE TIP: Avoid the controversy and timely file a new notice of appeal after disposition of the motion jnov or for new trial.

§ 5.11-1(b) Motion in Arrest of Judgment and Motion for New Trial in Criminal Cases

In a criminal case, the defendant may file a motion in arrest of judgment, ORS 136.500, or a motion for new trial, ORS 136.535. Either motion must be filed within the same time as a motion for new trial in civil cases, that is, within 10 days of the date of entry of judgment, because ORCP 64 F applies to both types of motions. ORS 136.535.

If a motion in arrest of judgment or a motion for new trial is pending in the trial court at the same time as an appeal is pending in the appellate court, the trial court retains jurisdiction to decide the motion. ORCP 64 F(2). Further, if the trial court does not decide the motion by order entered in the register within 55 days of entry of judgment, the motion is deemed denied thereafter. ORCP 64 F(1). However, like motions for judgment notwithstanding the verdict or for new trial in civil cases, left unsolved is the issue of whether, as a matter of jurisdiction, the appellant must file a new notice of appeal after disposition of the motion. *See* § 5.11-1(a).

§ 5.11-1(c) Motion for Relief from Judgment under ORCP 71

ORCP 71 B(2) provides that a party may file a motion for relief from judgment under parts A and B of that rule during the pendency of an appeal and that the trial court retains jurisdiction to rule on it. *Accord* ORS 19.270(1)(e). Although ORCP 71 B(2) does not say so expressly, the legislature likely also intended that if a party files a motion under ORCP 71 A or B within the 30-day appeal period and before notice of appeal is filed, the trial court would retain jurisdiction to rule on the motion notwithstanding the filing of notice of appeal.

NOTE: If a party has filed notice of appeal in a case, a party filing a motion for relief from judgment must serve a copy of the motion on the appellate court. The party filing the motion also must provide the appellate court with a copy of the trial court's order ruling on the motion, within seven days of the date of the order. ORCP 71 B(2).

Upon receiving a copy of a motion for relief from judgment, the appellate court will decide whether to hold the appeal in abeyance pending disposition of the motion. ORAP 8.25(2). Likewise, upon receiving a copy of the order disposing of the motion, the court will decide whether to reactivate the appeal or to take some other action (such as dismissing the appeal, if the order vacates or sets aside the judgment). ORAP 8.25(4). Assuming that an order disposing of a motion for relief from judgment is appealable, a notice of appeal must be filed within the time prescribed in ORS chapter 19 and must bear the same appellate case number assigned to the original notice of appeal. ORAP 8.25(3).

§ 5.11-2 Motions Filed in Trial Court in Connection with Appeal

§ 5.11-2(a) Motion for Waiver of Undertaking for Costs on Appeal

An appellant must file in the trial court an undertaking for costs on appeal in the amount of $500. ORS 19.300(1), (3). On motion of the appellant, the trial court may waive or modify the amount of the undertaking. ORS 19.310(2).

QUERY: Does ORS 19.310(2) also apply to supersedeas undertakings under ORS 19.335?

§ 5.11-2(b) Motions in Connection with the Record

§ 5.11-2(b)(1) Motion for Extension of Time to Correct or Add to the Transcript

Any party wishing to correct or add to the transcript on appeal must file a motion to that effect in the trial court within 15 days after the transcriber files the certificate of preparation, which occurs after the transcriber prepares the transcript and serves a copy on each of the parties. ORS 19.370(3), (6)(a). A party seeking additional time to file a motion to correct or add to the record must file that motion in the appellate court. ORAP 3.30(1). However, once a party files a motion to correct or add to the transcript, and the trial court grants the motion, the trial court must set the time within which the corrections or additions will be made, ORS

19.370(6)(c), and any motion for extension of that time must be filed in the trial court. ORAP 3.40(3).

§ 5.11-2(b)(2) Motion to Require Appellant to Pay Cost of Additional Transcript

When an appellant designates less than the entire record of oral proceedings as part of the record on appeal, the respondent may designate additional parts of the oral proceedings, ORS 19.250(2), and may file a motion in the trial court to require the appellant to pay for the additional transcript. ORS 19.375(2).

§ 5.11-2(b)(3) Motion to Correct or Add to the Record on Judicial Review of State-Agency Orders

There is no statutory equivalent to ORS 19.370 establishing a procedure for correcting or adding to the record or transcript on judicial review of state-agency orders. *See* § 5.11-2(b)(1). However, the appellate courts have adopted ORAP 4.22, which prescribes a process very similar to ORS 19.370.

> PRACTICE TIP: ORAP 4.22(1)–(2) contemplates that the motion to correct or add to the record will be filed with the agency and a copy served on the appellate court. However, if the motion is styled "In the Court of Appeals of the State of Oregon," often neither the court nor the agency is sure whether it received the original or the copy. The better practice is to style the motion "Before the [*name of agency*]" but include the appellate court number in the case title. By doing so, it is clearer to both the court and the agency that the motion is filed with the agency in connection with the judicial review.

§ 5.11-2(c) Motion for Summary Determination of Jurisdiction

If an appeal is taken from a trial-court decision and any party harbors doubt about whether the decision is appealable, the party may file a motion in the trial court for a determination of whether the decision is appealable. ORS 19.235(1). If the trial court determines that the decision is not appealable, the trial court may proceed with the case through entry of judgment. ORS 19.235(2).

> PRACTICE TIP: See § 5.3-2(b)(2) for a discussion of the appellate court's concurrent jurisdiction under ORS 19.235(3) to make a summary determination of appealability, and the decision whether to file the motion for determination of appealability in the trial court or in the appellate court.

§ 5.11-2(d) Motion for Stay

Unless the appellant shows that it would be futile to do so or that the trial court is unable or unwilling to act on a motion for stay, ORS 19.350(5), a motion for stay of enforcement of a circuit court judgment or order pending appeal must be filed in the first instance in the trial court. ORS 19.350(2).

§ 5.11-2(e) Motion to Implement Settlement

If the parties to an appeal settle all or part of their dispute, the trial court retains jurisdiction to enter such orders or judgments as necessary to implement the settlement. ORS 19.410(3). It follows that any motion seeking to implement a settlement under that statute (except a motion to dismiss the appeal) should be filed in the trial court. If the trial court enters an order or judgment implementing a settlement, and the only remaining step is to dismiss the appeal, the motion to dismiss the appeal must be filed in the appellate court.

§ 5.11-2(f) Motion to Enforce the Appellate Judgment

After the state court administrator issues the appellate judgment terminating an appeal, any motion to implement or enforce the judgment must be filed in the trial court. ORS 19.270(8).

§ 5.11-3 Motion for Appellate Court Review of Trial-Court Order Affecting Appeal

If the trial court enters an order resolving a motion filed in that court in connection with an appeal, the appellate court has jurisdiction to review the trial-court order on motion of any party. ORS 19.360(1) (trial-court orders relating to undertakings or granting or denying a stay); ORAP 8.40 (trial-court orders affecting appeals generally). ORS 19.360 and ORAP 8.40 contemplate that review will be by motion practice, rather than by filing a notice of appeal, and do not require a department of the court or the court *en banc* to decide the matter. *Bova v. City of Medford*, 236 Or App 257, 265–67, 236 P3d 760 (2010), *rev den*, 351 Or 403 (2011) (motion seeking review under ORS 19.360 need not be decided by department).

A party seeking review of a trial-court order must file the motion for review within 14 days after entry of the order. ORS 19.360(1); ORAP 8.40. The appellate commissioner, in unpublished orders, has not treated the 14-day time limit in ORS

19.360 as absolute and has entertained motions seeking review of trial-court orders filed after expiration of the 14-day period.